

She Stands Accused

Victor MacClure

The background of the lower half of the image is a solid green color. Overlaid on this green background are several abstract geometric shapes in a vibrant blue color. These shapes include triangles of various sizes and orientations, some pointing upwards and some downwards. There are also horizontal and vertical lines, and a curved line that forms a partial arc. The shapes are scattered across the green field, creating a modern, abstract design.

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Victor MacClure

An abstract geometric pattern consisting of various blue shapes (triangles, diamonds, lines, and a curve) scattered across a green rectangular background. The shapes are solid blue and vary in size and orientation. Some triangles point upwards, some downwards, and one is a diamond. There are also several straight lines of different lengths and one curved line segment.

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ACCUSED ***

SHE STANDS ACCUSED

By Victor Macclure

Being a Series of Accounts of the Lives and Deeds of Notorious Women, Murderesses, Cheats, Cozeners, on whom Justice was Executed, and of others who, Accused of Crimes, were Acquitted at least in Law; Drawn from Authenticated Sources

TO RAFAEL SABATINI TO WHOSE VIRTUES AS AN
AUTHOR AND AS A FRIEND THE WRITER WISHES HIS
BOOK WERE WORTHIER OF DEDICATION

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FOOTNOTES:

I. — INTRODUCTORY

I had a thought to call this book *Pale Hands or Fair Hands Imbrued*—so easy it is to fall into the ghastly error of facetiousness.

Apart, however, from the desire to avoid pedant or puerile humour, re-examination of my material showed me how near I had been to crashing into a pitfall of another sort. Of the ladies with whose encounters with the law I propose to deal several were assoiled of the charges against them. Their hands, then—unless the present ruddying of female fingernails is the revival of an old fashion—were not pink-tipped, save, perhaps, in the way of health; nor imbrued, except in soapsuds. My proposed facetiousness put me in peril of libel.

Interest in the criminous doings of women is so alive and avid among criminological writers that it is hard indeed to find material which has not been dealt with to the point of exhaustion. Does one pick up in a secondhand bookshop a pamphlet giving a verbatim report of a trial in which a woman is the central figure, and does one flatter oneself that the find is unique, and therefore providing of fresh fields, it is almost inevitable that one will discover, or rediscover, that the case has already been put to bed by Mr Roughead in his inimitable manner. What a nose the man has! What noses all these rechauffeurs of crime possess! To use a figure perhaps something unmannerly, the pigs of Perigord, which, one hears, are trained to hunt truffles, have snouts no keener.

Suppose, again, that one proposes to deal with the peccancy of women from the earliest times, it is hard to find a lady, even one whose name has hitherto gleamed lurid in history, to whom some modern writer has not contrived by chapter and verse to apply a coat of whitewash.

Locusta, the poisoner whom Agrippina, wanting to kill the Emperor Claudius by slow degrees, called into service, and whose technique Nero admired so much that he was fain to put her on his pension list, barely escapes the deodorant. Messalina comes up in memory. And then one finds M. Paul Moinet, in his historical essays *En Marge de l'histoire*, gracefully pleading for the lady as *Messaline la calomniee*—yes, and making out a

good case for her. The Empress Theodora under the pen of a psychological expert becomes nothing more dire than a clever little whore disguised in imperial purple.

On the mention of poison Lucretia Borgia springs to mind. This is the lady of whom Gibbon writes with the following ponderous falsity:

In the next generation the house of Este was sullied by a sanguinary and incestuous race in the nuptials of Alfonso I with Lucretia, a bastard of Alexander VI, the Tiberius of Christian Rome. This modern Lucretia might have assumed with more propriety the name of Messalina, since the woman who can be guilty, who can even be accused, of a criminal intercourse with a father and two brothers must be abandoned to all the licentiousness of a venal love.

That, if the phrase may be pardoned, is swatting a butterfly with a sledgehammer! Poor little Lucretia, described by the excellent M. Moinet as a "bon petit coeur," is enveloped in the political ordure slung by venal pamphleteers at the masterful men of her race. My friend Rafael Sabatini, than whom no man living has dug deeper into Borgia history, explains the calumny of Lucretia in this fashion: Adultery and promiscuous intercourse were the fashion in Rome at the time of Alexander VI. Nobody thought anything of them. And to have accused the Borgia girl, or her relatives, of such inconsiderable lapses would have been to evoke mere shrugging. But incest, of course, was horrible. The writers paid by the party antagonistic to the Borgia growth in power therefore slung the more scurrile accusation. But there is, in truth, just about as much foundation for the charge as there is for the other, that Lucretia was a poisoner. The answer to the latter accusation, says my same authority, may take the form of a question: WHOM DID LUCRETIA POISON? As far as history goes, even that written by the Borgia enemies, the reply is, NOBODY!

Were one content, like Gibbon, to take one's history like snuff there would be to hand a mass of caliginous detail with which to cause shuddering in the unsuspecting reader. But in mere honesty, if in nothing else, it behoves the conscientious writer to examine the sources of his information. The sources may be—they too frequently are—contaminated by political rancour and bias, and calumnious accusation against historical figures too often is founded on mere envy. And then the rechauffeurs, especially where rechauffage is made from one language to another, have

been apt (with a mercenary desire to give their readers as strong a brew as possible) to attach the darkest meanings to the words they translate. In this regard, and still apropos the Borgias, I draw once again on Rafael Sabatini for an example of what I mean. Touching the festivities celebrating Lucretia's wedding in the Vatican, the one eyewitness whose writing remains, Gianandrea Boccaccio, Ferrarese ambassador, in a letter to his master says that amid singing and dancing, as an interlude, a "worthy" comedy was performed. The diarist Infessura, who was not there, takes it upon himself to describe the comedy as "lascivious." Lascivious the comedies of the time commonly were, but later writers, instead of drawing their ideas from the eyewitness, prefer the dark hints of Infessura, and are persuaded that the comedy, the whole festivity, was "obscene." Hence arises the notion, so popular, that the second Borgia Pope delighted in shows which anticipated those of the Folies Bergere, or which surpassed the danse du ventre in lust-excitation.

A statue was made by Guglielmo della Porta of Julia Farnese, Alexander's beautiful second mistress. It was placed on the tomb of her brother Alessandro (Pope Paul III). A Pope at a later date provided the lady, portrayed in 'a state of nature,' with a silver robe—because, say the gossips, the statue was indecent. Not at all: it was to prevent recurrence of an incident in which the sculptured Julia took a static part with a German student afflicted with sex-mania.

I become, however, a trifle excursive, I think. If I do the blame lies on those partisan writers to whom I have alluded. They have a way of leading their incautious latter-day brethren up the garden. They hint at flesh-eating lilies by the pond at the path's end, and you find nothing more prone to sarcophagy than harmless primulas. In other words, the beetle-browed Lucretia, with the handy poison-ring, whom they promise you turns out to be a blue-eyed, fair-haired, rather yielding little darling, ultimately an excellent wife and mother, given to piety and good works, used in her earlier years as a political instrument by father and brother, and these two no worse than masterful and ambitious men employing the political technique common to their day and age.

II

Messalina, Locusta, Lucretia, Theodora, they step aside in this particular review of peccant women. Cleopatra, supposed to have poisoned slaves in

the spirit of scientific research, or perhaps as punishment for having handed her the wrong lipstick, also is set aside. It were supererogatory to attempt dealing with the ladies mentioned in the Bible and the Apocrypha, such as Jael, who drove the nail into the head of Sisera, or Judith, who cut off the head of Holofernes. Their stories are plainly and excellently told in the Scriptural manner, and the adding of detail would be mere fictional exercise. Something, perhaps, might be done for them by way of deducing their characters and physical shortcomings through examination of their deeds and motives—but this may be left to psychiatrists. There is room here merely for a soupcon of psychology—just as much, in fact, as may afford the writer an easy turn from one plain narrative to another. You will have no more of it than amounts, say, to the pinch of fennel that should go into the sauce for mackerel.

Toffana, who in Italy supplied poison to wives aweary of their husbands and to ladies beginning to find their lovers inconvenient, and who thus at second hand murdered some six hundred persons, has her attractions for the criminological writer. The bother is that so many of them have found it out. The scanty material regarding her has been turned over so often that it has become somewhat tattered, and has worn rather thin for refashioning. The same may be said for Hieronyma Spara, a direct poisoner and Toffana's contemporary.

The fashion they set passed to the Marquise de Brinvilliers, and she, with La Vigoureux and La Voisin, has been written up so often that the task of finding something new to say of her and her associates looks far too formidable for a man as lethargic as myself.

In the abundance of material that criminal history provides about women choice becomes difficult. There is, for example, a plethora of women poisoners. Wherever a woman alone turns to murder it is a hundred to one that she will select poison as a medium. This at first sight may seem a curious fact, but there is for it a perfectly logical explanation, upon which I hope later to touch briefly. The concern of this book, however, is not purely with murder by women, though murder will bulk largely. Swindling will be dealt with, and casual allusion made to other crimes.

But take for the moment the women accused or convicted of poisoning. What an array they make! What monsters of iniquity many of them appear! Perhaps the record, apart from those set up by Toffana and the Brinvilliers

contingent, is held by the Van der Linden woman of Leyden, who between 1869 and 1885 attempted to dispose of 102 persons, succeeded with no less than twenty-seven, and rendered at least forty-five seriously ill. Then comes Helene Jegado, of France, who, according to one account, with two more working years (eighteen instead of sixteen), contrived to envenom twenty-six people, and attempted the lives of twelve more. On this calculation she fails by one to reach the der Linden record, but, even reckoning the two extra years she had to work in, since she made only a third of the other's essays, her bowling average may be said to be incomparably better.

Our own Mary Ann Cotton, at work between 1852 and 1873, comes in third, with twenty-four deaths, at least known, as her bag. Mary Ann operated on a system of her own, and many of her victims were her own children. She is well worth the lengthier consideration which will be given her in later pages.

Anna Zwanziger, the earlier 'monster' of Bavaria, arrested in 1809, was an amateur compared with those three.

Mrs Susannah Holroyd, of Ashton-under-Lyne, charged in September of 1816 at the Lancashire Assizes with the murder by poison of her husband, her own son, and the infant child of Anna Newton, a lodger of hers, was nurse to illegitimate children. She was generally suspected of having murdered several of her charges, but no evidence, as far as I can learn, was brought forward to give weight to the suspicion at her trial. Then there were Mesdames Flanagan and Higgins, found guilty, at Liverpool Assizes in February 1884, of poisoning Thomas Higgins, husband of the latter of the accused, by the administration of arsenic. The ladies were sisters, living together in Liverpool. With them in the house in Skirvington Street were Flanagan's son John, Thomas Higgins and his daughter Mary, Patrick Jennings and his daughter Margaret.

John Flanagan died in December 1880. His mother drew the insurance money. Next year Thomas Higgins married the younger of the sisters, and in the year following Mary Higgins, his daughter, died. Her stepmother drew the insurance money. The year after that Margaret Jennings, daughter of the lodger, died. Once again insurance money was drawn, this time by both sisters.

Thomas Higgins passed away that same year in a house to which what remained of the menage had removed. He was on the point of being buried,

as having died of dysentery due to alcoholism, when the suspicions of his brother led the coroner to stop the funeral. The brother had heard word of insurance on the life of Thomas. A post-mortem revealed the fact that Thomas had actually died of arsenic poisoning; upon which discovery the bodies of John Flanagan, Mary Higgins, and Margaret Jennings were exhumed for autopsy, which revealed arsenic poisoning in each case. The prisoners alone had attended the deceased in the last illnesses. Theory went that the poison had been obtained by soaking fly-papers. Mesdames Flanagan and Higgins were executed at Kirkdale Gaol in March of 1884.

Now, these are two cases which, if only minor in the wholesale poisoning line when compared with the Van der Linden, Jegado, and Cotton envenomings, yet have their points of interest. In both cases the guilty were so far able to banish "all trivial fond records" as to dispose of kindred who might have been dear to them: Mrs Holroyd of husband and son, with lodger's daughter as makeweight; the Liverpool pair of nephew, husband, stepdaughter (or son, brother-in-law, and stepniece, according to how you look at it), with again the unfortunate daughter of a lodger thrown in. If they "do things better on the Continent"—speaking generally and ignoring our own Mary Ann—there is yet temptation to examine the lesser native products at length, but space and the scheme of this book prevent. In the matter of the Liverpool Locustas there is an engaging speculation. It was brought to my notice by Mr Alan Brock, author of *By Misadventure* and *Further Evidence*. Just how far did the use of flypapers by Flanagan and Higgins for the obtaining of arsenic serve as an example to Mrs Maybrick, convicted of the murder of her husband in the same city five years later?

The list of women poisoners in England alone would stretch interminably. If one were to confine oneself merely to those employing arsenic the list would still be formidable. Mary Blandy, who callously slew her father with arsenic supplied her by her lover at Henley-on-Thames in 1751, has been a subject for many criminological essayists. That she has attracted so much attention is probably due to the double fact that she was a girl in a very comfortable way of life, heiress to a fortune of L10,000, and that contemporary records are full and accessible. But there is nothing essentially interesting about her case to make it stand out from others that have attracted less notice in a literary way. Another Mary, of a later date, Edith Mary Carew, who in 1892 was found guilty by the Consular Court, Yokohama, of the murder of her husband with arsenic and sugar of lead,

was an Englishwoman who might have given Mary Blandy points in several directions.

When we leave the arsenical-minded and seek for cases where other poisons were employed there is still no lack of material. There is, for example, the case of Sarah Pearson and the woman Black, who were tried at Armagh in June 1905 for the murder of the old mother of the latter. The old woman, Alice Pearson (Sarah was her daughter-in-law), was in possession of small savings, some forty pounds, which aroused the cupidity of the younger women. Their first attempt at murder was with metallic mercury. It rather failed, and the trick was turned by means of three-pennyworth of strychnine, bought by Sarah and mixed with the old lady's food. The murder might not have been discovered but for the fact that Sarah, who had gone to Canada, was arrested in Montreal for some other offence, and made a confession which implicated her husband and Black. A notable point about the case is the amount of metallic mercury found in the old woman's body: 296 grains—a record.

Having regard to the condition of life in which these Irishwomen lived, there is nothing, to my mind, in the fact that they murdered for forty pounds to make their crime more sordid than that of Mary Blandy.

Take, again, the case of Mary Ansell, the domestic servant, who, at Hertford Assizes in June 1899, was found guilty of the murder of her sister, Caroline, by the administration of phosphorus contained in a cake. Here the motive for the murder was the insurance made by Ansell upon the life of her sister, a young woman of weak intellect confined in Leavesden Asylum, Watford. The sum assured was only L22 10s. If Mary Blandy poisoned her father in order to be at liberty to marry her lover, Cranstoun, and to secure the fortune Cranstoun wanted with her, wherein does she shine above Mary Ansell, a murderess who not only poisoned her sister, but nearly murdered several of her sister's fellow-inmates of the asylum, and all for twenty odd pounds? Certainly not in being less sordid, certainly not in being more 'romantic.'

There is, at root, no case of murder proved and accepted as such which does not contain its points of interest for the criminological writer. There is, indeed, many a case, not only of murder but of lesser crime, that has failed to attract a lot of attention, but that yet, in affording matter for the student of crime and criminal psychology, surpasses others which, very often because

there has been nothing of greater public moment at the time, were boomed by the Press into the prominence of causes celebres.

There is no need then, after all, for any crime writer who wants to fry a modest basket of fish to mourn because Mr Roughead, Mr. Beaufroy Barry, Mr Guy Logan, Miss Tennyson Jesse, Mr Leonard R. Gribble, and others of his estimable fellows seem to have swiped all the sole and salmon. It may be a matter for envy that Mr Roughead, with his uncanny skill and his gift in piquant sauces, can turn out the haddock and hake with all the delectability of sole a la Normande. The sigh of envy will merge into an exhalation of joy over the artistry of it. And one may turn, wholeheartedly and inspired, to see what can be made of one's own catch of gudgeon.

III.

Kipling's line about the female of the species has been quoted, particularly as a text for dissertation on the female criminal, perhaps rather too often. There is always a temptation to use the easy gambit.

It is quite probable that there are moments in a woman's life when she does become more deadly than the male. The probability is one which no man of age and experience will lack instance for making a fact. Without seeking to become profound in the matter I will say this: it is but lightly as compared with a man that one need scratch a woman to come on the natural creature.

Now, your natural creature, not inhibited by reason, lives by theft, murder, and dissimulation. It lives, even as regards the male, but for one purpose: to continue its species. Enrage a woman, then, or frighten her into the natural creature, and she will discard all those petty rules invented by the human male for his advantage over, and his safety from, the less disciplined members of the species. All that stuff about 'honour,' 'Queensberry rules,' 'playing the game,' and what not will go by the board. And she will fight you with tooth and talon, with lies, with blows below the belt—metaphorically, of course.

It may well be that you have done nothing more than hurt her pride—the civilized part of her. But instinctively she will fight you as the mother animal, either potentially or in being. It will not occur to her that she is doing so. Nor will it occur to you. But the fact that she is fighting at all will bring it about, for fighting to any female animal means defence of her young. She may not have any young in being. That does not affect the case.

She will fight for the ova she carries, for the ova she has yet to develop. Beyond all reason, deep, instinct deep, within her she is the carrier of the race. This instinct is so profound that she will have no recollection in a crisis of the myriads of her like, but will think of herself as the race's one chance to persist. Dangerous? Of course she's dangerous—as dangerous as Nature! Just as dangerous, just as self-centred, as in its small way is that vegetative organism the volvox, which, when food is scarce and the race is threatened, against possible need of insemination, creates separate husband cells to starve in clusters, while 'she' hogs all the food-supply for the production of eggs.

This small flight into biology is made merely for the dim light it may cast on the Kipling half-truth. It is not made to explain why women criminals are more deadly, more cruel, more deeply lost in turpitude, than their male colleagues. But it may help to explain why so many crime-writers, following Lombroso, THINK the female more deadly.

There is something so deeply shocking in the idea of a woman being other than kind and good, something so antagonistic to the smug conception of Eve as the "minist'ring angel, thou," that leaps to extremes in expression are easy.

A drunken woman, however, and for example, is not essentially more degraded than a drunken man. This in spite of popular belief. A nymphomaniac is not essentially more degraded than a brothel-haunting male. It may be true that moral sense decays more quickly in a woman than in a man, that the sex-ridden or drink-avid woman touches the deeps of degradation more quickly, but the reasons for this are patent. They are economic reasons usually, and physical, and not adherent to any inevitably weaker moral fibre in the woman.

Women as a rule have less command of money than men. If they earn what they spend they generally have to seek their satisfactions cheaply; and, of course, since their powers of resistance to the debilitating effects of alcohol are commonly less than those of men, they more readily lose physical tone. With loss of health goes loss of earning power, loss of caste. The descent, in general, must be quicker. It is much the same in nymphomania. Unless the sex-avid woman has a decent income, such as will provide her with those means whereby women preserve the effect of

attractiveness, she must seek assuagement of her sex-torment with men less and less fastidious.

But it is useless and canting to say that peccant women are worse than men. If we are kind we say so merely because we are more apprehensive for them. Safe women, with but rare exceptions, are notably callous about their sisters astray, and the "we" I have used must be taken generally to signify men. We see the danger for erring women, danger economic and physical. Thinking in terms of the phrase that "a woman's place is the home," we wonder what will become of them. We wonder anxiously what man, braver or less fastidious than ourselves, will accept the burden of rescuing them, give them the sanctuary of a home. We see them as helpless, pitiable beings. We are shocked to see them fall so low.

There is something of this rather maudlin mentality, generally speaking, in our way of regarding women criminals. To think, we say, that a WOMAN should do such things!

But why should we be more shocked by the commission of a crime by a woman than by a man—even the cruellest of crimes? Take the male and female in feral creation, and there is nothing to choose between them in the matter of cruelty. The lion and the lioness both live by murder, and until gravidity makes her slow for the chase the breeding female is by all accounts the more dangerous. The she-bear will just as readily eat up a colony of grubs or despoil the husbandry of the bees as will her mate. If, then, the human animal drops the restraints imposed by law, reverting thereby to the theft, murder, and cunning of savagery, why should it be shocking that the female should equal the male in callousness? Why should it be shocking should she even surpass the male? It is quite possible that, since for physiological reasons she is nearer to instinctive motivation than the male, she cannot help being more ruthless once deterrent inhibition has been sloughed. But is she in fact more dangerous, more deadly as a criminal, than the male?

Lombroso—vide Mr Philip Beaufroy Barry in his essay on Anna Zwanziger—tells us that some of the methods of torture employed by criminal women are so horrible that they cannot be described without outraging the laws of decency. Less squeamish than Lombroso or Mr Barry, I gather aloud that the tortures have to do with the organs of generation. But male savages in African and American Indian tribes have a punishment for

adulterous women which will match anything in that line women have ever achieved, and men in England itself have wreaked perverted vengeance on women in ways indescribable too. Though it may be granted that pain inflicted through the genitals is particularly sickening, pain is pain all over the body, and must reach what might be called saturation-point wherever inflicted. And as regards the invention of sickening punishment we need go no farther afield in search for ingenuity than the list of English kings. Dirty Jamie the Sixth of Scotland and First of England, under mask of retributive justice, could exercise a vein of cruelty that might have turned a Red Indian green with envy. Moreover, doesn't our word expressing cruelty for cruelty's sake derive from the name of a man—the Marquis de Sade?

I am persuaded that the reason why so many women murderers have made use of poison in their killings is primarily a simple one, a matter of physique. The average murderess, determined on the elimination of, for example, a husband, must be aware that in physical encounter she would have no chance. Then, again, there is in women an almost inborn aversion to the use of weapons. Once in a way, where the murderess was of Amazonian type, physical means have been employed for the slaying.

In this regard Kate Webster, who in 1879 at Richmond murdered and dismembered Mrs Julia Thomas, springs to mind. She was, from all accounts, an exceedingly virile young woman, strong as a pony, and with a devil of a temper. Mr Elliot O'Donnell, dealing with her in his essay in the "Notable British Trials" series, seems to be rather at a loss, considering her lack of physical beauty, to account for her attractiveness to men and to her own sex. But there is no need to account for it. Such a thing is no phenomenon.

I myself, sitting in a taberna in a small Spanish port, was once pestered by a couple of British seamen to interpret for them in their approaches to the daughter of the house. This woman, who had a voice like a raven, seemed able to give quick and snappy answers to the chaff by frequenters of the taberna. Few people in the day-time, either men or women, would pass the house if 'Fina happened to be showing without stopping to have a word with her. She was not at all gentle in manner, but children ran to her. And yet, without being enormously fat, 'Fina must have weighed close on fifteen stone. She had forearms and biceps like a coal-heaver's. She was black-haired, heavy-browed, squish-nosed, moled, and swarthy, and she had a

beard and moustache far beyond the stage of incipiency. Yet those two British seamen, fairly decent men, neither drunk nor brutish, could not have been more attracted had 'Fina had the beauty of the Mona Lisa herself. I may add that there were other women handy and that the seamen knew of them.

This in parenthesis, I hope not inappropriately.

Where the selected victim, or victims, is, or are, feeble-bodied you will frequently find the murderess using physical means to her end. Sarah Malcolm, whose case will form one of the chief features of this volume, is an instance in point. Marguerite Diblanc, who strangled Mme Reil in the latter's house in Park Lane on a day in April 1871, is another. Amelia Dyer, the baby-farmer, also strangled her charges. Elizabeth Brownrigg (1767) beat the feeble Mary Clifford to death. I do not know that great physical difference existed to the advantage of the murderess between her and her older victim, Mrs Phoebe Hogg, who, with her baby, was done to death by Mrs Percy in October 1890, but the fact that Mrs Hogg had been battered about the head, and that the head had been almost severed from the body, would seem to indicate that the murderess was the stronger of the two women. The case of Belle Gunness (treated by Mr George Dilnot in his *Rogues March*[\[1\]](#)) might be cited. Fat, gross-featured, far from attractive though she was, her victims were all men who had married or had wanted to marry her. Mr Dilnot says these victims "almost certainly numbered more than a hundred." She murdered for money, using chloral to stupefy, and an axe for the actual killing. She herself was slain and burned, with her three children, by a male accomplice whom she was planning to dispose of, he having arrived at the point of knowing too much. 1907 was the date of her death at La Porte, U.S.A.

It occurs when the female killer happens to be dramatical-minded that she will use a pistol. Mme Weissmann-Bessarabo, who, with her daughter, shot her husband in Paris (August 1920), is of this kind. She and the daughter, Paule-Jacques, seem to have seen themselves as wild, wild women from the Mexico where they had sometime lived, and were always flourishing revolvers.

I would say that the use of poison so much by women murderers has reason, first, in the lack of physique for violent methods, but I would put alongside that reason this other, that women poisoners usually have had a

handy proximity to their victims. They have had contact with their victims in an attendant capacity. I have a suspicion, moreover, that a good number of women poisoners actually chose the medium as THE kindest way. Women, and I might add not a few men, who would be terribly shocked by sight or news of a quick but violent death, can contemplate with relative placidity a lingering and painful fatal illness. Propose to a woman the destruction of a mangy stray cat or of an incurably diseased dog by means of a clean, well-placed shot, and the chances are that she will shudder. But—no lethal chamber being available—suggest poison, albeit unspecified, and the method will more readily commend itself. This among women with no murderous instincts whatever.

I have a fancy also that in some cases of murder by poison, not only by women, the murderer has been able to dramatize herself or himself ahead as a tender, noble, and self-sacrificing attendant upon the victim. No need here, I think, to number the cases where the ministrations of murderers to their victims have aroused the almost tearful admiration of beholders.

I shall say nothing of the secrecy of the poison method, of the chance which still exists, in spite of modern diagnosis, that the illness induced by it will pass for one arising from natural causes. This is ground traversed so often that its features are as familiar as those of one's own house door. Nor shall I say anything of the ease with which, even in these days, the favourite poison of the woman murderer, arsenic, can be obtained in one form or another.

One hears and reads, however, a great deal about the sense of power which gradually steals upon the poisoner. It is a speculation upon which I am not ready to argue. There is, indeed, chapter and verse for believing that poisoners have arrived at a sense of omnipotence. But if Anna Zwanziger (here I quote from Mr Philip Beaufroy Barry's essay on her in his *Twenty Human Monsters*), "a day or two before the execution, smiled and said it was a fortunate thing for many people that she was to die, for had she lived she would have continued to poison men and women indiscriminately"; if, still according to the same writer, "when the arsenic was found on her person after the arrest, she seized the packet and gloated over the powder, looking at it, the chronicler assures us, as a woman looks at her lover"; and if, "when the attendants asked her how she could have brought herself calmly to kill people with whom she was living—whose meals and

amusements she shared—she replied that their faces were so stupidly healthy and happy that she desired to see them change into faces of pain and despair," I will say this in no way goes to prove the woman criminal to be more deadly than the male. This ghoulish satisfaction, with the conjectured feeling of omnipotence, is not peculiar to the woman poisoner. Neill Cream had it. Armstrong had it. Wainewright, with his reason for poisoning Helen Abercrombie—"Upon my soul I don't know, unless it was that her legs were too thick"—is quite on a par with Anna Zwanziger. The supposed sense of power does not even belong exclusively to the poisoner. Jack the Ripper manifestly had something of the same idea about his use of the knife.

As a monster in mass murder against Mary Ann Cotton I will set you the Baron Gilles de Rais, with his forty flogged, outraged, obscenely mutilated and slain children in one of his castles alone—his total of over two hundred children thus foully done to death. I will set you Gilles against anything that can be brought forward as a monster in cruelty among women.

Against the hypocrisy of Helene Jegado I will set you the sanctimonious Dr Pritchard, with the nauseating entry in his diary (quoted by Mr Roughead) recording the death of the wife he so cruelly murdered:

March 1865, 18, Saturday. Died here at 1 A.M. Mary Jane, my own beloved wife, aged thirty-eight years. No torment surrounded her bedside [the foul liar!]
—but like a calm peaceful lamb of God passed Minnie away. May God and Jesus, Holy Ghost, one in three, welcome Minnie! Prayer on prayer till mine be o'er; everlasting love. Save us, Lord, for Thy dear Son!

Against the mean murders of Flanagan and Higgins I will set you Mr Seddon and Mr Smith of the "brides in the bath."

IV

I am conscious that in arguing against the "more deadly than the male" conception of the woman criminal I am perhaps doing my book no great service. It might work for its greater popularity if I argued the other way, making out that the subjects I have chosen were monsters of brutality, with arms up to the shoulders in blood, that they were prodigies of iniquity and cunning, without bowels, steeped in hypocrisy, facinorous to a degree never surpassed or even equalled by evil men. It may seem that, being concerned to strip female crime of the lurid preeminence so commonly given it, I have

contrived beforehand to rob the ensuing pages of any richer savour they might have had. But I don't, myself, think so.

If these women, some of them, are not greater monsters than their male analogues, monsters they still remain. If they are not, others of them, greater rogues and cheats than males of like criminal persuasion, cheats and rogues they are beyond cavil. The truth of the matter is that I loathe the use of superlatives in serious works on crime. I will read, I promise you, anything decently written in a fictional way about 'master' crooks, 'master' killers, kings, queens, princes, and a whole peerage of crime, knowing very well that never yet has a 'master' criminal had any cleverness but what a novelist gave him. But in works on crime that pretend to seriousness I would eschew, pace Mr Leonard R. Gribble, all 'queens' and other honorifics in application to the lost men and women with whom such works must treat. There is no romance in crime. Romance is life gilded, life idealized. Crime is never anything but a sordid business, demonstrably poor in reward to its practitioners.

But, sordid or not, crime has its human interest. Its practitioners are still part of life, human beings, different from law-abiding humanity by God-alone-knows-what freak of heredity or kink in brain convolution. I will not ask the reader, as an excuse for my book, to view the criminal with the thought attributed to John Knox:

"There, but for the Grace of God, goes ——" Because the phrase might as well be used in contemplation of John D. Rockefeller or Augustus John or Charlie Chaplin or a man with a wooden leg. I do not ask that you should pity these women with whom I have to deal, still less that you should condemn them. Something between the two will serve. I write the book because I am interested in crime myself, and in the hope that you'll like the reading as much as I like the writing of it.

II. — A FAIR NECK FOR THE MAIDEN

In her long history there can have been few mornings upon which Edinburgh had more to offer her burghers in the way of gossip and rumour than on that of the 1st of July, 1600. In this 'gate' and that 'gate,' as one may imagine, the douce citizens must have clustered and broke and clustered, like eddied foam on a spated burn. By conjecture, as they have always been a people apt to take to the streets upon small occasion as on large, it is not unlikely that the news which was to drift into the city some thirty-five days later—namely, that an attempt on the life of his Sacred Majesty, the High and Mighty (and Rachitic) Prince, James the Sixth of Scotland, had been made by the brothers Ruthven in their castle of Gowrie—it is not unlikely that the first buzz of the Gowrie affair caused no more stir, for the time being at any rate, than the word which had come to those Edinburgh folk that fine morning of the first day in July. The busier of the bodies would trot from knot to knot, anxious to learn and retail the latest item of fact and fancy regarding the tidings which had set tongues going since the early hours. Murder, no less.

If the contemporary juridical records, even what is left of them, be a criterion, homicide in all its oddly named forms must have been a commonplace to those couthie lieges of his Slobberiness, King Jamie. It is hard to believe that murder, qua murder, could have been of much more interest to them than the fineness of the weather. We have it, however, on reasonable authority, that the murder of the Laird of Warriston did set the people of "Auld Reekie" finely agog.

John Kincaid, of Warriston, was by way of being one of Edinburgh's notables. Even at that time his family was considered to be old. He derived from the Kincaids of Kincaid, in Stirlingshire, a family then in possession of large estates in that county and here and there about Lothian. His own property of Warriston lay on the outskirts of Edinburgh itself, just above a mile from Holyroodhouse. Notable among his possessions was one which he should, from all accounts, dearly have prized, but which there are indications he treated with some contumely. This was his wife, Jean Livingstone, a singularly beautiful girl, no more than twenty-one years of

age at the time when this story opens. Jean, like her husband, was a person of good station indeed. She was a daughter of the Laird of Dunipace, John Livingstone, and related through him and her mother to people of high consideration in the kingdom.

News of the violent death of John Kincaid, which had taken place soon after midnight, came quickly to the capital. Officers were at once dispatched. Small wonder that the burghers found exercise for their clacking tongues from the dawning, for the lovely Jean was taken by the officers 'red-hand,' as the phrase was, for the murder of her husband. With her to Edinburgh, under arrest, were brought her nurse and two other serving-women.

To Pitcairn, compiler of Criminal Trials in Scotland, from indications in whose account of the murder I have been set on the hunt for material concerning it, I am indebted for the information that Jean and her women were taken red-hand. But I confess being at a loss to understand it. Warriston, as indicated, stood a good mile from Edinburgh. The informant bringing word of the deed to town, even if he or she covered the distance on horseback, must have taken some time in getting the proper authorities to move. Then time would elapse in quantity before the officers dispatched could be at the house. They themselves could hardly have taken the Lady Warriston red-hand, because in the meantime the actual perpetrator of the murder, a horse-boy named Robert Weir, in the employ of Jean's father, had made good his escape. As a fact, he was not apprehended until some time afterwards, and it would seem, from the records given in the Pitcairn Trials, that it was not until four years later that he was brought to trial.

A person taken red-hand, it would be imagined, would be one found in such circumstances relating to a murder as would leave no doubt as to his or her having "airt and pairt" in the crime. Since it must have taken the officers some time to reach the house, one of two things must have happened. Either some officious person or persons, roused by the killing, which, as we shall see, was done with no little noise, must have come upon Jean and her women immediately upon the escape of Weir, and have detained all four until the arrival of the officers, or else Jean and her women must have remained by the dead man in terror, and have blurted out the truth of their complicity when the officers appeared.

Available records are irritatingly uninformative upon the arrest of the Lady Warriston. Pitcairn himself, in 1830, talks of his many "fruitless searches" through the Criminal Records of the city of Edinburgh, the greater part of which are lost, and confesses his failure to come on any trace of the actual proceedings in this case, or in the case of Robert Weir. For this reason the same authority is at a loss to know whether the prisoners were immediately put to the knowledge of an assize, being taken "red-hand," without the formality of being served a "dittay" (as who should say an indictment), as in ordinary cases, before the magistrates of Edinburgh, or else sent for trial before the baron bailie of the regality of Broughton, in whose jurisdiction Warriston was situated.

It would perhaps heighten the drama of the story if it could be learned what Jean and her women did between the time of the murder and the arrest. It would seem, however, that the Lady Warriston had some intention of taking flight with Weir. One is divided between an idea that the horse-boy did not want to be hampered and that he was ready for self-sacrifice. "You shall tarry still," we read that he said; "and if this matter come not to light you shall say, 'He died in the gallery,' and I shall return to my master's service. But if it be known I shall fly, and take the crime on me, and none dare pursue you!"

It was distinctly a determined affair of murder. The loveliness of Jean Livingstone has been so insisted upon in many Scottish ballads,[\[2\]](#) and her conduct before her execution was so saintly, that one cannot help wishing, even now, that she could have escaped the scaffold. But there is no doubt that, incited by the nurse, Janet Murdo, she set about having her husband killed with a rancour which was very grim indeed.

*"She has twa weel-made feet;
Far better is her hand;
She's jimp about the middle
As ony willy wand."*

The reason for Jean's hatred of her husband appears in the dittay against Robert Weir. "Forasmuch," it runs, translated to modern terms,

as whilom Jean Livingstone, Goodwife of Warriston, having conceived a deadly rancour, hatred, and malice against whilom John Kincaid, of Warriston, for the alleged biting of her in the arm, and striking her divers times, the said Jean, in the month of June, One Thousand Six Hundred

Years, directed Janet Murdo, her nurse, to the said Robert [Weir], to the abbey of Holyroodhouse, where he was for the time, desiring him to come down to Warriston, and speak with her, anent the cruel and unnatural taking away of her said husband's life.

And there you have it. If the allegation against John Kincaid was true it does not seem that he valued his lovely wife as he ought to have done. The striking her "divers times" may have been an exaggeration. It probably was. Jean and her women would want to show there had been provocation. (In a ballad he is accused of having thrown a plate at dinner in her face.) But there is a naivete, a circumstantial air, about the "biting of her in the arm" which gives it a sort of genuine ring. How one would like to come upon a contemporary writing which would throw light on the character of John Kincaid! Growing sympathy for Jean makes one wish it could be found that Kincaid deserved all he got.

Here and there in the material at hand indications are to be found that the Lady of Warriston had an idea she might not come so badly off on trial. But even if the King's Majesty had been of clement disposition, which he never was, or if her judges had been likely to be moved by her youth and beauty, there was evidence of such premeditation, such fixity of purpose, as would no doubt harden the assize against her.

Robert Weir was in service, as I have said, with Jean Livingstone's father, the Laird of Dunipace. It may have been that he knew Jean before her marriage. He seems, at any rate, to have been extremely willing to stand by her. He was fetched by the nurse several times from Holyrood to Warriston, but failed to have speech with the lady. On the 30th of June, however, the Lady Warriston having sent the nurse for him once again, he did contrive to see Jean in the afternoon, and, according to the dittay, "conferred with her, concerning the cruel, unnatural, and abominable murdering of the said whilom John Kincaid."

The upshot of the conference was that Weir was secretly led to a "laigh" cellar in the house of Warriston, to await the appointed time for the execution of the murder.

Weir remained in the cellar until midnight. Jean came for him at that hour and led him up into the hall. Thence the pair proceeded to the room in which John Kincaid was lying asleep. It would appear that they took no

great pains to be quiet in their progress, for on entering the room they found Kincaid awakened "be thair dyn."

I cannot do better at this point than leave description of the murder as it is given in the dittay against Weir. The editor of Pitcairn's Trials remarks in a footnote to the dittay that "the quaintness of the ancient style even aggravates the horror of the scene." As, however, the ancient style may aggravate the reader unacquainted with Scots, I shall English it, and give the original rendering in a footnote:

And having entered within the said chamber, perceiving the said whilom John to be wakened out of his sleep by their din, and to pry over his bed-stock, the said Robert came then running to him, and most cruelly, with clenched fists, gave him a deadly and cruel stroke on the jugular vein, wherewith he cast the said whilom John to the ground, from out his bed; and thereafter struck him on his belly with his feet; whereupon he gave a great cry. And the said Robert, fearing the cry should have been heard, he thereafter, most tyrannously and barbarously, with his hand, gripped him by the throat, or weasand, which he held fast a long time, while [or until] he strangled him; during the which time the said John Kincaid lay struggling and fighting in the pains of death under him. And so the said whilom John was cruelly murdered and slain by the said Robert.[\[3\]](#)

It will be seen that Robert Weir evolved a murder technique which, as Pitcairn points out, was to be adopted over two centuries later in Edinburgh at the Westport by Messrs Burke and Hare.

II

Lady Warriston was found guilty, and four days after the murder, on the 5th of July, was taken to the Girth Cross of Holyrood, at the foot of the Canongate, and there decapitated by that machine which rather anticipated the inventiveness of Dr Guillotin—"the Maiden." At the same time, four o'clock in the morning, Janet Murdo, the nurse, and one of the serving-women accused with her as accomplices were burned on the Castle Hill of the city.

There is something odd about the early hour at which the executions took place. The usual time for these affairs was much later in the day, and it is probable that the sentence against Jean ran that she should be executed towards dusk on the 4th of the month. The family of Dunipace, however, having exerted no influence towards saving the daughter of the house from

her fate, did everything they could to have her disposed of as secretly and as expeditiously as possible. In their zeal to have done with the hapless girl who, they conceived, had blotted the family honour indelibly they were in the prison with the magistrates soon after three o'clock, quite indecent in their haste to see her on her way to the scaffold. In the first place they had applied to have her executed at nine o'clock on the evening of the 3rd, another unusual hour, but the application was turned down. The main idea with them was to have Jean done away with at some hour when the populace would not be expecting the execution. Part of the plan for privacy is revealed in the fact of the burning of the nurse and the "hyred woman" at four o'clock at the Castle Hill, nearly a mile away from the Girth Cross, so—as the Pitcairn Trials footnote says—"that the populace, who might be so early astir, should have their attentions distracted at two opposite stations... and thus, in some measure, lessen the disgrace of the public execution."

If Jean had any reason to thank her family it was for securing, probably as much on their own behalf as hers, that the usual way of execution for women murderers should be altered in her case to beheading by "the Maiden." Had she been of lesser rank she would certainly have been burned, after being strangled at a stake, as were her nurse and the serving-woman. This was the appalling fate reserved for convicted women^[4] in such cases, and on conviction even of smaller crimes. The process was even crueller in instances where the crime had been particularly atrocious. "The criminal," says the Pitcairn account of such punishment, "was 'brunt quick'!"

Altogether, the Dunipace family do not exactly shine with a good light as concerns their treatment of the condemned girl. Her father stood coldly aside. The quoted footnote remarks:

It is recorded that the Laird of Dunipace behaved with much apathy towards his daughter, whom he would not so much as see previous to her execution; nor yet would he intercede for her, through whose delinquency he reckoned his blood to be for ever dishonoured.

Jean herself was in no mind to be hurried to the scaffold as early as her relatives would have had her conveyed. She wanted (poor girl!) to see the sunrise, and to begin with the magistrates granted her request. It would appear, however, that Jean's blood-relations opposed the concession so

strongly that it was almost immediately rescinded. The culprit had to die in the grey dark of the morning, before anyone was likely to be astir.

In certain directions there was not a little heart-burning about the untimely hour at which it was manoeuvred the execution should be carried out. The writer of a Memorial, from which this piece of information is drawn, refrains very cautiously from mentioning the objectors by name. But it is not difficult, from the colour of their objections, to decide that these people belonged to the type still known in Scotland as the 'unco guid.' They saw in the execution of this fair malefactor a moral lesson and a solemn warning which would have a salutary and uplifting effect upon the spectators.

"Will you," they asked the presiding dignitaries, and the blood-relations of the hapless Jean, "deprive God's people of that comfort which they might have in that poor woman's death? And will you obstruct the honour of it by putting her away before the people rise out of their beds? You do wrong in so doing; for the more public the death be, the more profitable it shall be to many; and the more glorious, in the sight of all who shall see it."

But perhaps one does those worthies an injustice in attributing cant motives to their desire that as many people as possible should see Jean die. It had probably reached them that the Lady Warriston's repentance had been complete, and that after conviction of her sin had come to her her conduct had been sweet and seemly. They were of their day and age, those people, accustomed almost daily to beheadings, stranglings, burnings, hangings, and dismemberings. With that dour, bitter, fire-and-brimstone religious conception which they had through Knox from Calvin, they were probably quite sincere in their belief that the public repentance Jean Livingstone was due to make from the scaffold would be for the "comfort of God's people." It was not so often that justice exacted the extreme penalty from a young woman of rank and beauty. With "dreadful objects so familiar" in the way of public executions, it was likely enough that pity in the commonalty was "choked with custom of fell deeds." Something out of the way in the nature of a dreadful object-lesson might stir the hearts of the populace and make them conscious of the Wrath to Come.

And Jean Livingstone did die a good death.

The Memorial^[5] which I have mentioned is upon Jean's 'conversion' in prison. It is written by one "who was both a seer and hearer of what was

spoken [by the Lady Warriston]." The editor of the Pitcairn Trials believes, from internal evidence, that it was written by Mr James Balfour, colleague of Mr Robert Bruce, that minister of the Kirk who was so contumacious about preaching what was practically a plea of the King's innocence in the matter of the Gowrie mystery. It tells how Jean, from being completely apathetic and callous with regard to religion or to the dreadful situation in which she found herself through her crime, under the patient and tender ministrations of her spiritual advisers, arrived at complete resignation to her fate and genuine repentance for her misdeeds.

Her confession, as filleted from the Memorial by the Pitcairn Trials, is as follows:

I think I shall hear presently the pitiful and fearful cries which he gave when he was strangled! And that vile sin which I committed in murdering my own husband is yet before me. When that horrible and fearful sin was done I desired the unhappy man who did it (for my own part, the Lord knoweth I laid never my hands upon him to do him evil; but as soon as that man gripped him and began his evil turn, so soon as my husband cried so fearfully, I leapt out over my bed and went to the Hall, where I sat all the time, till that unhappy man came to me and reported that mine husband was dead), I desired him, I say, to take me away with him; for I feared trial; albeit flesh and blood made me think my father's moen [interest] at Court would have saved me!

Well, we know what the Laird of Dunipace did about it.

"As to these women who was challenged with me," the confession goes on,

I will also tell my mind concerning them. God forgive the nurse, for she helped me too well in mine evil purpose; for when I told her I was minded to do so she consented to the doing of it; and upon Tuesday, when the turn was done, when I sent her to seek the man who would do it, she said, "I shall go and seek him; and if I get him not I shall seek another! And if I get none I shall do it myself!"

Here the writer of the Memorial interpolates the remark, "This the nurse also confessed, being asked of it before her death." It is a misfortune, equalling that of the lack of information regarding the character of Jean's husband, that there is so little about the character of the nurse. She was, it is to be presumed, an older woman than her mistress, probably nurse to Jean

in her infancy. One can imagine her (the stupid creature!) up in arms against Kincaid for his treatment of her "bonny lamb," without the sense to see whither she was urging her young mistress; blind to the consequences, but "nursing her wrath" and striding purposefully from Warriston to Holyroodhouse on her strong plebeian legs, not once but several times, in search of Weir! What is known in Scotland as a 'limmer,' obviously.

"As for the two other women," Jean continues,

I request that you neither put them to death nor any torture, because I testify they are both innocent, and knew nothing of this deed before it was done, and the mean time of doing it; and that they knew they durst not tell, for fear; for I compelled them to dissemble. As for mine own part, I thank my God a thousand times that I am so touched with the sense of that sin now: for I confess this also to you, that when that horrible murder was committed first, that I might seem to be innocent, I laboured to counterfeit weeping; but, do what I could, I could not find a tear.

Of the whole confession that last is the most revealing touch. It is hardly just to fall into pity for Jean simply because she was young and lovely. Her crime was a bad one, much more deliberate than many that, in the same age, took women of lower rank in life than Jean to the crueller end of the stake. In the several days during which she was sending for Weir, but failing to have speech with him, she had time to review her intention of having her husband murdered. If the nurse was the prime mover in the plot Jean was an unrelenting abettor. It may have been in her calculations before, as well as after, the deed itself that the interest of her father and family at Court would save her, should the deed have come to light as murder. Even in these days, when justice is so much more seasoned with mercy to women murderers, a woman in Jean's case, with such strong evidence of premeditation against her, would only narrowly escape the hangman, if she escaped him at all. But that confession of trying to pretend weeping and being unable to find tears is a revelation. I can think of nothing more indicative of terror and misery in a woman than that she should want to cry and be unable to. Your genuinely hypocritical murderer, male as well as female, can always work up self-pity easily and induce the streaming eye.

It is from internal evidences such as this that one may conclude the repentance of Jean Livingstone, as shown in her confession, to have been sincere. There was, we are informed by the memorialist, nothing maudlin in

her conduct after condemnation. Once she got over her first obduracy, induced, one would imagine, by the shock of seeing the realization of what she had planned but never pictured, the murder itself, and probably by the desertion of her by her father and kindred, her repentance was "cheerful" and "unfeigned." They were tough-minded men, those Scots divines who ministered to her at the last, too stern in their theology to be misled by any pretence at finding grace. And no pretty ways of Jean's would have deceived them. The constancy of behaviour which is vouched for, not only by the memorialist but by other writers, stayed with her until the axe fell.

III

"She was but a woman and a bairn, being the age of twenty-one years," says the Memorial. But, "in the whole way, as she went to the place of execution, she behaved herself so cheerfully as if she had been going to her wedding, and not to her death. When she came to the scaffold, and was carried up upon it, she looked up to 'the Maiden' with two longsome looks, for she had never seen it before."

The minister-memorialist, who attended her on the scaffold, says that all who saw Jean would bear record with himself that her countenance alone would have aroused emotion, even if she had never spoken a word. "For there appeared such majesty in her countenance and visage, and such a heavenly courage in her gesture, that many said, 'That woman is ravished by a higher spirit than a man or woman's!'"

As for the Declaration and Confession which, according to custom, Jean made from the four corners of the scaffold, the memorialist does not pretend to give it verbatim. It was, he says, almost in a form of words, and he gives the sum of it thus:

The occasion of my coming here is to show that I am, and have been, a great sinner, and hath offended the Lord's Majesty; especially, of the cruel murdering of mine own husband, which, albeit I did not with mine own hands, for I never laid mine hands upon him all the time that he was murdering, yet I was the deviser of it, and so the committer. But my God hath been always merciful to me, and hath given me repentance for my sins; and I hope for mercy and grace at his Majesty's hands, for his dear son Jesus Christ's sake. And the Lord hath brought me hither to be an example to you, that you may not fall into the like sin as I have done. And I pray God, for his mercy, to keep all his faithful people from falling into the like

inconvenient as I have done! And therefore I desire you all to pray to God for me, that he would be merciful to me!

One wonders just how much of Jean's own words the minister-memorialist got into this, his sum of her confession. Her speech would be coloured inevitably by the phrasing she had caught from her spiritual advisers, and the sum of it would almost unavoidably have something of the memorialist's own fashion of thought. I would give a good deal to know if Jean did actually refer to the Almighty as "the Lord's Majesty," and hope for "grace at his Majesty's hands." I do not think I am being oversubtle when I fancy that, if Jean did use those words, I see an element of confusion in her scaffold confession—the trembling confusion remaining from a lost hope. As a Scot, I have no recollection of ever hearing the Almighty referred to as "the Lord's Majesty" or as "his Majesty." It does not ring naturally to my ear. Nor, at the long distance from which I recollect reading works of early Scottish divines, can I think of these forms being used in such a context. I may be—I very probably am—all wrong, but I have a feeling that up to the last Jean Livingstone believed royal clemency would be shown to her, and that this belief appears in the use of these unwonted phrases.

However that may be, Jean's conduct seems to have been heroic and unfaltering. She prayed, and one of her relations or friends brought "a clean cloath" to tie over her eyes. Jean herself had prepared for this operation, for she took a pin out of her mouth and gave it into the friend's hand to help the fastening. The minister-memorialist, having taken farewell of her for the last time, could not bear the prospect of what was about to happen. He descended from the scaffold and went away. "But she," he says, as a constant saint of God, humbled herself on her knees, and offered her neck to the axe, laying her neck, sweetly and graciously, in the place appointed, moving to and fro, till she got a rest for her neck to lay in. When her head was now made fast to "the Maiden" the executioner came behind her and pulled out her feet, that her neck might be stretched out longer, and so made more meet for the stroke of the axe; but she, as it was reported to me by him who saw it and held her by the hands at this time, drew her legs twice to her again, labouring to sit on her knees, till she should give up her spirit to the Lord! During this time, which was long, for the axe was but slowly loosed, and fell not down hastily, after laying of her head, her tongue was not idle, but she continued crying to the Lord, and uttered with a loud voice those her wonted words, "Lord Jesus, receive my spirit! O Lamb of God, that

taketh away the sins of the world, have mercy upon me! Into thy hand, Lord, I commend my soul!" When she came to the middle of this last sentence, and had said, "Into thy hand, Lord," at the pronouncing of the word "Lord" the axe fell; which was diligently marked by one of her friends, who still held her by the hand, and reported this to me.

IV

On the 26th of June, 1604, Robert Weir, "sumtyme servande to the Laird of Dynniepace," was brought to knowledge of an assize. He was "Dilaitit of airt and pairt of the crewall Murthour of umqle Johnne Kincaid of Wariestoune; committit the first of Julij, 1600 yeiris."

Verdict. The Assyse, all in ane voce, be the mouth of the said Thomas Galloway, chancellor, chosen be thame, ffand, pronouncet and declairit the said Robert Weir to be ffylit, culpable and convict of the crymes above specifiet, mentionat in the said Dittay; and that in respect of his Confessioun maid thairof, in Judgement.

Sentence. The said Justice-depute, be the mouth of James Sterling, dempster of the Court, decernit and ordainit the said Robert Weir to be tane to ane skaffold to be fixt beside the Croce of Edinburgh, and there to be brokin upoune ane Row,[\[6\]](#) quhill he be deid; and to ly thairat, during the space of xxiiij houris. And thaireftir, his body to be tane upon the said Row, and set up, in ane publict place, betwix the place of Wariestoune and the toun of Leyth; and to remain thairupoune, ay and quhill command be gevin for the buriall thairof. Quhilk was pronouncet for dome.

V

The Memorial before mentioned is, in the original, a manuscript belonging to the Advocates' Library of Edinburgh. A printed copy was made in 1828, under the editorship of J. Sharpe, in the same city. This edition contains, among other more relative matter, a reprint of a newspaper account of an execution by strangling and burning at the stake. The woman concerned was not the last victim in Britain of this form of execution. The honour, I believe, belongs to one Anne Cruttenden. The account is full of gruesome and graphic detail, but the observer preserves quite an air of detachment:

IVELCHESTER: 9th May, 1765. Yesterday Mary Norwood, for poisoning her husband, Joseph Norwood, of Axbridge, in this county [Somerset], was burnt here pursuant to her sentence. She was brought out of

the prison about three o'clock in the afternoon, barefoot; she was covered with a tarred cloth, made like a shift, and a tarred bonnet over her head; and her legs, feet, and arms had likewise tar on them; the heat of the weather melting the tar, it ran over her face, so that she made a shocking appearance. She was put on a hurdle, and drawn on a sledge to the place of execution, which was very near the gallows. After spending some time in prayer, and singing a hymn, the executioner placed her on a tar barrel, about three feet high; a rope (which was in a pulley through the stake) was fixed about her neck, she placing it properly with her hands; this rope being drawn extremely tight with the pulley, the tar barrel was then pushed away, and three irons were then fastened around her body, to confine it to the stake, that it might not drop when the rope should be burnt. As soon as this was done the fire was immediately kindled; but in all probability she was quite dead before the fire reached her, as the executioner pulled her body several times whilst the irons were fixing, which was about five minutes. There being a good quantity of tar, and the wood in the pile being quite dry, the fire burnt with amazing fury; notwithstanding which great part of her could be discerned for near half an hour. Nothing could be more affecting than to behold, after her bowels fell out, the fire flaming between her ribs, issuing out of her ears, mouth, eyeholes, etc. In short, it was so terrible a sight that great numbers turned their backs and screamed out, not being able to look at it.

III: — THE COUNTESS AND THE COZENER

It is hardly likely when that comely but penniless young Scot Robert Carr, of Ferniehurst, fell from his horse and broke his leg that any of the spectators of the accident foresaw how far-reaching it would be in its consequences. It was an accident, none the less, which in its ultimate results was to put several of the necks craned to see it in peril of the hangman's noose.

That divinely appointed monarch King James the Sixth of Scotland and First of England had an eye for manly beauty. Though he could contrive the direst of cruelties to be committed out of his sight, the actual spectacle of physical suffering in the human made him squeamish. Add the two facts of the King's nature together and it may be understood how Robert Carr, in falling from his horse that September day in the tilt-yard of Whitehall, fell straight into his Majesty's favour. King James himself gave orders for the disposition of the sufferer, found lodgings for him, sent his own surgeon, and was constant in his visits to the convalescent. Thereafter the rise of Robert Carr was meteoric. Knighted, he became Viscount Rochester, a member of the Privy Council, then Earl of Somerset, Knight of the Garter, all in a very few years. It was in 1607 that he fell from his horse, under the King's nose. In 1613 he was at the height of his power in England.

Return we for a moment, however, to that day in the Whitehall tilt-yard. It is related that one woman whose life and fate were to be bound with Carr's was in the ladies' gallery. It is very probable that a second woman, whose association with the first did much to seal Carr's doom, was also a spectator. If Frances Howard, as we read, showed distress over the painful mishap to the handsome Scots youth it is almost certain that Anne Turner, with the quick eye she had for male comeliness and her less need for Court-bred restraint, would exhibit a sympathetic volubility.

Frances Howard was the daughter of that famous Elizabethan seaman Thomas Howard, Earl of Suffolk. On that day in September she would be just over fifteen years of age. It is said that she was singularly lovely. At that early age she was already a wife, victim of a political marriage which, in the exercise of the ponderous cunning he called kingcraft, King James

had been at some pains to arrange. At the age of thirteen Frances had been married to Robert Devereux, third Earl of Essex, then but a year older than herself. The young couple had been parted at the altar, the groom being sent travelling to complete his growth and education, and Frances being returned to her mother and the semi-seclusion of the Suffolk mansion at Audley End.

Of the two women, so closely linked in fate, the second is perhaps the more interesting study. Anne Turner was something older than the Countess of Essex. In the various records of the strange piece of history which is here to be dealt with there are many allusions to a long association between the two. Almost a foster-sister relationship seems to be implied, but actual detail is irritatingly absent. Nor is it clear whether Mrs Turner at the time of the tilt-yard incident had embarked on the business activities which were to make her a much sought-after person in King James's Court. It is not to be ascertained whether she was not already a widow at that time. We can only judge from circumstantial evidence brought forward later.

In 1610, at all events, Mrs Turner was well known about the Court, and was quite certainly a widow. Her husband had been a well-known medical man, one George Turner, a graduate of St John's College, Cambridge. He had been a protege of Queen Elizabeth. Dying, this elderly husband of Mistress Turner had left her but little in the way of worldly goods, but that little the fair young widow had all the wit to turn to good account. There was a house in Paternoster Row and a series of notebooks. Like many another physician of his time, George Turner had been a dabbler in more arts than that of medicine, an investigator in sciences other than pathology. His notebooks would appear to have contained more than remedial prescriptions for agues, fevers, and rheums. There was, for example, a recipe for a yellow starch which, says Rafael Sabatini, in his fine romance *The Minion*,^[7] "she dispensed as her own invention. This had become so widely fashionable for ruffs and pickadills that of itself it had rendered her famous." One may believe, also, that most of the recipes for those "perfumes, cosmetics, unguents and mysterious powders, liniments and lotions asserted to preserve beauty where it existed, and even to summon it where it was lacking," were derived from the same sources.

There is a temptation to write of Mistress Turner as forerunner of that notorious Mme Rachel of whom, in his volume *Bad Companions*,^[8] Mr Roughead has said the final and pawky word. Mme Rachel, in the middle of

the nineteenth century, founded her fortunes as a beauty specialist (?) on a prescription for a hair-restorer given her by a kindly doctor. She also 'invented' many a lotion and unguent for the preservation and creation of beauty. But at about this point analogy stops. Both Rachel and her forerunner, Anne Turner, were scamps, and both got into serious trouble—Anne into deeper and deadlier hot water than Rachel—but between the two women there is only superficial comparison. Rachel was a botcher and a bungler, a very cobbler, beside Anne Turner.

Anne, there is every cause for assurance, was in herself the best advertisement for her wares. Rachel was a fat old hag. Anne, prettily fair, little-boned, and deliciously fleshed, was neat and elegant. The impression one gets of her from all the records, even the most prejudiced against her, is that she was a very cuddlesome morsel indeed. She was, in addition, demonstrably clever. Such a man of talent as Inigo Jones supported the decoration of many of the masques he set on the stage with costumes of Anne's design and confection. Rachel could neither read nor write.

It is highly probable that Anne Turner made coin out of the notes which her late husband, so inquisitive of mind, had left on matters much more occult than the manufacture of yellow starch and skin lotions. "It was also rumoured," says Mr Sabatini, "that she amassed gold in another and less licit manner: that she dabbled in fortune-telling and the arts of divination." We shall see, as the story develops, that the rumour had some foundation. The inquiring mind of the late Dr Turner had led him into strange company, and his legacy to Anne included connexions more sombre than those in the extravagantly luxurious Court of King James.

In 1610 the elegant little widow was flourishing enough to be able to maintain a lover in good style. This was Sir Arthur Mainwaring, member of a Cheshire family of good repute but of no great wealth. By him she had three children. Mainwaring was attached in some fashion to the suite of the Prince of Wales, Prince Henry. And while the Prince's court at St James's Palace was something more modest, as it was more refined, than that of the King at Whitehall, position in it was not to be retained at ease without considerable expenditure. It may be gauged, therefore, at what expense Anne's attachment to Mainwaring would keep her, and to what exercise of her talent and ambition her pride in it would drive her. And her pride was

absolute. It would, says a contemporary diarist, "make her fly at any pitch rather than fall into the jaws of want."[\[9\]](#)

II

In his romance *The Minion*, Rafael Sabatini makes the first meeting of Anne Turner and the Countess of Essex occur in 1610 or 1611. With this date Judge A. E. Parry, in his book *The Overbury Mystery*,[\[10\]](#) seems to agree in part. There is, however, warrant enough for believing that the two women had met long before that time. Anne Turner herself, pleading at her trial for mercy from Sir Edward Coke, the Lord Chief Justice, put forward the plea that she had been "ever brought up with the Countess of Essex, and had been a long time her servant."[\[11\]](#) She also made the like extenuative plea on the scaffold.[\[12\]](#) Judge Parry seems to follow some of the contemporary writers in assuming that Anne was a spy in the pay of the Lord Privy Seal, the Earl of Northampton. If this was so there is further ground for believing that Anne and Lady Essex had earlier contacts, for Northampton was Lady Essex's great-uncle. The longer association would go far in explaining the terrible conspiracy into which, from soon after that time, the two women so readily fell together—a criminal conspiracy, in which the reader may see something of the "false nurse" in Anne Turner and something of Jean Livingstone in Frances Howard, Lady Essex.

It was about this time, 1610-1611, that Lady Essex began to find herself interested in the handsome Robert Carr, then Viscount Rochester. Having reached the mature age of eighteen, the lovely Frances had been brought by her mother, the Countess of Suffolk, to Court. Highest in the King's favour, and so, with his remarkably good looks, his charm, and the elegant taste in attire and personal appointment which his new wealth allowed him lavishly to indulge, Rochester was by far the most brilliant figure there. Frances fell in love with the King's minion.

Rochester, it would appear, did not immediately respond to the lady's advances. They were probably too shy, too tentative, to attract Rochester's attention. It is probable, also, that there were plenty of beautiful women about the Court, more mature, more practised in the arts of coquetry than Frances, and very likely not at all 'blate'—as Carr and his master would put it—in showing themselves ready for conquest by the King's handsome favourite.

Whether the acquaintance of Lady Essex with Mrs Turner was of long standing or not, it was to the versatile Anne that her ladyship turned as confidante. The hint regarding Anne's skill in divination will be remembered. Having regard to the period, and to the alchemistic nature of the goods that composed so much of Anne's stock-in-trade at the sign of the Golden Distaff, in Paternoster Row, it may be conjectured that the love-lorn Frances had thoughts of a philtre.

With an expensive lover and children to maintain, to say nothing of her own luxurious habits, Anne Turner would see in the Countess's appeal a chance to turn more than one penny into the family exchequer. She was too much the opportunist to let any consideration of old acquaintance interfere with working such a potential gold-mine as now seemed to lie open to her pretty but prehensile fingers. Lady Essex was rich. She was also ardent in her desire. The game was too big for Anne to play single-handed. A real expert in cozening, a master of guile, was wanted to exploit the opportunity to its limit.

It is a curious phenomenon, and one that constantly recurs in the history of cozenage, how people who live by spoof fall victims so readily to spoofery. Anne Turner had brains. There is no doubt of it. Apart from that genuine and honest talent in costume-design which made her work acceptable to such an outstanding genius as Inigo Jones, she lived by guile. But I have now to invite you to see her at the feet of one of the silliest charlatans who ever lived. There is, of course, the possibility that Anne sat at the feet of this silly charlatan for what she might learn for the extension of her own technique. Or, again, it may have been that the wizard of Lambeth, whom she consulted in the Lady Essex affair, could provide a more impressive setting for spoof than she had handy, or that they were simply rogues together. My trouble is to understand why, by the time that the Lady Essex came to her with her problem, Anne had not exhausted all the gambits in flummery that were at the command of the preposterous Dr Forman.

The connexion with Dr Forman was part of the legacy left Anne by Dr Turner. Her husband had been the friend and patron of Forman, so that by the time Anne had taken Mainwaring for her lover, and had borne him three children, she must have had ample opportunity for seeing through the old charlatan.

Antony Weldon, the contemporary writer already quoted, is something too scurrilous and too apparently biased to be altogether a trustworthy authority. He seems to have been the type of gossip (still to be met in London clubs) who can always tell with circumstance how the duchess came to have a black baby, and the exact composition of the party at which Midas played at 'strip poker.' But he was, like many of his kind, an amusing enough companion for the idle moment, and his description of Dr Forman is probably fairly close to the truth.

"This Forman," he says,

was a silly fellow who dwelt in Lambeth, a very silly fellow, yet had wit enough to cheat the ladies and other women, by pretending skill in telling their fortunes, as whether they should bury their husbands, and what second husbands they should have, and whether they should enjoy their loves, or whether maids should get husbands, or enjoy their servants to themselves without corrivals: but before he would tell them anything they must write their names in his alphabetical book with their own handwriting. By this trick he kept them in awe, if they should complain of his abusing them, as in truth he did nothing else. Besides, it was believed, some meetings were at his house, wherein the art of the bawd was more beneficial to him than that of a conjurer, and that he was a better artist in the one than in the other: and that you may know his skill, he was himself a cuckold, having a very pretty wench to his wife, which would say, she did it to try his skill, but it fared with him as with astrologers that cannot foresee their own destiny.

And here comes an addendum, the point of which finds confirmation elsewhere. It has reference to the trial of Anne Turner, to which we shall come later.

"I well remember there was much mirth made in the Court upon the showing of the book, for, it was reported, the first leaf my lord Cook [Coke, the Lord Chief Justice] lighted on he found his own wife's name."

Whatever Anne's reason for doing so, it was to this scortatory old scab that she turned for help in cozening the fair young Countess. The devil knows to what obscene ritual the girl was introduced. There is evidence that the thaumaturgy practised by Forman did not want for lewdness—as magic of the sort does not to this day—and in this regard Master Weldon cannot be far astray when he makes our pretty Anne out to be the veriest baggage.

Magic or no magic, philtre or no philtre, it was not long before Lady Essex had her wish. The Viscount Rochester fell as desperately in love with her as she was with him.

There was, you may be sure, no small amount of scandalous chatter in the Court over the quickly obvious attachment the one to the other of this handsome couple. So much of this scandalous chatter has found record by the pens of contemporary and later gossip-writers that it is hard indeed to extract the truth. It is certain, however, that had the love between Robert Carr and Frances Howard been as chaste as ice, as pure as snow, jealousy would still have done its worst in besmirching. It was not, if the Rabelaisian trend in so much of Jacobean writing be any indication, a particularly moral age. Few ages in history are. It was not, with a reputed pervert as the fount of honour, a particularly moral Court. Since the emergence of the lovely young Countess from tutelage at Audley End there had been no lack of suitors for her favour. And when Frances so openly exhibited her preference for the King's minion there would be some among those disappointed suitors who would whisper, greenly, that Rochester had been granted that prisage which was the right of the absent Essex, a right which they themselves had been quite ready to usurp. It is hardly likely that there would be complete abnegation of salty gossip among the ladies of the Court, their Apollo being snatched by a mere chit of a girl.

What relative happiness there may have been for the pair in their loving—it could not, in the hindrance there was to their free mating, have been an absolute happiness—was shattered after some time by the return to England of the young husband. The Earl of Essex, now almost come to man's estate, arrived to take up the position which his rank entitled him to expect in the Court, and to assume the responsibilities and rights which, he fancied, belonged to him as a married man. In respect of the latter part of his intention he immediately found himself balked. His wife, perhaps all the deeper in love with Rochester for this threat to their happiness, declared that she had no mind to be held by the marriage forced on her in infancy, and begged her husband to agree to its annulment.

It had been better for young Essex to have agreed at once. He would have spared himself, ultimately, a great deal of humiliation through ridicule. But he tried to enforce his rights as a husband, a proceeding than which there is none more absurd should the wife prove obdurate. And prove obdurate his

wife did. She was to be moved neither by threat nor by pleading. It was, you will notice, a comedy situation; husband not perhaps amorous so much as the thwarted possessor of the unpossessable—wife frigid and a maid, as far, at least, as the husband was concerned, and her weeping eyes turned yearningly elsewhere. A comedy situation, yes, and at this distance almost farcical—but for certain elements in it approaching tragedy.

Badgered, not only by her husband but by her own relatives, scared no doubt, certainly unhappy, unable for politic reasons to appeal freely to her beloved Robin, to whom might Frances turn but the helpful Turner? And to whom, having turned to pretty Anne, was she likely to be led but again to the wizard of Lambeth?

Dr Forman had a heart for beauty in distress, but dissipating the ardency of an exigent husband was a difficult matter compared with attracting that of a negligent lover. It was also much more costly. A powder there was, indeed, which, administered secretly by small regular doses in the husband's food or drink, would soon cool his ardour, but the process of manufacture and the ingredients were enormously expensive. Frances got her powder.

The first dose was administered to Lord Essex just before his departure from a visit to his wife at Audley End. On his arrival back in London he was taken violently ill, so ill that in the weeks he lay in bed his life was despaired of. Only the intervention of the King's own physician, one Sir Theodore Mayerne, would appear to have saved him.

Her husband slowly convalescing, Lady Essex was summoned by her family back to London. In London, while Lord Essex mended in health, she was much in the company of her "sweet Turner." In addition to the house in Paternoster Row the little widow had a pretty riverside cottage at Hammersmith, and both were at the disposal of Lady Essex and her lover for stolen meetings. Those meetings were put a stop to by the recovery of Lord Essex, and with his recovery his lordship exhibited a new mood of determination. Backed by her ladyship's family, he ordered her to accompany him to their country place of Chartley. Her ladyship had to obey.

The stages of the journey were marked by the nightly illness of his lordship. By the time they arrived at Chartley itself he was in a condition little if at all less dangerous than that from which he had been rescued by the King's physician. His illness lasted for weeks, and during this time her

ladyship wrote many a letter to Anne Turner and to Dr Forman. She was afraid his lordship would live. She was afraid his lordship would die. She was afraid she would lose the love of Rochester. She begged Anne Turner and Forman to work their best magic for her aid. She was afraid that if his lordship recovered the spells might prove useless, that his attempts to assert his rights as a husband would begin again, and that there, in the heart of the country and so far from any refuge, they might take a form she would be unable to resist.

His lordship did recover. His attempts to assert his rights as a husband did begin again. The struggle between them, Frances constant in her obduracy, lasted several months. Her obstinacy wore down his. At long last he let her go.

III

If the fate that overtook Frances Howard and Rochester, and with them Anne Turner and many another, is to be properly understood, a brief word on the political situation in England at this time will be needed—or, rather, a word on the political personages, with their antagonisms.

Next in closeness to the King's ear after Rochester, and perhaps more trusted as a counsellor by that "wise fool," there had been Robert Cecil, Lord Salisbury, for a long time First Secretary of State. But about the time when Lady Essex finally parted with her husband Cecil died, depriving England of her keenest brain and the staunchest heart in her causes. If there had been no Rochester the likeliest man in the kingdom to succeed to the power and offices of Cecil would have been the Earl of Northampton, uncle of Lord Suffolk, who was the father of Lady Essex. Northampton, as stated, held the office of Lord Privy Seal.

The Howard family had done the State great service in the past. Its present representatives, Northampton and Suffolk, were anxious to do the State great service, as they conceived it, in the future. They were, however, Catholics in all but open acknowledgment, and as such were opposed by the Protestants, who had at their head Prince Henry. This was an opposition that they might have stomached. It was one that they might even have got over, for the Prince and his father, the King, were not the best of friends. The obstacle to their ambitions, and one they found hard to stomach, was the upstart Rochester. And even Rochester would hardly have stood in their way had his power in the Council depended on his own ability. The brain

that directed Robert Carr belonged to another man. This was Sir Thomas Overbury.

On the death of Cecil the real contenders for the vacant office of First Secretary of State—the highest office in the land—were not the wily Northampton and the relatively unintelligent Rochester, but the subtle Northampton and the quite as subtle, and perhaps more spacious-minded, Thomas Overbury. There was, it will be apprehended, a possible weakness on the Overbury side. The gemel-chain, like that of many links, is merely as strong as its weakest member. Overbury had no approach to the King save through the King's favourite. Rochester could have no real weight with the King, at least in affairs of State, except what he borrowed from Overbury. Divided, the two were powerless. No, more than that, there had to be no flaw in their linking.

The wily Northampton, one may be certain, was fully aware of this possible weakness in the combination opposed to his advancement. He would be fully aware, that is, that it was there potentially; but when he began, as his activities would indicate, to work for the creation of that flaw in the relationship between Rochester and Overbury it is unlikely that he knew the flaw had already begun to develop. Unknown to him, circumstance already had begun to operate in his favour.

Overbury was Rochester's tutor in more than appertained to affairs of State. It is more than likely that in Carr's wooing of Lady Essex he had held the role of Cyrano de Bergerac, writing those gracefully turned letters and composing those accomplished verses which did so much to augment and give constancy to her ladyship's love for Rochester. It is certain, at any rate, that Overbury was privy to all the correspondence passing between the pair, and that even such events as the supplying by Forman and Mrs Turner of that magic powder, and the Countess's use of it upon her husband, were well within his knowledge.

While the affair between his alter ego and the Lady Essex might be looked upon as mere dalliance, a passionate episode likely to wither with a speed equal to that of its growth, Overbury, it is probable, found cynical amusement in helping it on. But when, as time went on, the lady and her husband separated permanently, and from mere talk of a petition for annulment of the Essex marriage that petition was presented in actual form to the King, Overbury saw danger. Northampton was backing the petition.

If it succeeded Lady Essex would be free to marry Rochester. And the marriage, since Northampton was not the man to give except in the expectation of plenty, would plant the unwary Rochester on the hearth of his own and Overbury's enemies. With Rochester in the Howard camp there would be short shrift for Thomas Overbury. There would be, though Rochester in his infatuation seemed blind to the fact, as short a shrift as the Howards could contrive for the King's minion.

In that march of inevitability which marks all real tragedy the road that is followed forks ever and again with an 'if.' And we who, across the distance of time, watch with a sort of Jovian pity the tragic puppets in their folly miss this fork and that fork on their road of destiny select, each according to our particular temperaments, a particular 'if' over which to shake our heads. For me, in this story of Rochester, Overbury, Frances Howard, and the rest, the point of tragedy, the most poignant of the issues, is the betrayal by Robert Carr of Overbury's friendship. Though this story is essentially, or should be, that of the two women who were linked in fate with Rochester and his coadjutor, I am constrained to linger for a moment on that point.

Overbury's counsel had made Carr great. With nothing but his good looks and his personal charm, his only real attributes, Carr had been no more than King James's creature. James, with all the pedantry, the laboured cunning, the sleezy weaknesses of character that make him so detestable, was yet too shrewd to have put power in the hands of the mere minion that Carr would have been without the brain of Overbury to guide him. Of himself Carr was the 'toom tabard' of earlier parlance in his native country, the 'stuffed shirt' of a later and more remote generation. But beyond the coalition for mutual help that existed between Overbury and Carr, an arrangement which might have thrived on a basis merely material, there was a deep and splendid friendship. 'Stuffed shirt' or not, Robert Carr was greatly loved by Overbury. Whatever Overbury may have thought of Carr's mental attainments, he had the greatest faith in his loyalty as a friend. And here lies the terrible pity in that 'if' of my choice. The love between the two men was great enough to have saved them both. It broke on the weakness of Carr.

Overbury was aware that, honestly presented, the petition by Lady Essex for the annulment of her marriage had little chance of success. But for the obstinacy of Essex it might have been granted readily enough. He had, however, as we have seen, forced her to live with him as his wife, in

appearance at least, for several months in the country. There now would be difficulty in putting forward the petition on the ground of non-consummation of the marriage.

It was, nevertheless, on this ground that the petition was brought forward. But the non-consummation was not attributed, as it might have been, to the continued separation that had begun at the altar; the reason given was the impotence of the husband. Just what persuasion Northampton and the Howards used on Essex to make him accept this humiliating implication it is hard to imagine, but by the time the coarse wits of the period had done with him Essex was amply punished in ridicule for his primary obstinacy.

Sir Thomas Overbury, well informed though he usually was, must have been a good deal in the dark regarding the negotiations which had brought the nullity suit to this forward state. He had warned Rochester so frankly of the danger into which the scheme was likely to lead him that they had quarrelled and parted. If Rochester had been frank with his friend, if, on the ground of their friendship, he had appealed to him to set aside his prejudice, it might well have been that the tragedy which ensued would have been averted. Enough evidence remains to this day of Overbury's kindness for Robert Carr, there is enough proof of the man's abounding resource and wit, to give warrant for belief that he would have had the will, as he certainly had the ability, to help his friend. Overbury was one of the brightest intelligences of his age. Had Rochester confessed the extent of his commitment with Northampton there is little doubt that Overbury could and would have found a way whereby Rochester could have attained his object (of marriage with Frances Howard), and this without jeopardizing their mutual power to the Howard menace.

In denying the man who had made him great the complete confidence which their friendship demanded Rochester took the tragically wrong path on his road of destiny. But the truth is that when he quarrelled with Overbury he had already betrayed the friendship. He had already embarked on the perilous experiment of straddling between two opposed camps. It was an experiment that he, least of all men, had the adroitness to bring off. He was never in such need of Overbury's brain as when he aligned himself in secret with Overbury's enemies.

It is entirely probable that in linking up with Northampton Rochester had no mind to injure his friend. The bait was the woman he loved. Without

Northampton's aid the nullity suit could not be put forward, and without the annulment there could be no marriage for him with Frances Howard. But he had no sooner joined with Northampton than the very processes against which Overbury had warned him were begun. Rochester was trapped, and with him Overbury.

For the success of the suit, in Northampton's view, Overbury knew too much. It was a view to which Rochester was readily persuaded; or it was one which he was easily frightened into accepting. From that to joining in a plot for being rid of Overbury was but a step. Grateful, perhaps, for the undoubted services that Overbury had rendered him, Rochester would be eager enough to find his quondam friend employment. If that employment happened to take Overbury out of the country so much the better. At one time the King, jealous as a woman of the friendship existing between his favourite and Overbury, had tried to shift the latter out of the way by an offer of the embassy in Paris. It was an offer Rochester thought, that he might cause to be repeated. The idea was broached to Overbury. That shrewd individual, of course, saw through the suggestion to the intention behind it, but he was at a loss for an outlet for his talents, having left Rochester's employ, and he believed without immodesty that he could do useful work as ambassador in Paris.

Overbury was offered an embassy—but in Muscovy. He had no mind to bury himself in Russia, and he refused the offer on the ground of ill-health. By doing this he walked into the trap prepared for him. Northampton had foreseen the refusal when he promoted the offer on its rearranged terms. The King, already incensed against Overbury for some hints at knowledge of facts liable to upset the Essex nullity suit, pretended indignation at the refusal. Overbury unwarily repeated it before the Privy Council. That was what Northampton wanted. The refusal was high contempt of the King's majesty. Sir Thomas Overbury was committed to the Tower. He might have talked in Paris, or have written from Muscovy. He might safely do either in the Tower—where gags and bonds were so readily at hand.

Did Rochester know of the springe set to catch Overbury? The answer to the question, whether yes or no, hardly matters. Since he was gull enough to discard the man whose brain had lifted him from a condition in which he was hardly better than the King's lap-dog, he was gull enough to be fooled by Northampton. Since he valued the friendship of that honest man so little

as to consort in secret with his enemies, he was knave enough to have been party to the betrayal. Knave or fool—what does it matter? He was so much of both that, in dread of what Sir Thomas might say or do to thwart the nullity suit, he let his friend rot in the Tower for months on end, let him sicken and nearly die several times, without a move to free him. He did this to the man who had trusted him implicitly, a man that—to adapt Overbury's own words from his last poignant letter to Rochester—he had "more cause to love... yea, perish for... rather than see perish."

It is not given to every man to have that greater love which will make him lay down his life for a friend, but it is the sheer poltroon and craven who will watch a friend linger and expire in agony without lifting a finger to save him. Knave or fool—what does it matter when either is submerged in the coward?

IV

Overbury lay in the Tower five months. The commission appointed to examine into the Essex nullity suit went into session three weeks after he was imprisoned. There happened to be one man in the commission who cared more to be honest than to humour the King. This was the Archbishop Abbot. The King himself had prepared the petition. It was a task that delighted his pedantry, and his petition was designed for immediate acceptance. But such was Abbot's opposition that in two or three months the commission ended with divided findings.

Meantime Overbury in the Tower had been writing letters. He had been talking to visitors. As time went on, and Rochester did nothing to bring about his enlargement, his writings and sayings became more threatening. Rochester's attitude was that patience was needed. In time he would bring the King to a more clement view of Sir Thomas's offending, and he had no doubt that in the end he would be able to secure the prisoner both freedom and honourable employment.

Overbury had been consigned to the Tower in April. In June he complained of illness. Rochester wrote to him in sympathetic terms, sending him a powder that he himself had found beneficial, and made his own physician visit the prisoner.

But the threats which Overbury, indignant at his betrayal by Rochester, made by speech and writing were becoming common property in the city and at Court. One of Overbury's visitors who had made public mention of

Overbury's knowledge of facts likely to blow upon the Essex suit was arrested on the orders of Northampton. In the absence of the King and Rochester from London the old Earl was acting as Chief Secretary of State—thus proving Overbury to have been a true prophet. Northampton issued orders to the Tower that Overbury was to be closely confined, that his man Davies was to be dismissed, and that he was to be denied all visitors. The then Lieutenant of the Tower, one Sir William Wade, was deprived of his position on the thinnest of pretexts, and, on the recommendation of Sir Thomas Monson, Master of the Armoury, an elderly gentleman from Lincolnshire, Sir Gervase Elwes, was put in his place.

From that moment Sir Thomas Overbury was permitted no communication with the outer world, save by letter to Lord Rochester and for food that was brought him, as we shall presently see, at the instance of Mrs Turner.

In place of his own servant Davies Sir Thomas was allowed the services of an under-keeper named Weston, appointed at the same time as Sir Gervase Elwes. This man, it is perhaps important to note, had at one time been servant to Mrs Turner.

The alteration in the personnel of the Tower was almost immediately followed by severe illness on the part of the prisoner. The close confinement to which he was subjected, with the lack of exercise, could hardly have been the cause of such a violent sickness. It looked more as if it had been brought about by something he had eaten or drunk. By this time the conviction he had tried to resist, that Rochester was meanly sacrificing him, became definite. Overbury is hardly to be blamed if he came to a resolution to be revenged on his one-time friend by bringing him to utter ruin. King James had been so busy in the Essex nullity suit, had gone to such lengths to carry it through, that if it could be wrecked by the production of the true facts he would be bound to sacrifice Rochester to save his own face. Sir Thomas had an accurate knowledge of the King's character. He knew the scramble James was capable of making in a difficulty that involved his kingly dignity, and what little reck he had of the faces he trod on in climbing from a pit of his own digging. By a trick Overbury contrived to smuggle a letter through to the honest Archbishop Abbot, in which he declared his possession of facts that would non-suit the nullity action, and begged to be summoned before the commission.

Overbury was getting better of the sickness which had attacked him when suddenly it came upon him again. This time he made no bones about saying that he had been poisoned.

Even at the last Overbury had taken care to give Rochester a chance to prove his fidelity. He contrived that the delivery of the letter to the Archbishop of Canterbury should be delayed until just before the nullity commission, now augmented by members certain to vote according to the King's desire, was due to sit again. The Archbishop carried Overbury's letter to James, and insisted that Overbury should be heard. The King, outward stickler that he was for the letter of the law, had to agree.

On the Thursday of the week during which the commission was sitting Overbury was due to be called. He was ill, but not so ill as he had been. On the Tuesday he was visited by the King's physician. On the Wednesday he was dead.

Now, before we come to examine those evidences regarding Overbury's death that were to be brought forward in the series of trials of later date, that series which was to be known as "the Great Oyer of Poisoning," it may be well to consider what effect upon the Essex nullity suit Overbury's appearance before the commission might have had. It may be well to consider what reason Rochester had for keeping his friend in close confinement in the Tower, what reason there was for permitting Northampton to impose such cruelly rigorous conditions of imprisonment.

The nullity suit succeeded. A jury of matrons was impanelled, and made an examination of the lady appellant. Its evidence was that she was *virgo intacta*. Seven out of the twelve members of the packed commission voted in favour of the sentence of nullity.

The kernel of the situation lies in the verdict of the jury of matrons. Her ladyship was declared to be a maid. If in the finding gossips and scandal-mongers found reason for laughter, and decent enough people cause for wonderment, they are hardly to be blamed. If Frances Howard was a virgin, what reason was there for fearing anything Overbury might have said? What knowledge had he against the suit that put Rochester and the Howards in such fear of him that they had to confine him in the Tower under such miserable conditions? In what was he so dangerous that he had to be deprived of his faithful Davies, that he had to be put in the care of a Tower Lieutenant specially appointed? The evidence given before the commission

can still be read in almost verbatim report. It is completely in favour of the plea of Lady Essex. Sir Thomas Overbury's, had he given evidence, would have been the sole voice against the suit. If he had said that in his belief the association of her ladyship with Rochester had been adulterous there was the physical fact adduced by the jury of matrons to confute him. And being confuted in that, what might he have said that would not be attributed to rancour on his part? That her ladyship, with the help of Mrs Turner and the wizard of Lambeth, had practised magic upon her husband, giving him powders that went near to killing him? That she had lived in seclusion for several months with her husband at Chartley, and that the non-consummation of the marriage was due, not to the impotence of the husband, but to refusal to him of marital rights on the part of the wife because of her guilty love for Rochester? His lordship of Essex was still alive, and there was abundant evidence before the court that there had been attempt to consummate the marriage. Whatever Sir Thomas might have said would have smashed as evidence on that one fact. Her ladyship was a virgin.

What did Sir Thomas Overbury know that made every one whose interest it was to further the nullity suit so scared of him—Rochester, her ladyship, Northampton, the Howards, the King himself?

Sir Thomas Overbury was much too cool-minded, too intelligent, to indulge in threats unless he was certain of the grounds, and solid upon them, upon which he made those threats. He had too great a knowledge of affairs not to know that the commission would be a packed one, too great an acquaintance with the strategy of James to believe that his lonely evidence, unless of bombshell nature, would have a chance of carrying weight in a court of his Majesty's picking. And, then, he was of too big a mind to put forward evidence which would have no effect but that of affording gossip for the scandal-mongers, and the giving of which would make him appear to be actuated by petty spite. He had too great a sense of his own dignity to give himself anything but an heroic role. Samson he might play, pulling the pillars of the temple together to involve his enemies, with himself, in magnificent and dramatic ruin. But Iachimo—no.

In the welter of evidence conflicting with apparent fact which was given before the commission and in the trials of the Great Oyer, in the mass of writing both contemporary and of later days round the Overbury mystery, it

is hard indeed to land upon the truth. Feasible solution is to be come upon only by accepting a not too pretty story which is retailed by Antony Weldon. He says that the girl whom the jury of matrons declared to be *virgo intacta* was so heavily veiled as to be unidentifiable through the whole proceedings, and that she was not Lady Essex at all, but the youthful daughter of Sir Thomas Monson.

Mrs Turner, we do know, was very much a favourite with the ladies of Sir Thomas Monson's family. Gossip Weldon has a funny, if lewd, story to tell of high jinks indulged in by the Monson women and Mrs Turner in which Symon, Monson's servant, played an odd part. This Symon was also employed by Mrs Turner to carry food to Overbury in the Tower. If the substitution story has any truth in it it might well have been a Monson girl who played the part of the Countess. But, of course, a Monson girl may have been chosen by the inventors to give verisimilitude to the substitution story, simply because the family was friendly with Turner, and the tale of the lewd high jinks with Symon added to make it seem more likely that old Lady Monson would lend herself to such a plot.

If there was such a plot it is not at all unlikely that Overbury knew of it. If there was need of such a scheme to bolster the nullity petition it would have had to be evolved while the petition was being planned—that is, a month or two before the commission went first into session. At that time Overbury was still Rochester's secretary, still Rochester's confidant; and if such a scheme had been evolved for getting over an obstacle so fatal to the petition's success it was not in Rochester's nature to have concealed it from Overbury, the two men still being fast friends. Indeed, it may have been Overbury who pointed out the need there would be for the Countess to undergo physical examination, and it may have been on the certainty that her ladyship could not do so that Overbury rested so securely—as he most apparently did, beyond the point of safety—in the idea that the suit was bound to fail. It is legitimate enough to suppose, along this hypothesis, that this substitution plot was the very matter on which the two men quarrelled.

That Overbury had knowledge of some such essential secret as this is manifest in the enmity towards the man which Lady Essex exhibited, even when he lay, out of the way of doing harm, in the Tower. It is hard to believe that an innocent girl of twenty, conscious of her virgin chastity, in mere fear of scandal which she knew would be baseless, could pursue the

life of a man with the venom that, as we shall presently see, Frances Howard used towards Overbury through Mrs Turner.

V

As a preliminary to his marriage with Frances Howard, Rochester was created Earl of Somerset, and had the barony of Brancepeth bestowed on him by the King. Overbury was three months in his grave when the marriage was celebrated in the midst of the most extravagant show and entertainment.

The new Earl's power in the kingdom was never so high as at this time. It was, indeed, at its zenith. Decline was soon to set in. It will not serve here to follow the whole process of decay in the King's favour that Somerset was now to experience. There was poetic justice in his downfall. With hands all about him itching to bring him to the ground, he had not the brain for the giddy heights. If behind him there had been the man whose guidance had made him sure-footed in the climb he might have survived, flourishing. But the man he had consigned to death had been more than half of him, had been, indeed, his substance. Alone, with the power Overbury's talents had brought him, Somerset was bound to fail. The irony of it is that his downfall was contrived by a creature of his own raising.

Somerset had appointed Sir Ralph Winwood to the office of First Secretary of State. In that office word came to Winwood from Brussels that new light had been thrown on the mysterious death of Sir Thomas Overbury. Winwood investigated in secret. An English lad, one Reeves, an apothecary's assistant, thinking himself dying, had confessed at Flushing that Overbury had been poisoned by an injection of corrosive sublimate. Reeves himself had given the injection on the orders of his master, Loubel, the apothecary who had attended Overbury on the day before his death. Winwood sought out Loubel, and from him went to Sir Gervase Elwes. The story he was able to make from what he had from the two men he took to the King. From this beginning rose up the Great Oyer of Poisoning. The matter was put into the hands of the Lord Chief Justice, Sir Edward Coke.

The lad Reeves, whose confession had started the matter, was either dead or dying abroad, and was so out of Coke's reach. But the man who had helped the lad to administer the poisoned clyster, the under-keeper Weston, was at hand. Weston was arrested, and examined by Coke. The statement Coke's bullying drew from the man made mention of one Franklin, another

apothecary, as having supplied a phial which Sir Gervase Elwes had taken and thrown away. Weston had also received another phial by Franklin's son from Lady Essex. This also Sir Gervase had taken and destroyed. Then there had been tarts and jellies supplied by Mrs Turner.

Coke had Mrs Turner and Franklin arrested, and after that Sir Gervase was taken as an accessory, and on his statement that he had employed Weston on Sir Thomas Monson's recommendation Sir Thomas also was roped in. He maintained that he had been told to recommend Weston by Lady Essex and the Earl of Northampton.

The next person to be examined by Coke was the apothecary Loubel, he who had attended Overbury on the day before his death. Though in his confession the lad Reeves said that he had been given money and sent abroad by Loubel, this was a matter that Coke did not probe. Loubel told Coke that he had given Overbury nothing but the physic prescribed by Sir Theodore Mayerne, the King's physician, and that in his opinion Overbury had died of consumption. With this evidence Coke was very strangely content—or, at least, content as far as Loubel was concerned, for this witness was not summoned again.

Other persons were examined by Coke, notably Overbury's servant Davies and his secretary Payton. Their statements served to throw some suspicion on the Earl of Somerset.

But if all the detail of these examinations were gone into we should never be done. Our concern is with the two women involved, Anne Turner and the Countess of Somerset, as we must now call her. I am going to quote, however, two paragraphs from Rafael Sabatini's romance *The Minion* that I think may explain why it is so difficult to come to the truth of the Overbury mystery. They indicate how it was smothered by the way in which Coke rough-handled justice throughout the whole series of trials.

On October 19th, at the Guildhall, began the Great Oyer of Poisoning, as Coke described it, with the trial of Richard Weston.

Thus at the very outset the dishonesty of the proceedings is apparent. Weston was an accessory. Both on his own evidence and that of Sir Gervase Elwes, besides the apothecary's boy in Flushing, Sir Thomas Overbury had died following upon an injection prepared by Loubel. Therefore Loubel was the principal, and only after Loubel's conviction could the field have been extended to include Weston and the others. But Loubel was tried neither

then nor subsequently, a circumstance regarded by many as the most mysterious part of what is known as the Overbury mystery, whereas, in fact, it is the clue to it. Nor was the evidence of the coroner put in, so that there was no real preliminary formal proof that Overbury had been poisoned at all.

Here Mr Sabatini is concerned to develop one of the underlying arguments of his story—namely, that it was King James himself who had ultimately engineered the death of Sir Thomas Overbury. It is an argument which I would not attempt to refute. I do not think that Mr Sabatini's acumen has failed him in the least. But the point for me in the paragraphs is the indication they give of how much Coke did to suppress all evidence that did not suit his purpose.

Weston's trial is curious in that at first he refused to plead. It is the first instance I have met with in history of a prisoner standing 'mute of malice.' Coke read him a lecture on the subject, pointing out that by his obstinacy he was making himself liable to *peine forte et dure*, which meant that order could be given for his exposure in an open place near the prison, extended naked, and to have weights laid upon him in increasing amount, he being kept alive with the "coarsest bread obtainable and water from the nearest sink or puddle to the place of execution, that day he had water having no bread, and that day he had bread having no water." One may imagine with what grim satisfaction Coke ladled this out. It had its effect on Weston.

He confessed that Mrs Turner had promised to give him a reward if he would poison Sir Thomas Overbury. In May she had sent him a phial of "rosalgar," and he had received from her tarts poisoned with mercury sublimate. He was charged with having, at Mrs Turner's instance, joined with an apothecary's boy in administering an injection of corrosive sublimate to Sir Thomas Overbury, from which the latter died. Coke's conduct of the case obscures just how much Weston admitted, but, since it convinced the jury of Weston's guilt, the conviction served finely for accusation against Mrs Turner.

Two days after conviction Weston was executed at Tyburn.

The trial of Anne Turner began in the first week of November. It would be easy to make a pathetic figure of the comely little widow as she stood trembling under Coke's bullying, but she was, in actual fact, hardly deserving of pity. It is far from enlivening to read of Coke's handling of the

trial, and it is certain that Mrs Turner was condemned on an indictment and process which to-day would not have a ghost of a chance of surviving appeal, but it is perfectly plain that Anne was party to one of the most vicious poisoning plots ever engineered.

We have, however, to consider this point in extenuation for her. It is almost certain that in moving to bring about the death of Overbury she had sanction, if only tacit, from the Earl of Northampton. By the time that the Great Oyer began Northampton was dead. Two years had elapsed from the death of Overbury. It would be quite clear to Anne that, in the view of the powerful Howard faction, the elimination of Overbury was politically desirable. It should be remembered, too, that she lived in a period when assassination, secret or by subverted process of justice, was a commonplace political weapon. Public executions by methods cruel and even obscene taught the people to hold human life at small value, and hardened them to cruelties that made poisoning seem a mercy. It is not at all unlikely that, though her main object may have been to help forward the plans of her friend the Countess, Anne considered herself a plotter in high affairs of State.

The indictment against her was that she had comforted, aided, and abetted Weston—that is to say, she was made an accessory. If, however, as was accused, she procured Weston and Reeves to administer the poisonous injection she was certainly a principal, and as such should have been tried first or at the same time as Weston. But Weston was already hanged, and so could not be questioned. His various statements were used against her unchallenged, or, at least, when challenging them was useless.

The indictment made no mention of her practices against the Earl of Essex, but from the account given in the State Trials it would seem that evidence on this score was used to build the case against her. Her relations with Dr Forman, now safely dead, were made much of. She and the Countess of Essex had visited the charlatan and had addressed him as "Father." Their reason for visiting, it was said, was that "by force of magick he should procure the then Viscount of Rochester to love the Countess and Sir Arthur Mainwaring to love Mrs Turner, by whom she had three children." Letters from the Countess to Turner were read. They revealed the use on Lord Essex of those powders her ladyship had been given by Forman. The letters had been found by Forman's wife in a packet among

Forman's possessions after his death. These, with others and with several curious objects exhibited in court, had been demanded by Mrs Turner after Forman's demise. Mrs Turner had kept them, and they were found in her house.

As indicating the type of magic practised by Forman these objects are of interest. Among other figures, probably nothing more than dolls of French make, there was a leaden model of a man and woman in the act of copulation, with the brass mould from which it had been cast. There was a black scarf ornamented with white crosses, papers with cabalistic signs, and sundry other exhibits which appear to have created superstitious fear in the crowd about the court. It is amusing to note that while those exhibits were being examined one of the scaffolds erected for seating gave way or cracked ominously, giving the crowd a thorough scare. It was thought that the devil himself, raised by the power of those uncanny objects, had got into the Guildhall. Consternation reigned for quite a quarter of an hour.

There was also exhibited Forman's famous book of signatures, in which Coke is supposed to have encountered his own wife's name on the first page.

Franklin, apothecary, druggist, necromancer, wizard, and born liar, had confessed to supplying the poisons intended for use upon Overbury. He declared that Mrs Turner had come to him from the Countess and asked him to get the strongest poisons procurable. He "accordingly bought seven: viz., aqua fortis, white arsenic, mercury, powder of diamonds, lapis costitus, great spiders, cantharides." Franklin's evidence is a palpable tissue of lies, full of statements that contradict each other, but it is likely enough, judging from facts elicited elsewhere, that his list of poisons is accurate. Enough poison passed from hand to hand to have slain an army.

Mention is made by Weldon of the evidence given by Symon, servant to Sir Thomas Monson, who had been employed by Mrs Turner to carry a jelly and a tart to the Tower. Symon appears to have been a witty fellow. He was, "for his pleasant answer," dismissed by Coke.

My lord told him: "Symon, you have had a hand in this poisoning business——"

"No, my good lord, I had but a finger in it, which almost cost me my life, and, at the best, cost me all my hair and nails." For the truth was that Symon was somewhat liquorish, and finding the syrup swim from the top of

the tart as he carried it, he did with his finger skim it off: and it was believed, had he known what it had been, he would not have been his taster at so dear a rate.

Coke, with his bullying methods and his way of acting both as judge and chief prosecutor, lacks little as prototype for the later Judge Jeffreys. Even before the jury retired he was at pains to inform Mrs Turner that she had the seven deadly sins: viz., "a whore, a bawd, a sorcerer, a witch, a papist, a felon, and a murderer, the daughter of the devil Forman."[\[13\]](#) And having given such a Christian example throughout the trial, he besought her "to repent, and to become the servant of Jesus Christ, and to pray Him to cast out the seven devils." It was upon this that Anne begged the Lord Chief Justice to be merciful to her, putting forward the plea of having been brought up with the Countess of Essex, and of having been "a long time her servant." She declared that she had not known of poison in the things that were sent to Sir Thomas Overbury.

The jury's retirement was not long-drawn. They found her guilty.

Says Weldon:

The Wednesday following she was brought from the sheriff's in a coach to Newgate and there was put into a cart, and casting money often among the people as she was carried to Tyburn, where she was executed, and whither many men and women of fashion followed her in coaches to see her die.

Her speeches before execution were pious, like most speeches of the sort, and "moved the spectators to great pity and grief for her." She again related "her breeding with the Countess of Somerset," and pleaded further of "having had no other means to maintain her and her children but what came from the Countess." This last, of course, was less than the truth. Anne was not so indigent that she needed to take to poisoning as a means of supporting her family. She also said "that when her hand was once in this business she knew the revealing of it would be her overthrow."

In more than one account written later of her execution she is said to have worn a ruff and cuffs dressed with the yellow starch which she had made so fashionable, and it is maintained that this association made the starch thereafter unpopular. It is forgotten that with Anne the recipe for the yellow starch probably was lost. Moreover, the elaborate ruff was then being put out of fashion by the introduction of the much more comfortable

lace collar. In any case, "There is no truth," writes Judge Parry, in the old story[14] that Coke ordered her to be executed in the yellow ruff she had made the fashion and so proudly worn in Court. What did happen, according to Sir Simonds d'Ewes, was that the hangman, a coarse ruffian with a distorted sense of humour, dressed himself in bands and cuffs of yellow colour, but no one heeded his ribaldry; only in after days none of either sex used the yellow starch, and the fashion grew generally to be detested.

Pretty much, I should think, as the tall 'choker' became detested within the time of many of us. After Mrs Turner Sir Gervase Elwes was brought to trial as an accessory. The only evidence against him was that of the liar Franklin, who asserted that Sir Gervase had been in league with the Countess. It was plain, however, both from Weston's statements and from Sir Gervase's own, that the Lieutenant of the Tower had done his very best to defeat the Turner-Essex-Northampton plot for the poisoning of Overbury, throwing away the "rosalgar" and later draughts, as well as substituting food from his own kitchen for that sent in by Turner. "Although it must have been clear that if any of what was alleged against him had been true Overbury's poisoning would never have taken five months to accomplish, he was sentenced and hanged." [15]

This, of course, was a glaring piece of injustice, but Coke no doubt had his instructions. Weston, Mrs Turner, Elwes, and, later, Franklin had to be got out of the way, so that they could not be confronted with the chief figure against whom the Great Oyer was directed, and whom it was designed to pull down, Robert Carr, Earl of Somerset—and with him his wife. Just as much of the statements and confessions of the prisoners in the four preliminary trials was used by Coke as suited his purpose. It is pointed out by Amos, in his Great Oyer of Poisoning, that a large number of the documents appertaining to the Somerset trial show corrections and apparent glosses in Coke's own handwriting, and that even the confessions on the scaffold of some of the convicted are holographs by Coke. As a sample of the suppression of which Coke was guilty I may put forward the fact that Somerset's note to his own physician, Craig, asking him to visit Overbury, was not produced. Yet great play was made by Coke of this visit against Somerset. Wrote Somerset to Craig, "I pray you let him have your best help, and as much of your company as he shall require."

It was never proved that it was Anne Turner and Lady Essex who corrupted the lad Reeves, who with Weston administered the poisoned clyster that murdered Overbury. Nothing was done at all to absolve the apothecary Loubel, Reeves's master, of having prepared the poisonous injection, nor Sir Theodore Mayerne, the King's physician, of having been party to its preparation. Yet it was demonstrably the injection that killed Overbury if he was killed by poison at all. It is certain that the poisons sent to the Tower by Turner and the Countess did not save in early instances, get to Overbury at all—Elwes saw to that—or Overbury must have died months before he did die.

According to Weldon, who may be supposed to have witnessed the trials, Franklin confessed "that Overbury was smothered to death, not poisoned to death, though he had poison given him." And Weldon goes on to make this curious comment:

Here was Coke glad, how to cast about to bring both ends together, Mrs Turner and Weston being already hanged for killing Overbury with poison; but he, being the very quintessence of the law, presently informs the jury that if a man be done to death with pistols, poniards, swords, halter, poison, etc., so he be done to death, the indictment is good if he be but indicted for any of those ways. But the good lawyers of those times were not of that opinion, but did believe that Mrs Turner was directly murdered by my lord Coke's law as Overbury was without any law.

Though you will look in vain through the reports given in the State Trials for any speech of Coke to the jury in exactly these terms, it might be just as well to remember that the transcriptions from which the Trials are printed were prepared UNDER Coke's SUPERVISION, and that they, like the confessions of the convicted, are very often in his own handwriting.

At all events, even on the bowdlerized evidence that exists, it is plain that Anne Turner should have been charged only with attempted murder. Of that she was manifestly guilty and, according to the justice of the time, thoroughly deserved to be hanged. The indictment against her was faulty, and the case against her as full of holes as a colander. Her trial was 'cooked' in more senses than one.

It was some seven months after the execution of Anne Turner that the Countess of Essex was brought to trial. This was in May. In December, while virtually a prisoner under the charge of Sir William Smith at Lord

Aubigny's house in Blackfriars, she had given birth to a daughter. In March she had been conveyed to the Tower, her baby being handed over to the care of her mother, the Countess of Suffolk. Since the autumn of the previous year she had not been permitted any communication with her husband, nor he with her. He was already lodged in the Tower when she arrived there.

On a day towards the end of May she was conveyed by water from the Tower to Westminster Hall. The hall was packed to suffocation, seats being paid for at prices which would turn a modern promoter of a world's heavyweight-boxing-championship fight green with envy. Her judges were twenty-two peers of the realm, with the Lord High Steward, the Lord Chief Justice, and seven judges at law. It was a pageant of colour, in the midst of which the woman on trial, in her careful toilette, consisting of a black stammel gown, a cypress chaperon or black crepe hood in the French fashion, relieved by touches of white in the cuffs and ruff of cobweb lawn, struck a funereal note. Preceded by the headsman carrying his axe with its edge turned away from her, she was conducted to the bar by the Lieutenant of the Tower. The indictment was read to her, and at its end came the question: "Frances Howard, Countess of Somerset, how sayest thou? Art thou guilty of this felony and murder or not guilty?"

There was a hushed pause for a moment; then came the low-voiced answer: "Guilty."

Sir Francis Bacon, the Attorney-General—himself to appear in the same place not long after to answer charges of bribery and corruption—now addressed the judges. His eloquent address was a commendation of the Countess's confession, and it hinted at royal clemency.

In answer to the formal demand of the Clerk of Arraignment if she had anything to say why judgment of death should not be given against her the Countess made a barely audible plea for mercy, begging their lordships to intercede for her with the King. Then the Lord High Steward, expressing belief that the King would be moved to mercy, delivered judgment. She was to be taken thence to the Tower of London, thence to the place of execution, where she was to be hanged by the neck until she was dead—and might the Lord have mercy on her soul.

The attendant women hastened to the side of the swaying woman. And now the halbardiers formed escort about her, the headsman in front, with

the edge of his axe turned towards her in token of her conviction, and she was led away.

VI

It is perfectly clear that the Countess of Somerset was led to confess on the promise of the King's mercy. It is equally clear that she did not know what she was confessing to. Whatever might have been her conspiracy with Anne Turner it is a practical certainty that it did not result in the death of Thomas Overbury. There is no record of her being allowed any legal advice in the seven months that had elapsed since she had first been made a virtual prisoner. She had been permitted no communication with her husband. For all she knew, Overbury might indeed have died from the poison which she had caused to be sent to the Tower in such quantity and variety. And she went to trial at Westminster guilty in conscience, her one idea being to take the blame for having brought about the murder of Overbury, thinking by that to absolve her husband of any share in the plot. She could not have known that her plea of guilty would weaken Somerset's defence. The woman who could go to such lengths in order to win her husband was unlikely to have done anything that might put him in jeopardy. One can well imagine with what fierceness she would have fought her case had she thought that by doing so she could have helped the man she loved.

But Frances Howard, no less than her accomplice Anne Turner, was the victim of a gross subversion of justice. That she was guilty of a cruel and determined attempt to poison Overbury is beyond question, and, being guilty of that, she was thoroughly deserving of the fate that overcame Anne Turner, but that at the last she was allowed to escape. Her confession, however, shackled Somerset at his trial. It put her at the King's mercy. Without endangering her life Somerset dared not come to the crux of his defence, which would have been to demand why Loubel had been allowed to go free, and why the King's physician, Mayerne, had not been examined. To prevent Somerset from asking those questions, which must have given the public a sufficient hint of King James's share in the murder of Overbury, two men stood behind the Earl all through his trial with cloaks over their arms, ready to muffle him. But, whatever may be said of Somerset, the prospect of the cloaks would not have stopped him from attempting those questions. He had sent word to King James that he was "neither Gowrie nor Balmerino," those two earlier victims of James's treachery. The thing that

muffled him was the threat to withdraw the promised mercy to his Countess. And so he kept silent, to be condemned to death as his wife had been, and to join her in the Tower.

Five weary years were the couple to eat their hearts out there, their death sentences remitted, before their ultimate banishment far from the Court to a life of impoverished obscurity in the country. Better for them, one would think, if they had died on Tower Green. It is hard to imagine that the dozen years or so which they were to spend together could contain anything of happiness for them—she the confessed would-be poisoner, and he haunted by the memory of that betrayal of friendship which had begun the process of their double ruin. Frances Howard died in 1632, her husband twenty-three years later. The longer lease of life could have been no blessing to the fallen favourite.

There is a portrait of Frances Howard in the National Portrait Gallery by an unknown artist. It is an odd little face which appears above the elaborate filigree of the stiff lace ruff and under the carefully dressed bush of dark brown hair. With her gay jacket of red gold-embroidered, and her gold-ornamented grey gown, cut low to show the valley between her young breasts, she looks like a child dressed up. If there is no great indication of the beauty which so many poets shed ink over there is less promise of the dire determination which was to pursue a man's life with cruel poisons over several months. It is, however, a narrow little face, and there is a tight-liddedness about the eyes which in an older woman might indicate the bigot. Bigot she proved herself to be, if it be bigotry in a woman to love a man with an intensity that will not stop at murder in order to win him. That is the one thing that may be said for Frances Howard. She did love Robert Carr. She loved him to his ruin.

IV: — A MODEL FOR MR HOGARTH

On a Sunday, the 5th of February, 1733, there came toddling into that narrow passage of the Temple known as Tanfield Court an elderly lady by the name of Mrs Love. It was just after one o'clock of the afternoon. The giants of St Dunstan's behind her had only a minute before rapped out the hour with their clubs.

Mrs Love's business was at once charitable and social. She was going, by appointment made on the previous Friday night, to eat dinner with a frail old lady named Mrs Duncomb, who lived in chambers on the third floor of one of the buildings that had entry from the court. Mrs Duncomb was the widow of a law stationer of the City. She had been a widow for a good number of years. The deceased law stationer, if he had not left her rich, at least had left her in fairly comfortable circumstances. It was said about the environs that she had some property, and this fact, combined with the other that she was obviously nearing the end of life's journey, made her an object of melancholy interest to the womenkind of the neighbourhood.

Mrs Duncomb was looked after by a couple of servants. One of them, Betty Harrison, had been the old lady's companion for a lifetime. Mrs Duncomb, described as "old," was only sixty.[\[16\]](#) Her weakness and bodily condition seem to have made her appear much older. Betty, then, also described as "old," may have been of an age with her mistress, or even older. She was, at all events, not by much less frail. The other servant was a comparatively new addition to the establishment, a fresh little girl of about seventeen, Ann (or Nanny) Price by name.

Mrs Love climbed the three flights of stairs to the top landing. It surprised her, or disturbed her, but little that she found no signs of life on the various floors, because it was, as we have seen, a Sunday. The occupants of the chambers of the staircase, mostly gentlemen connected in one way or another with the law, would be, she knew abroad for the eating of their Sunday dinners, either at their favourite taverns or at commons in the Temple itself. What did rather disturb kindly Mrs Love was the fact that she found Mrs Duncomb's outer door closed—an unwonted fact—and it faintly surprised her that no odour of cooking greeted her nostrils.

Mrs Love knocked. There was no reply. She knocked, indeed, at intervals over a period of some fifteen minutes, still obtaining no response. The disturbed sense of something being wrong became stronger and stronger in the mind of Mrs Love.

On the night of the previous Friday she had been calling upon Mrs Duncomb, and she had found the old lady very weak, very nervous, and very low in spirits. It had not been a very cheerful visit all round, because the old maidservant, Betty Harrison, had also been far from well. There had been a good deal of talk between the old women of dying, a subject to which their minds had been very prone to revert. Besides Mrs Love there were two other visitors, but they too failed to cheer the old couple up. One of the visitors, a laundress of the Temple called Mrs Oliphant, had done her best, poohpoohing such melancholy talk, and attributing the low spirits in which the old women found themselves to the bleakness of the February weather, and promising them that they would find a new lease of life with the advent of spring. But Mrs Betty especially had been hard to console.

"My mistress," she had said to cheerful Mrs Oliphant, "will talk of dying. And she would have me die with her."

As she stood in considerable perturbation of mind on the cheerless third-floor landing that Sunday afternoon Mrs Love found small matter for comfort in her memory of the Friday evening. She remembered that old Mrs Duncomb had spoken complainingly of the lonesomeness which had come upon her floor by the vacation of the chambers opposite her on the landing. The tenant had gone a day or two before, leaving the rooms empty of furniture, and the key with a Mr Twysden.

Mrs. Love, turning to view the door opposite to that on which she had been rapping so long and so ineffectively, had a shuddery feeling that she was alone on the top of the world.

She remembered how she had left Mrs Duncomb on the Friday night. Mrs Oliphant had departed first, accompanied by the second visitor, one Sarah Malcolm, a charwoman who had worked for Mrs Duncomb up to the previous Christmas, and who had called in to see how her former employer was faring. An odd, silent sort of young woman this Sarah, good-looking in a hardfeatured sort of way, she had taken but a very small part in the conversation, but had sat staring rather sullenly into the fire by the side of Betty Harrison, or else casting a flickering glance about the room. Mrs

Love, before following the other two women downstairs, had helped the ailing Betty to get Mrs Duncomb settled for the night. In the dim candle-light and the faint glow of the fire that scarce illumined the wainscoted room the high tester-bed of the old lady, with its curtains, had seemed like a shadowed catafalque, an illusion nothing lessened by the frail old figure under the bedclothing.

It came to the mind of Mrs Love that the illness manifesting itself in Betty on the Friday night had worsened. Nanny, she imagined, must have gone abroad on some errand. The old servant, she thought, was too ill to come to the door, and her voice would be too weak to convey an answer to the knocking. Mrs Love, not without a shudder for the chill feeling of that top landing, betook herself downstairs again to make what inquiry she might. It happened that she met one of her fellow-visitors of the Friday night, Mrs Oliphant.

Mrs Oliphant was sympathetic, but could not give any information. She had seen no member of the old lady's establishment that day. She could only advise Mrs Love to go upstairs again and knock louder.

This Mrs Love did, but again got no reply. She then evolved the theory that Betty had died during the night, and that Nanny, Mrs Duncomb being confined to bed, had gone to look for help, possibly from her sister, and to find a woman who would lay out the body of the old servant. With this in her mind Mrs Love descended the stairs once more, and went to look for another friend of Mrs Duncomb's, a Mrs Rhymer.

Mrs Rhymer was a friend of the old lady's of some thirty years' standing. She was, indeed, named as executrix in Mrs Duncomb's will. Mrs Love finding her and explaining the situation as she saw it, Mrs Rhymer at once returned with Mrs Love to Tanfield Court.

The two women ascended the stairs, and tried pushing the old lady's door. It refused to yield to their efforts. Then Mrs Love went to the staircase window that overlooked the court, and gazed around to see if there was anyone about who might help. Some distance away, at the door, we are told, "of my Lord Bishop of Bangor," was the third of Friday night's visitors to Mrs Duncomb, the charwoman named Sarah Malcolm. Mrs Love hailed her.

"Prithee, Sarah," begged Mrs Love, "go and fetch a smith to open Mrs Duncomb's door."

"I will go at all speed," Sarah assured her, with ready willingness, and off she sped. Mrs Love and Mrs Rhymer waited some time. Sarah came back with Mrs Oliphant in tow, but had been unable to secure the services of a locksmith. This was probably due to the fact that it was a Sunday.

By now both Mrs Love and Mrs Rhymer had become deeply apprehensive, and the former appealed to Mrs Oliphant. "I do believe they are all dead, and the smith is not come!" cried Mrs Love. "What shall we do, Mrs Oliphant?"

Mrs Oliphant, much younger than the others, seems to have been a woman of resource. She had from Mr Twysden, she said, the key of the vacant chambers opposite to Mrs Duncomb's. "Now let me see," she continued, "if I cannot get out of the back chamber window into the gutter, and so into Mrs Duncomb's apartment."

The other women urged her to try.^[17] Mrs Oliphant set off, her heels echoing in the empty rooms. Presently the waiting women heard a pane snap, and they guessed that Mrs Oliphant had broken through Mrs Duncomb's casement to get at the handle. They heard, through the door, the noise of furniture being moved as she got through the window. Then came a shriek, the scuffle of feet. The outer door of Mrs Duncomb's chambers was flung open. Mrs Oliphant, ashen-faced, appeared on the landing. "God! Oh, gracious God!" she cried. "They're all murdered!"

II

All four women pressed into the chambers. All three of the women occupying them had been murdered. In the passage or lobby little Nanny Price lay in her bed in a welter of blood, her throat savagely cut. Her hair was loose and over her eyes, her clenched hands all bloodied about her throat. It was apparent that she had struggled desperately for life. Next door, in the dining-room, old Betty Harrison lay across the press-bed in which she usually slept. Being in the habit of keeping her gown on for warmth, as it was said, she was partially dressed. She had been strangled, it seemed, "with an apron-string or a pack-thread," for there was a deep crease about her neck and the bruised indentations as of knuckles. In her bedroom, also across her bed, lay the dead body of old Mrs Duncomb. There had been here also an attempt to strangle, an unnecessary attempt it appeared, for the crease about the neck was very faint. Frail as the old lady had been, the

mere weight of the murderer's body, it was conjectured, had been enough to kill her.

These pathological details were established on the arrival later of Mr Bigg, the surgeon, fetched from the Rainbow Coffee-house near by by Fairlow, one of the Temple porters. But the four women could see enough for themselves, without the help of Mr Bigg, to understand how death had been dealt in all three cases. They could see quite clearly also for what motive the crime had been committed. A black strong-box, with papers scattered about it, lay beside Mrs Duncomb's bed, its lid forced open. It was in this box that the old lady had been accustomed to keep her money.

If any witness had been needed to say what the black box had contained there was Mrs Rhymer, executrix under the old lady's will. And if Mrs. Rhymer had been at any need to refresh her memory regarding the contents opportunity had been given her no farther back than the afternoon of the previous Thursday. On that day she had called upon Mrs Duncomb to take tea and to talk affairs. Three or four years before, with her rapidly increasing frailness, the old lady's memory had begun to fail. Mrs Rhymer acted for her as a sort of unofficial curator bonis, receiving her money and depositing it in the black box, of which she kept the key.

On the Thursday, old Betty and young Nanny being sent from the room, the old lady had told Mrs Rhymer that she needed some money—a guinea. Mrs Rhymer had gone through the solemn process of opening the black box, and, one must suppose—old ladies nearing their end being what they are—had been at need to tell over the contents of the box for the hundredth time, just to reassure Mrs Duncomb that she thoroughly understood the duties she had agreed to undertake as executrix

At the top of the box was a silver tankard. It had belonged to Mrs Duncomb's husband. In the tankard was a hundred pounds. Beside the tankard lay a bag containing guinea pieces to the number of twenty or so. This was the bag that Mrs Rhymer had carried over to the old lady's chair by the fire, in order to take from it the needed guinea.

There were some half-dozen packets of money in the box, each sealed with black wax and set aside for particular purposes after Mrs Duncomb's death. Other sums, greater in quantity than those contained in the packets, were earmarked in the same way. There was, for example, twenty guineas set aside for the old lady's burial, eighteen moidores to meet unforeseen

contingencies, and in a green purse some thirty or forty shillings, which were to be distributed among poor people of Mrs Duncomb's acquaintance. The ritual of telling over the box contents, if something ghostly, had had its usual effect of comforting the old lady's mind. It consoled her to know that all arrangements were in order for her passing in genteel fashion to her long home, that all the decorums of respectable demise would be observed, and that "the greatest of these" would not be forgotten. The ritual over, the black box was closed and locked, and on her departure Mrs Rhymer had taken away the key as usual.

The motive for the crime, as said, was plain. The black box had been forced, and there was no sign of tankard, packets, green purse, or bag of guineas.

The horror and distress of the old lady's friends that Sunday afternoon may better be imagined than described. Loudest of the four, we are told, was Sarah Malcolm. It is also said that she was, however, the coolest, keen to point out the various methods by which the murderers (for the crime to her did not look like a single-handed effort) could have got into the chambers. She drew attention to the wideness of the kitchen chimney and to the weakness of the lock in the door to the vacant rooms on the other side of the landing. She also pointed out that, since the bolt of the spring-lock of the outer door to Mrs Duncomb's rooms had been engaged when they arrived, the miscreants could not have used that exit.

This last piece of deduction on Sarah's part, however, was made rather negligible by experiments presently carried out by the porter, Fairlow, with the aid of a piece of string. He showed that a person outside the shut door could quite easily pull the bolt to on the inside.

The news of the triple murder quickly spread, and it was not long before a crowd had collected in Tanfield Court, up the stairs to Mrs. Duncomb's landing, and round about the door of Mrs Duncomb's chambers. It did not disperse until the officers had made their investigations and the bodies of the three victims had been removed. And even then, one may be sure, there would still be a few of those odd sort of people hanging about who, in those times as in these, must linger on the scene of a crime long after the last drop of interest has evaporated.

III

Two further actors now come upon the scene. And for the proper grasping of events we must go back an hour or two in time to notice their activities.

They are a Mr Gehagan, a young Irish barrister, and a friend of his named Kerrel.[\[18\]](#) These young men occupy chambers on opposite sides of the same landing, the third floor, over the Alienation Office in Tanfield Court.

Mr Gehagan was one of Sarah Malcolm's employers. That Sunday morning at nine she had appeared in his rooms to do them up and to light the fire. While Gehagan was talking to Sarah he was joined by his friend Kerrel, who offered to stand him some tea. Sarah was given a shilling and sent out to buy tea. She returned and made the brew, then remained about the chambers until the horn blew, as was then the Temple custom, for commons. The two young men departed. After commons they walked for a while in the Temple Gardens, then returned to Tanfield Court.

By this time the crowd attracted by the murder was blocking up the court, and Gehagan asked what was the matter. He was told of the murder, and he remarked to Kerrel that the old lady had been their charwoman's acquaintance.

The two friends then made their way to a coffee-house in Covent Garden. There was some talk there of the murder, and the theory was advanced by some one that it could have been done only by some laundress who knew the chambers and how to get in and out of them. From Covent Garden, towards night, Gehagan and Kerrel went to a tavern in Essex Street, and there they stayed carousing until one o'clock in the morning, when they left for the Temple. They were not a little astonished on reaching their common landing to find Kerrel's door open, a fire burning in the grate of his room, and a candle on the table. By the fire, with a dark riding-hood about her head, was Sarah Malcolm. To Kerrel's natural question of what she was doing there at such an unearthly hour she muttered something about having things to collect. Kerrel then, reminding her that Mrs Duncomb had been her acquaintance, asked her if anyone had been "taken up" for the murder.

"That Mr Knight," Sarah replied, "who has chambers under her, has been absent two or three days. He is suspected."

"Well," said Kerrel, remembering the theory put forward in the coffee-house, and made suspicious by her presence at that strange hour, "nobody

that was acquainted with Mrs Duncomb is wanted here until the murderer is discovered. Look out your things, therefore, and begone!"

Kerrel's suspicion thickened, and he asked his friend to run downstairs and call up the watch. Gehagan ran down, but found difficulty in opening the door below, and had to return. Kerrel himself went down then, and came back with two watchmen. They found Sarah in the bedroom at a chest of drawers, in which she was turning over some linen that she claimed to be hers. The now completely suspicious Kerrel went to his closet, and noticed that two or three waistcoats were missing from a portmanteau. He asked Sarah where they were; upon which Sarah, with an eye to the watchmen and to Gehagan, begged to be allowed to speak with him alone.

Kerrel refused, saying he could have no business with her that was secret.

Sarah then confessed that she had pawned the missing waistcoats for two guineas, and begged him not to be angry. Kerrel asked her why she had not asked him for money. He could readily forgive her for pawning the waistcoats, but, having heard her talk of Mrs Lydia Duncomb, he was afraid she was concerned with the murder. A pair of earrings were found in the drawers, and these Sarah claimed, putting them in her corsage. An odd-looking bundle in the closet then attracted Kerrel's attention, and he kicked it, and asked Sarah what it was. She said it was merely dirty linen wrapped up in an old gown. She did not wish it exposed. Kerrel made further search, and found that other things were missing. He told the watch to take the woman and hold her strictly.

Sarah was led away. Kerrel, now thoroughly roused, continued his search, and he found underneath his bed another bundle. He also came upon some bloodstained linen in another place, and in a close-stool a silver tankard, upon the handle of which was a lot of dried blood.

Kerrel's excitement passed to Gehagan, and the two of them went at speed downstairs yelling for the watch. After a little the two watchmen reappeared, but without Sarah. They had let her go, they said, because they had found nothing on her, and, besides, she had not been charged before a constable.

One here comes upon a recital by the watchmen which reveals the extraordinary slackness in dealing with suspect persons that characterized the guardians of the peace in London in those times. They had let the woman go, but she had come back. Her home was in Shoreditch, she said,

and rather than walk all that way on a cold and boisterous night she had wanted to sit up in the watch-house. The watchmen refused to let her do this, but ordered her to "go about her business," advising her sternly at the same time to turn up again by ten o'clock in the morning. Sarah had given her word, and had gone away.

On hearing this story Kerrel became very angry, threatening the two watchmen, Hughes and Mastreter, with Newgate if they did not pick her up again immediately. Upon this the watchmen scurried off as quickly as their age and the cumbrous nature of their clothing would let them. They found Sarah in the company of two other watchmen at the gate of the Temple. Hughes, as a means of persuading her to go with them more easily, told her that Kerrel wanted to speak with her, and that he was not angry any longer. Presently, in Tanfield Court, they came on the two young men carrying the tankard and the bloodied linen. This time it was Gehagan who did the talking. He accused Sarah furiously, showing her the tankard. Sarah attempted to wipe the blood off the tankard handle with her apron. Gehagan stopped her.

Sarah said the tankard was her own. Her mother had given it her, and she had had it for five years. It was to get the tankard out of pawn that she had taken Kerrel's waistcoats, needing thirty shillings. The blood on the handle was due to her having pricked a finger.

With this began the series of lies Sarah Malcolm put up in her defence. She was hauled into the watchman's box and more thoroughly searched. A green silk purse containing twenty-one guineas was found in the bosom of her dress. This purse Sarah declared she had found in the street, and as an excuse for its cleanliness, unlikely with the streets as foul as they were at that age and time of year, said she had washed it. Both bundles of linen were bloodstained. There was some doubt as to the identity of the green purse. Mrs Rhymer, who, as we have seen, was likelier than anyone to recognize it, would not swear it was the green purse that had been in Mrs Duncomb's black box. There was, however, no doubt at all about the tankard. It had the initials "C. D." engraved upon it, and was at once identified as Mrs Duncomb's. The linen which Sarah had been handling in Mr Kerrel's drawer was said to be darned in a way recognizable as Mrs Duncomb's. It had lain beside the tankard and the money in the black box.

There was, it will be seen, but very little doubt of Sarah Malcolm's guilt. According to the reports of her trial, however, she fought fiercely for her life, questioning the witnesses closely. Some of them, such as could remember small points against her, but who failed in recollection of the colour of her dress or of the exact number of the coins said to be lost, she vehemently denounced.

One of the Newgate turnkeys told how some of the missing money was discovered. Being brought from the Compter to Newgate, Sarah happened to see a room in which debtors were confined. She asked the turnkey, Roger Johnson, if she could be kept there. Johnson replied that it would cost her a guinea, but that from her appearance it did not look to him as if she could afford so much. Sarah seems to have bragged then, saying that if the charge was twice or thrice as much she could send for a friend who would pay it. Her attitude probably made the turnkey suspicious. At any rate, after Sarah had mixed for some time with the felons in the prison taproom, Johnson called her out and, lighting the way by use of a link, led her to an empty room.

"Child," he said, "there is reason to suspect that you are guilty of this murder, and therefore I have orders to search you." He had, he admitted, no such orders. He felt under her arms; whereupon she started and threw back her head. Johnson clapped his hand on her head and felt something hard. He pulled off her cap, and found a bag of money in her hair.

"I asked her," Johnson said in the witness-box, "how she came by it, and she said it was some of Mrs Duncomb's money. 'But, Mr Johnson,' says she, 'I'll make you a present of it if you will keep it to yourself, and let nobody know anything of the matter. The other things against me are nothing but circumstances, and I shall come well enough off. And therefore I only desire you to let me have threepence or sixpence a day till the sessions be over; then I shall be at liberty to shift for myself.'"

To the best of his knowledge, said this turnkey, having told the money over, there were twenty moidores, eighteen guineas, five broad pieces, a half-broad piece, five crowns, and two or three shillings. He thought there was also a twenty-five-shilling piece and some others, twenty-three-shilling pieces. He had sealed them up in the bag, and there they were (producing the bag in court).

The court asked how she said she had come by the money.

Johnson's answer was that she had said she took the money and the bag from Mrs Duncomb, and that she had begged him to keep it secret. "My dear," said this virtuous gaoler, "I would not secrete the money for the world.

"She told me, too," runs Johnson's recorded testimony, "that she had hired three men to swear the tankard was her grandmother's, but could not depend on them: that the name of one was William Denny, another was Smith, and I have forgot the third. After I had taken the money away she put a piece of mattress in her hair, that it might appear of the same bulk as before. Then I locked her up and sent to Mr Alstone, and told him the story. 'And,' says I, 'do you stand in a dark place to be witness of what she says, and I'll go and examine her again.'"

Sarah interrupted: "I tied my handkerchief over my hair to hide the money, but Buck,[\[19\]](#) happening to see my hair fall down, he told Johnson; upon which Johnson came to see me and said, 'I find the cole's planted in your hair. Let me keep it for you and let Buck know nothing about it.' So I gave Johnson five broad pieces and twenty-two guineas, not gratis, but only to keep for me, for I expected it to be returned when sessions was over. As to the money, I never said I took it from Mrs Duncomb; but he asked me what they had to rap against me. I told him only a tankard. He asked me if it was Mrs Duncomb's, and I said yes."

The Court: "Johnson, were those her words: 'This is the money and bag that I took'?"

Johnson: "Yes, and she desired me to make away with the bag."

Johnson's evidence was confirmed in part by Alstone, another officer of the prison. He said he told Johnson to get the bag from the prisoner, as it might have something about it whereby it could be identified. Johnson called the girl, while Alstone watched from a dark corner. He saw Sarah give Johnson the bag, and heard her ask him to burn it. Alstone also deposed that Sarah told him (Alstone) part of the money found on her was Mrs Duncomb's.

There is no need here to enlarge upon the oddly slack and casual conditions of the prison life of the time as revealed in this evidence. It will be no news to anyone who has studied contemporary criminal history. There is a point, however, that may be considered here, and that is the familiarity

it suggests on the part of Sarah with prison conditions and with the cant terms employed by criminals and the people handling them.

Sarah, though still in her earliest twenties,[\[20\]](#) was known already—if not in the Temple—to have a bad reputation. It is said that her closest friends were thieves of the worst sort. She was the daughter of an Englishman, at one time a public official in a small way in Dublin. Her father had come to London with his wife and daughter, but on the death of the mother had gone back to Ireland. He had left his daughter behind him, servant in an ale-house called the Black Horse.

Sarah was a fairly well-educated girl. At the ale-house, however, she formed an acquaintance with a woman named Mary Tracey, a dissolute character, and with two thieves called Alexander. Of these three disreputable people we shall be hearing presently, for Sarah tried to implicate them in this crime which she certainly committed alone. It is said that the Newgate officers recognized Sarah on her arrival. She had often been to the prison to visit an Irish thief, convicted for stealing the pack of a Scots pedlar.

It will be seen from Sarah's own defence how she tried to implicate Tracey and the two Alexanders:

"I freely own that my crimes deserve death; I own that I was accessory to the robbery, but I was innocent of the murder, and will give an account of the whole affair.

"I lived with Mrs Lydia Duncomb about three months before she was murdered. The robbery was contrived by Mary Tracey, who is now in confinement, and myself, my own vicious inclinations agreeing with hers. We likewise proposed to rob Mr Oakes in Thames Street. She came to me at my master's, Mr Kerrel's chambers, on the Sunday before the murder was committed; he not being then at home, we talked about robbing Mrs Duncomb. I told her I could not pretend to do it by myself, for I should be found out. 'No,' says she, 'there are the two Alexanders will help us.' Next day I had seventeen pounds sent me out of the country, which I left in Mr Kerrel's drawers. I met them all in Cheapside the following Friday, and we agreed on the next night, and so parted.

"Next day, being Saturday, I went between seven and eight in the evening to see Mrs Duncomb's maid, Elizabeth Harrison, who was very bad. I

stayed a little while with her, and went down, and Mary Tracey and the two Alexanders came to me about ten o'clock, according to appointment."

On this statement the whole implication of Tracey and the Alexanders by Sarah stands or falls. It falls for the reason that the Temple porter had seen no stranger pass the gate that night, nobody but Templars going to their chambers. The one fact riddles the rest of Sarah's statement in defence, but, as it is somewhat of a masterpiece in lying invention, I shall continue to quote it. "Mary Tracey would have gone about the robbery just then, but I said it was too soon. Between ten and eleven she said, 'We can do it now.' I told her I would go and see, and so went upstairs, and they followed me. I met the young maid on the stairs with a blue mug; she was going for some milk to make a sack posset. She asked me who were those that came after me. I told her they were people going to Mr Knight's below. As soon as she was gone I said to Mary Tracey, 'Now do you and Tom Alexander go down. I know the door is ajar, because the old maid is ill, and can't get up to let the young maid in when she comes back.' Upon that, James Alexander, by my order, went in and hid himself under the bed; and as I was going down myself I met the young maid coming up again. She asked me if I spoke to Mrs Betty. I told her no; though I should have told her otherwise, but only that I was afraid she might say something to Mrs Betty about me, and Mrs Betty might tell her I had not been there, and so they might have a suspicion of me."

There is a possibility that this part of her confession, the tale of having met the young maid, Nanny, may be true.[\[21\]](#) And here may the truth of the murder be hidden away. Very likely it is, indeed, that Sarah encountered the girl going out with the blue mug for milk to make a sack posset, and she may have slipped in by the open door to hide under the bed until the moment was ripe for her terrible intention. On the other hand, if there is truth in the tale of her encountering the girl again as she returned with the milk—and her cunning in answering "no" to the maid's query if she had seen Mrs Betty has the real ring—other ways of getting an entry were open to her. We know that the lock of the vacant chambers opposite Mrs Duncomb's would have yielded to small manipulation. It is not at all unlikely that Sarah, having been charwoman to the old lady, and with the propensities picked up from her Shoreditch acquaintances, had made herself familiar with the locks on the landing. So that she may have waited her hour in the empty rooms, and have got into Mrs Duncomb's by the same method

used by Mrs Oliphant after the murder. She may even have slipped back the spring-catch of the outer door. One account of the murder suggests that she may have asked Ann Price, on one pretext or other, to let her share her bed. It certainly was not beyond the callousness of Sarah Malcolm to have chosen this method, murdering the girl in her sleep, and then going on to finish off the two helpless old women.

The truth, as I have said, lies hidden in this extraordinarily mendacious confection. Liars of Sarah's quality are apt to base their fabrications on a structure, however slight, of truth. I continue with the confession, then, for what the reader may get out of it.

"I passed her [Nanny Price] and went down, and spoke with Tracey and Alexander, and then went to my master's chambers, and stirred up the fire. I stayed about a quarter of an hour, and when I came back I saw Tracey and Tom Alexander sitting on Mrs Duncomb's stairs, and I sat down with them. At twelve o'clock we heard some people walking, and by and by Mr Knight came home, went to his room, and shut the door. It was a very stormy night; there was hardly anybody stirring abroad, and the watchmen kept up close, except just when they cried the hour. At two o'clock another gentleman came, and called the watch to light his candle, upon which I went farther upstairs, and soon after this I heard Mrs Duncomb's door open; James Alexander came out, and said, 'Now is the time.' Then Mary Tracey and Thomas Alexander went in, but I stayed upon the stair to watch. I had told them where Mrs Duncomb's box stood. They came out between four and five, and one of them called to me softly, and said, 'Hip! How shall I shut the door?' Says I, 'Tis a spring-lock; pull it to, and it will be fast.' And so one of them did. They would have shared the money and goods upon the stairs, but I told them we had better go down; so we went under the arch by Fig-tree Court, where there was a lamp. I asked them how much they had got. They said they had found fifty guineas and some silver in the maid's purse, about one hundred pounds in the chest of drawers, besides the silver tankard and the money in the box and several other things; so that in all they had got to the value of about three hundred pounds in money and goods. They told me that they had been forced to gag the people. They gave me the tankard with what was in it and some linen for my share, and they had a silver spoon and a ring and the rest of the money among themselves. They advised me to be cunning and plant the money and goods

underground, and not to be seen to be flush. Then we appointed to meet at Greenwich, but we did not go.[\[22\]](#)

"I was taken in the manner the witnesses have sworn, and carried to the watch-house, from whence I was sent to the Compter, and so to Newgate. I own that I said the tankard was mine, and that it was left me by my mother: several witnesses have sworn what account I gave of the tankard being bloody; I had hurt my finger, and that was the occasion of it. I am sure of death, and therefore have no occasion to speak anything but the truth. When I was in the Compter I happened to see a young man[\[23\]](#) whom I knew, with a fetter on. I told him I was sorry to see him there, and I gave him a shilling, and called for half a quartern of rum to make him drink. I afterwards went into my room, and heard a voice call me, and perceived something poking behind the curtain. I was a little surprised, and looking to see what it was, I found a hole in the wall, through which the young man I had given the shilling to spoke to me, and asked me if I had sent for my friends. I told him no. He said he would do what he could for me, and so went away; and some time after he called to me again, and said, 'Here is a friend.'

"I looked through, and saw Will Gibbs come in. Says he, 'Who is there to swear against you?' I told him my two masters would be the chief witnesses. 'And what can they charge you with?' says he. I told him the tankard was the only thing, for there was nothing else that I thought could hurt me. 'Never fear, then,' says he; 'we'll do well enough. We will get them that will rap the tankard was your grandmother's, and that you was in Shoreditch the night the act was committed; and we'll have two men that shall shoot your masters. But,' said he, 'one of the witnesses is a woman, and she won't swear under four guineas; but the men will swear for two guineas apiece,' and he brought a woman and three men. I gave them ten guineas, and they promised to wait for me at the Bull Head in Broad Street. But when I called for them, when I was going before Sir Richard Brocas, they were not there. Then I found I should be sent to Newgate, and I was full of anxious thoughts; but a young man told me I had better go to the Whit than to the Compter.

"When I came to Newgate I had but eighteenpence in silver, besides the money in my hair, and I gave eighteenpence for my garnish. I was ordered to a high place in the gaol. Buck, as I said before, having seen my hair

loose, told Johnson of it, and Johnson asked me if I had got any cole planted there. He searched and found the bag, and there was in it thirty-six moidores, eighteen guineas, five crown pieces, two half-crowns, two broad pieces of twenty-five shillings, four of twenty-three shillings, and one half-broad piece. He told me I must be cunning, and not to be seen to be flush of money. Says I, 'What would you advise me to do with it?' 'Why,' says he, 'you might have thrown it down the sink, or have burnt it, but give it to me, and I'll take care of it.' And so I gave it to him. Mr Alstone then brought me to the condemned hold and examined me. I denied all till I found he had heard of the money, and then I knew my life was gone. And therefore I confessed all that I knew. I gave him the same account of the robbers as I have given you. I told him I heard my masters were to be shot, and I desired him to send them word. I described Tracey and the two Alexanders, and when they were first taken they denied that they knew Mr Oakes, whom they and I had agreed to rob.

"All that I have now declared is fact, and I have no occasion to murder three persons on a false accusation; for I know I am a condemned woman. I know I must suffer an ignominious death which my crimes deserve, and I shall suffer willingly. I thank God He has given me time to repent, when I might have been snatched off in the midst of my crimes, and without having an opportunity of preparing myself for another world." There is a glibness and an occasional turn of phrase in this confession which suggests some touching up from the pen of a pamphleteer, but one may take it that it is, in substance, a fairly accurate report. In spite of the pleading which threads it that she should be regarded as accessory only in the robbery, the jury took something less than a quarter of an hour to come back with their verdict of "Guilty of murder." Sarah Malcolm was sentenced to death in due form.

V

Having regard to the period in which this confession was made, and considering the not too savoury reputations of Mary Tracey and the brothers Alexander, we can believe that those three may well have thought themselves lucky to escape from the mesh of lies Sarah tried to weave about them.[\[24\]](#) It was not to be doubted on all the evidence that she alone committed that cruel triple murder, and that she alone stole the money which was found hidden in her hair. The bulk of the stolen clothing was found in her possession, bloodstained. A white-handled case-knife,

presumably that used to cut Nanny Price's throat, was seen on a table by the three women who, with Sarah herself, were first on the scene of the murder. It disappeared later, and it is to be surmised that Sarah Malcolm managed to get it out of the room unseen. But to the last moment possible Sarah tried to get her three friends involved with her. Say, which is not at all unlikely, that Tracey and the Alexanders may have first suggested the robbery to her, and her vindictive manœuvring may be understood.

It is said that when she heard that Tracey and the Alexanders had been taken she was highly pleased. She smiled, and said that she could now die happy, since the real murderers had been seized. Even when the three were brought face to face with her for identification she did not lack brazenness. "Ay," she said, "these are the persons who committed the murder." "You know this to be true," she said to Tracey. "See, Mary, what you have brought me to. It is through you and the two Alexanders that I am brought to this shame, and must die for it. You all promised me you would do no murder, but, to my great surprise, I found the contrary."

She was, you will perceive, a determined liar. Condemned, she behaved with no fortitude. "I am a dead woman!" she cried, when brought back to Newgate. She wept and prayed, lied still more, pretended illness, and had fits of hysteria. They put her in the old condemned hold with a constant guard over her, for fear that she would attempt suicide.

The idlers of the town crowded to the prison to see her, for in the time of his Blessed Majesty King George II Newgate, with the condemned hold and its content, composed one of the fashionable spectacles. Young Mr Hogarth, the painter, was one of those who found occasion to visit Newgate to view the notorious murderess. He even painted her portrait. It is said that Sarah dressed specially for him in a red dress, but that copy—one which belonged to Horace Walpole—which is now in the National Gallery of Scotland, Edinburgh, shows her in a grey gown, with a white cap and apron. Seated to the left, she leans her folded hands on a table on which a rosary and a crucifix lie. Behind her is a dark grey wall, with a heavy grating over a dark door to the right. There are varied mezzotints of this picture by Hogarth himself still extant, and there is a pen-and-wash drawing of Sarah by Samuel Wale in the British Museum.

The stories regarding the last days in life of Sarah Malcolm would occupy more pages than this book can afford to spend on them. To the last

she hoped for a reprieve. After the "dead warrant" had arrived, to account for a paroxysm of terror that seized her, she said that it was from shame at the idea that, instead of going to Tyburn, she was to be hanged in Fleet Street among all the people that knew her, she having just heard the news in chapel. This too was one of her lies. She had heard the news hours before. A turnkey, pointing out the lie to her, urged her to confess for the easing of her mind.

One account I have of the Tanfield Court murders speaks of the custom there was at this time of the bellman of St Sepulchre's appearing outside the gratings of the condemned hold just after midnight on the morning of executions.^[25] This performance was provided for by bequest from one Robert Dove, or Dow, a merchant-tailor. Having rung his bell to draw the attention of the condemned (who, it may be gathered, were not supposed to be at all in want of sleep), the bellman recited these verses:

*All you that in the condemned hold do lie,
Prepare you, for to-morrow you shall die.
Watch all and pray; the hour is drawing near
That you before th' Almighty must appear.*

*Examine well yourselves, in time repent,
That you may not t'eternal flames be sent:
And when St 'Pulchre's bell to-morrow tolls,
The Lord above have mercy on your souls!
Past twelve o'clock!^[26]*

A fellow-prisoner or a keeper bade Sarah Malcolm heed what the bellman said, urging her to take it to heart. Sarah said she did, and threw the bellman down a shilling with which to buy himself a pint of wine.

Sarah, as we have seen, was denied the honour of procession to Tyburn. Her sentence was that she was to be hanged in Fleet Street, opposite the Mitre Court, on the 7th of March, 1733. And hanged she was accordingly. She fainted in the tumbril, and took some time to recover. Her last words were exemplary in their piety, but in the face of her vindictive lying, unretracted to the last, it were hardly exemplary to repeat them.

She was buried in the churchyard of St Sepulchre's.

V: — ALMOST A LADY[27]

Born (probably illegitimately) in a fisherman's cottage, reared in a workhouse, employed in a brothel, won at cards by a royal duke, mistress of that duke, married to a baron, received at Court by three kings (though not much in the way of kings), accused of cozenage and tacitly of murder, died full of piety, 'cutting up' for close on L150,000—there, as it were in a nutshell, you have the life of Sophie Dawes, Baronne de Feucheres.

In the introduction to her exhaustive and accomplished biography of Sophie Dawes,[28] from which a part of the matter for this resume is drawn, Mme Violette Montagu, speaking of the period in which Sophie lived, says that "Paris, with its fabulous wealth and luxury, seems to have been looked upon as a sort of Mecca by handsome Englishwomen with ambition and, what is absolutely necessary if they wish to be really successful, plenty of brains."

It is because Sophie had plenty of brains of a sort, besides the attributes of good looks, health, and by much a disproportionate share of determination, and because, with all that she attained to, she died quite ostracized by the people with whom it had been her life's ambition to mix, and was thus in a sense a failure—it is because of these things that it is worth while going into details of her career, expanding the precis with which this chapter begins.

Among the women selected as subjects for this book Sophie Dawes as a personality wins 'hands down.' Whether she was a criminal or not is a question even now in dispute. Unscrupulous she certainly was, and a good deal of a rogue. That modern American product the 'gold-digger' is what she herself would call a 'piker' compared with the subject of this chapter. The blonde bombshell, with her 'sugar daddy,' her alimony 'racket,' and the hundred hard-boiled dodges wherewith she chisels money and goods from her prey, is, again in her own crude phraseology, 'knocked for a row of ash-cans' by Sophie Dawes. As, I think, you will presently see.

Sophie was born at St Helens, Isle of Wight—according to herself in 1792. There is controversy on the matter. Mme Montagu in her book says

that some of Sophie's biographers put the date at 1790, or even 1785. But Mme Montagu herself reproduces the list of wearing apparel with which Sophie was furnished when she left the 'house of industry' (the workhouse). It is dated 1805. In those days children were not maintained in poor institutions to the mature ages of fifteen or twenty. They were supposed to be armed against life's troubles at twelve or even younger. Sophie, then, could hardly have been born before 1792, but is quite likely to have been born later.

The name of Sophie's father is given as "Daw." Like many another celebrity, as, for example, Walter Raleigh and Shakespeare, Sophie spelled her name variously, though ultimately she fixed on "Dawes." Richard, or Dickey, Daw was a fisherman for appearance sake and a smuggler for preference. The question of Sophie's legitimacy arises from the fact that her mother, Jane Callaway, was registered at death as "a spinster." Sophie was one of ten children. Dickey Daw drank his family into the poorhouse, an institution which sent Sophie to fend for herself in 1805, procuring her a place as servant at a farm on the island.

Service on a farm does not appear to have appealed to Sophie. She escaped to Portsmouth, where she found a job as hotel chambermaid. Tiring of that, she went to London and became a milliner's assistant. A little affair we hear, in which a mere water-carrier was an equal participant, lost Sophie her place. We next have word of her imitating Nell Gwynn, both in selling oranges to playgoers and in becoming an actress—not, however, at Old Drury, but at the other patent theatre, Covent Garden. Save that as a comedian she never took London by storm, and that she lacked Nell's unfailing good humour, Sophie in her career matches Nell in more than superficial particulars. Between selling oranges and appearing on the stage Sophie seems to have touched bottom for a time in poverty. But her charms as an actress captivated an officer by and by, and she was established as his mistress in a house at Turnham Green. Tiring of her after a time—Sophie, it is probable, became exigent with increased comfort—her protector left her with an annuity of £50.

The annuity does not appear to have done Sophie much good. We next hear of her as servant-maid in a Piccadilly brothel, a lupanar much patronized by wealthy emigres from France, among whom was Louis-

Henri-Joseph, Duc de Bourbon and later Prince de Conde, a man at that time of about fifty-four.

The Duc's attention was directed to the good looks of Sophie by a manservant of his. Mme Montagu says of Sophie at this time that "her face had already lost the first bloom of youth and innocence." Now, one wonders if that really was so, or if Mme Montagu is making a shot at a hazard. She describes Sophie a little earlier than this as having developed into a fine young woman, not exactly pretty or handsome, but she held her head gracefully, and her regular features were illumined by a pair of remarkably bright and intelligent eyes. She was tall and squarely built, with legs and arms which might have served as models for a statue of Hercules. Her muscular force was extraordinary. Her lips were rather thin, and she had an ugly habit of contracting them when she was angry. Her intelligence was above the average, and she had a good share of wit.

At the time when the Duc de Bourbon came upon her in the Piccadilly stew the girl was probably no more than eighteen. If one may judge her character from the events of her subsequent career there was an outstanding resiliency and a resoluteness as main ingredients of her make-up, qualities which would go a long way to obviating any marks that might otherwise have been left on her by the ups and downs of a mere five years in the world. If, moreover, Mme Montagu's description of her is a true one it is clear that Sophie's good looks were not of the sort to make an all-round appeal. The ways in which attractiveness goes, both in men and in women, are infinite in their variety. The reader may recall, in this respect, what was said in the introductory chapter about Kate Webster and the instance of the bewhiskered 'Fina of the Spanish tavern. And since a look of innocence and the bloom of youth may, and very often do, appear on the faces of individuals who are far from being innocent or even young, it may well be that Sophie in 1810, servant-maid in a brothel though she was, still kept a look of country freshness and health, unjaded enough to whet the dulled appetite of a bagnio-haunting old rip. The odds are, at all events, that Sophie was much less artificial in her charms than the practised ladies of complacency upon whom she attended. With her odd good looks she very likely had just that subacid leaven for which, in the alchemy of attraction, the Duc was in search.

The Duc, however, was not the only one to whom Sophie looked desirable. Two English peers had an eye on her—the Earl of Winchilsea and the Duke of Kent. This is where the card affair comes in. The Duc either played whist with the two noblemen for sole rights in Sophie or, what is more likely, cut cards with them during a game. The Duc won. Whether his win may be regarded as lucky or not can be reckoned, according to the taste and fancy of the reader, from the sequelae of some twenty years.

II

With the placing of Sophie dans ses meubles by the Duc de Bourbon there began one of the most remarkable turns in her career. In 1811 he took a house for her in Gloucester Street, Queen's Square, with her mother as duenna, and arranged for the completion of her education.

As a light on her character hardly too much can be made of this stage in her development. It is more than likely that the teaching was begun at Sophie's own demand, and by the use she made of the opportunities given her you may measure the strength of her ambition. Here was no rich man's doxy lazily seeking a veneer of culture, enough to gloss the rough patches of speech and idea betraying humble origin. This fisherman's child, workhouse girl, ancilla of the bordels, with the thin smattering of the three R's she had acquired in the poor institution, set herself, with a wholehearted concentration which a Newnham 'swot' might envy, to master modern languages, with Greek, Latin, and music. At the end of three years she was a good linguist, could play and sing well enough to entertain and not bore the most intelligent in the company the Duc kept, and to pass in that company—the French emigre set in London—as a person of equal education. If, as it is said, Sophie, while she could read and write French faultlessly, never could speak it without an English accent, it is to be remembered that the flexibility of tongue and mind needed for native-sounding speech in French (or any other language) is so exceptional as to be practically non-existent among her compatriots to this day. The fault scarcely belittles her achievement. As well blame a one-legged man for hopping when trying to run. Consider the life Sophie had led, the sort of people with whom she had associated, and that temptation towards *laissez-faire* which conquers all but the rarest woman in the mode of life in which she was existing, and judge of the constancy of purpose that kept that little nose so steadfastly in Plutarch and Xenophon.

If in the year 1812 the Duc began to allow his little Sophie about L800 a year in francs as pin-money he was no more generous than Sophie deserved. The Duc was very rich, despite the fact that his father, the old Prince de Conde, was still alive, and so, of course, was enjoying the income from the family estates.

There is no room here to follow more than the barest outline of the Duc de Bourbon's history. Fully stated, it would be the history of France. He was a son of the Prince de Conde who collected that futile army beyond the borders of France in the royalist cause in the Revolution. Louis-Henri was wounded in the left arm while serving there, so badly wounded that the hand was practically useless. He came to England, where he lived until 1814, when he went back to France to make his unsuccessful attempt to raise the Vendee. Then he went to Spain.

At this time he intended breaking with Sophie, but when he got back to Paris in 1815 he found the lady waiting for him. It took Sophie some eighteen months to bring his Highness up to scratch again. During this time the Duc had another English fancy, a Miss Harris, whose reign in favour, however, did not withstand the manoeuvring of Sophie.

Sophie as a mistress in England was one thing, but Sophie unattached as a mistress in France was another. One wonders why the Duc should have been squeamish on this point. Perhaps it was that he thought it would look vulgar to take up a former mistress after so long. At all events, he was ready enough to resume the old relationship with Sophie, provided she could change her name by marriage. Sophie was nothing loth. The idea fell in with her plans. She let it get about that she was the natural daughter of the Duc, and soon had in tow one Adrien-Victor de Feucheres. He was an officer of the Royal Guard. Without enlarging on the all-round tawdriness of this contract it will suffice here to say that Sophie and Adrien were married in London in August of 1818, the Duc presenting the bride with a dowry of about L5600 in francs. Next year de Feucheres became a baron, and was made aide-de-camp to the Duc.

Incredible as it may seem, de Feucheres took four years to realize what was the real relationship between his wife and the Prince de Conde. The aide-de-camp and his wife had a suite of rooms in the Prince's favourite chateau at Chantilly, and the ambition which Sophie had foreseen would be furthered by the marriage was realized. She was received as La Baronne de

Feucheres at the Court of Louis XVIII. She was happy—up to a point. Some unpretty traits in her character began to develop: a violent temper, a tendency to hysterics if crossed, and, it is said, a leaning towards avaricious ways. At the end of four years the Baron de Feucheres woke up to the fact that Sophie was deceiving him. It does not appear, however, that he had seen through her main deception, because it was Sophie herself, we are told, who informed him he was a fool—that she was not the Prince's daughter, but his mistress.

Having waked up thus belatedly, or having been woken up by Sophie in her ungoverned ill-temper, de Feucheres acted with considerable dignity. He begged to resign his position as aide to the Prince, and returned his wife's dowry. The departure of Sophie's hitherto complacent husband rather embarrassed the Prince. He needed Sophie but felt he could not keep her unattached under his roof and he sent her away—but only for a few days. Sophie soon was back again in Chantilly.

The Prince made some attempt to get de Feucheres to return, but without success. De Feucheres applied for a post in the Army of Spain, an application which was granted at once. It took the poor man seven years to secure a judicial separation from his wife.

The scandal of this change in the menage of Chantilly—it happened in 1822—reached the ears of the King, and the Baronne de Feucheres was forbidden to appear at Court. All Sophie's energies from then on were concentrated on getting the ban removed. She explored all possible avenues of influence to this end, and, incidentally drove her old lover nearly frantic with her complaints giving him no peace. Even a rebuff from the Duchesse de Berry, widow of the son of that prince who was afterwards Charles X, did not put her off. She turned up one day at the Tuileries, to be informed by an usher that she could not be admitted.

This desire to be reinstated in royal favour is at the back of all Sophie's subsequent actions—this and her intention of feathering her own nest out of the estate of her protector. It explains why she worked so hard to have the Prince de Conde assume friendly relations with a family whose very name he hated: that of the Duc d'Orleans. It is a clue to the mysterious death, eight years later, of the Prince de Conde, last of the Condes, in circumstances which were made to pass as suicide, but which in

unhampered inquiry would almost certainly have been found to indicate murder.

III

Louis-Henri-Joseph, Duc de Bourbon and Prince de Conde, seems to have been rather a simple old man: a useless old sinner, true enough, but relatively harmless in his sinning, relatively venial in his uselessness. It were futile to seek for the morality of a later age in a man of his day and rank and country, just as it were obtuse to look for greatness in one so much at the mercy of circumstance. As far as bravery went he had shown himself a worthy descendant of "the Great Conde." But, surrounded by the vapid jealousies of the most useless people who had ever tried to rule a country, he, no more than his father, had the faintest chance to show the Conde quality in war. Adrift as a comparatively young man, his world about his ears, with no occupation, small wonder that in idleness he fell into the pursuit of satisfactions for his baser appetites. He would have been, there is good reason to believe, a happy man and a busy one in a camp. There is this to be said for him: that alone among the spineless crowd of royalists feebly waiting for the miracle which would restore their privilege he attempted a blow for the lost cause. But where in all that bed of disintegrating chalk was the flint from which he might have evoked a spark?

The great grief of the Prince's life was the loss of his son, the young Duc d'Enghien, shamefully destroyed by Bonaparte. It is possible that much of the Prince's inertia was due to this blow. He had married, at the early age of fourteen, Louise-Marie-Therese-Mathilde d'Orleans, daughter of Louis-Philippe, Duc d'Orleans and the Duchesse de Chartres, the bride being six years older than her husband. Such a marriage could not last. It merely sustained the honeymoon and the birth of that only son. The couple were apart in eighteen months, and after ten years they never even saw each other again. About the time when Sophie's husband found her out and departed the Princesse died. The Prince was advised to marry again, on the chance that an heir might be born to the large fortune he possessed. But Sophie by then had become a habit with the Prince—a bad one—and the old man was content to be left to his continual hunting, and not to bother over the fact that he was the last of his ancient line.

It may be easily believed that the Prince's disinclination to marry again contented Sophie very well. And the fact that he had no direct heir was one

in which she saw possibilities advantageous to herself.

The Prince was then sixty-six years old. In the course of nature he was almost bound to predecease her. His wealth was enormous, and out of it Sophie wanted as much by bequest as she could get. She was much too shrewd, however, to imagine that, even if she did contrive to be made his sole heir, the influential families who had an eye upon the great possessions of the Prince, and who through relationship had some right to expect inheritance, would allow such a will to go uncontested. She therefore looked about among the Prince's connexions for some one who would accept coheirship with herself, and whose family would be strong enough in position to carry through probate on such terms, but at the same time would be grateful enough to her and venal enough to further her aim of being reinstated at Court. Her choice in this matter shows at once her political cunning, which would include knowledge of affairs, and her ability as a judge of character.

It should be remembered that, in spite of his title of Duc de Bourbon, Sophie's elderly protector was only distantly of that family. He was descended in direct line from the Princes de Conde, whose connexion with the royal house of France dated back to the sixteenth century. The other line of 'royal' ducs in the country was that of Orleans, offshoot of the royal house through Philippe, son of Louis XIII, and born in 1640. Sophie's protector, Louis-Henri-Joseph, Prince de Conde, having married Louise-Marie, daughter of the great-grandson of this Philippe, was thus the brother-in-law of that Louis-Philippe, Duc d'Orleans, who in the Revolution was known as "Egalite." This was a man whom, for his political opinion and for his failure to stand by the King, Louis XVI, the Prince de Conde utterly detested in memory. As much, moreover, as he had hated the father did the Prince de Conde detest Egalite's son. But it was out of this man's family that Sophie selected, though ultimately, her coheir.

Before she arrived at this point, however, Sophie had been at pains to do some not very savoury manoeuvring.

By a dancer at the Opera, called Mimi, the Prince de Conde had an illegitimate daughter, whom he had caused to be educated and whom he had married to the Comte de Rully. The Comtesse de Rully and her husband had a suite at Chantilly. This was an arrangement which Sophie, as reigning Queen of Chantilly, did not like at all. While the Rully woman remained at

Chantilly Sophie could not think that her sway over the Prince was quite as absolute as she wished. It took her six years of badgering her protector, from 1819 to 1825, to bring about the eviction.

But meantime (for Sophie's machinations must be taken as concurrent with events as they transpire) the Baronne de Feucheres had approached the son of Philippe-Egalite, suggesting that the last-born of his six children, the Duc d'Aumale, should have the Prince de Conde for godfather. If she could persuade her protector to this the Duc d'Orleans, in return, was to use his influence for her reinstatement at Court. And persuade the old man to this Sophie did, albeit after a great deal of badgering on her part and a great deal of grumbling on the part of the Prince.

The influence exerted at Court by the Duc d'Orleans does not seem to have been very effective. The King who had dismissed her the Court, Louis XVIII, died in 1824. His brother, the Comte d'Artois, ascended the throne as Charles X, and continued by politically foolish recourses, comparable in history to those of the English Stuarts, to alienate the people by attempting to regain that anachronistic absolute power which the Revolution had destroyed. He lasted a mere six years as king. The revolution of 1830 sent him into exile. But up to the last month or so of those six years he steadfastly refused to have anything to do with the Baronne de Feucheres—not that Sophie ever gave up manoeuvring and wheedling for a return to Court favour.

About 1826 Sophie had a secret proposition made to the King that she should try to persuade the Prince de Conde to adopt as his heir one of the brothers of the Duchesse de Berry, widow of the King's second son—or would his Majesty mind if a son of the Duc d'Orleans was adopted? The King did not care at all.

After that Sophie pinned her faith in the power possessed by the Duc d'Orleans. She was not ready to pursue the course whereby her return to Court might have been secured—namely, to abandon her equivocal position in the Prince de Conde's household, and thus her power over the Prince. She wanted first to make sure of her share of the fortune he would leave. She knew her power over the old man. Already she had persuaded him to buy and make over to her the estates of Saint-Leu and Boissy, as well as to make her legacies to the amount of a million francs. Much as she wanted to be received again at Court, she wanted more just as much as she could grab

from the Prince's estate. To make her inheritance secure she needed the help of the Duc d'Orleans.

The Duc d'Orleans was nothing loth. He had the mind of a French bourgeois, and all the bourgeois itch for money. He knew that the Prince de Conde hated him, hated his politics, hated his very name. But during the seven years it took Sophie to bring the Prince to the point of signing the will she had in mind the son of Philippe-Egalite fawned like a huckster on his elderly and, in more senses than one, distant relative. The scheme was to have the Prince adopt the little Duc d'Aumale, already his godchild, as his heir.

The ways by which Sophie went about the job of persuading her old lover do not read pleasantly. She was a termagant. The Prince was stubborn. He hated the very idea of making a will—it made him think of death. He was old, ill, friendless. Sophie made his life a hell, but he had become dependent upon her. She ill-used him, subjecting him to physical violence, but yet he was afraid she might, as she often threatened, leave him. Her way of persuading him reached the point, it is on record, of putting a knife to his throat. Not once but several times his servants found him scratched and bruised. But the old man could not summon up the strength of mind to be quit of this succubine virago.

At last, on the 29th of August, 1829, Sophie's 'persuasions' succeeded. The Prince consented to sign the will, and did so the following morning. In its terms the Duc d'Aumale became residuary legatee, and 2,000,000 francs, free of death-duty, were bequeathed to the Prince's "faithful companion, Mme la baronne de Feucheres," together with the chateaux and estates of Saint-Leu-Taverny, Boissy, Enghien, Montmorency, and Mortefontaine, and the pavilion in the Palais-Bourbon, besides all the Prince's furniture, carriages, horses, and so on. Moreover, the estate and chateau of Ecoen was also given her, on condition that she allowed the latter to be used as an orphanage for the descendants of soldiers who had served with the Armies of Conde and La Vendee. The cost of running this establishment, however, was to be borne by the Duc d'Aumale.

It might be thought that Sophie, having got her way, would have turned to kindness in her treatment of her old lover. But no. All her mind was now concentrated on working, through the Duc d'Orleans, for being received again at Court. She ultimately succeeded in this. On the 7th of February,

1830, she appeared in the presence of the King, the Dauphin and Dauphine. In the business of preparing for this great day Chantilly and the Prince de Conde were greatly neglected. The beggar on horseback had to be about Paris.

But events were shaping in France at that time which were to be important to the royal family, to Sophie and her supporters of the house of Orleans, and fatal in consequence to the old man at Chantilly.

On the 27th of July revolution broke out in France. Charles X and his family had to seek shelter in England, and Louis-Philippe, Duc d'Orleans, became—not King of France, but "King of the French" by election. This consummation had not been achieved without intrigue on the part of Egalite's son. It was not an achievement calculated to abate the Prince de Conde's hatred for him. Rather did it inflame that hatred. In the matter of the famous will, moreover, as the King's son the little Duc d'Aumale would be now in no need of the provision made for him by his unwilling godfather, while members of the exiled royal family—notably the grandson of Charles, the Duc de Bordeaux, certainly cut out of the Prince's will by the intrigues of Sophie and family—were in want of assistance. This is a point to be remembered in the light of subsequent events.

IV

While she had been looking after herself Sophie Dawes had not been unmindful of the advancement of hangers-on of her own family. She had about her a nephew and a niece. The latter, supposed by some to have a closer relationship to Sophie than that of mere niece, she had contrived to marry off to a marquis. The Marquise de Chabannes de la Palice need not here concern us further. But notice must be taken of the nephew. A few million francs, provided by the Prince de Conde, had secured for this James Dawes the title of Baron de Flassans, from a domain also bestowed upon him by Sophie's elderly lover. De Flassans, with some minor post in the Prince's household, acted as his aunt's jackal.

If Sophie, after the election to kingship of Louis-Philippe, found it necessary to be in Paris a great deal to worship at the throne her nephew kept her well informed about the Prince de Conde's activities. The old man, it appeared, had suddenly developed the habit of writing letters. The Prince, then at the chateau of Saint-Leu expressed a desire to remove to Chantilly. He was behaving very oddly all round, was glad to have Sophie out of his

sight, and seemed unwilling even to hear her name. The projected move to Chantilly, as a fact, was merely a blind to cover a flight out of Sophie's reach and influence. Rumour arose about Saint-Leu and in Paris that the Prince had made another will—one in which neither Sophie nor the Duc d'Aumale was mentioned. This was a move of which Sophie had been afraid. She saw to it that the Prince did not get away from Saint-Leu. Rumour and the Prince's conduct made Sophie very anxious. She tried to get him to make over to her in his lifetime those properties which he had left to her in his will, and it is probable enough that she would have forced this request but for the fact that, to raise the legal costs, the property of Saint-Leu would have had to be sold.

This was the position of affairs about the middle of August 1830. It was believed the Prince had already signed a will in favour of the exiled little Duc de Bordeaux, but that he had kept the act secret from his mistress.

On the morning of the 11th of the month the Prince was met outside his bedroom in his night attire. It was a young man called Obry who thus met the Prince. He was the old man's godchild. The old man's left eye was bleeding, and there was a scratch on his cheek as if made by a fingernail. To Obry the Prince attributed these wounds to the spite of the Baronne de Feucheres. Half an hour later he told his valet he had hit his head against a night-table. Later again in the day he gave another version still: he had fallen against the door to a secret staircase from his bedroom while letting the Baronne de Feucheres out, the secret staircase being in communication with Sophie's private apartments.

For the next ten days or so the Prince was engaged in contriving his flight from the gentle Sophie, a second plan which again was spoiled by Sophie's spies. There was something of a fete at Saint-Leu on the 26th, the Prince's saint's day. There was a quarrel between Sophie and the Prince on the morning of the 26th in the latter's bedroom. Sophie had then been back in Saint-Leu for three days. At midnight on the 26th the old man retired after playing a game or two at whist. He was to go on the 30th to Chantilly. He was accompanied to his bedroom by his surgeon and a valet, one Lecomte, and expressed a desire to be called at eight o'clock. Lecomte found a paper in the Prince's trousers and gave it to the old man, who placed it on the mantelshelf. Then the valet, as he said later, locked the door of the Prince's

dressing-room, thus—except for the entrance from the secret staircase—locking the old man in his room.

The Prince's apartments were on the first floor of the chateau. His bedroom was approached through the dressing-room from the main corridor. Beyond the dressing-room was a passage, turning left from which was the bedroom, and to the right in which was an entrance to an anteroom. Facing the dressing-room door in this same passage was the entrance to the secret staircase already mentioned. The staircase gave access to the Baronne de Feucheres' apartments on the entrance floor. These, however, were not immediately under the Prince's rooms. An entresol intervened, and here the rooms were occupied by the Abbe Briant, a creature of Sophie's and her secretary, the Widow Lachassine, Sophie's lady's-maid, and a couple named Dupre. These last, also spies of Sophie's, had their room directly below the Prince's bedroom, and it is recorded that the floor was so thin that they could hear not only the old man's every movement, but anything he said.

Adjacent to the Prince's room, and on the same floor, were the rooms occupied by Lambot, the Prince's aide, and the valet Lecomte. Lambot was a lover of Sophie's, and had been the great go-between in her intrigues with the Orleans family over the will. Lecomte was in Sophie's pay. Close to Sophie's apartments on the entrance floor were the rooms occupied by her nephew and his wife, the de Flassans. It will be seen, therefore, that the wing containing the Prince's rooms was otherwise occupied almost completely by Sophie's creatures.

You have, then, the stage set for the tragedy which was about to ensue: midnight; the last of the Condes peaceably in his bedroom for the night, and locked in it (according to Lecomte). About him, on all sides, are the creatures of his not too scrupulous mistress. All these people, with the exception of the Baronne de Flassans, who sat up writing letters until two, retire about the same time.

And at eight o'clock next morning, there being no answer to Lecomte's knocking to arouse the Prince, the door is broken open at the orders of the Baronne de Feucheres. The Prince is discovered dead in his bedroom, suspended by the neck, by means of two of his own handkerchiefs knotted together, from the fastening of one of the French windows.

The fastening was only about two and a half feet off the floor. The handkerchief about the dead man's neck was loose enough to have

permitted insertion of all the fingers of a hand between it and the neck. The second handkerchief was tied to the first, and its other end was knotted to the window-fastening, and the dead man's right cheek was pressed against the closed shutter. The knees were bent a little, the feet were on the floor. None of the usual indications of death by strangulation were present. The eyes were half closed. The face was pale but not livid. The mouth was almost closed. There was no protrusion of the tongue.

On the arrival of the civil functionaries, the Mayor of Saint-Leu and a Justice of the Peace from Enghien, the body was taken down and put on the bed. It was then found that the dead man's ankles were greatly bruised and his legs scratched. On the left side of the throat, at a point too low for it to have been done by the handkerchief, there was some stripping of the skin. A large red bruise was found between the Prince's shoulders.

The King, Louis-Philippe, heard about the death of the Prince de Conde at half-past eleven that same day. He immediately sent his High Chancellor, M. Pasquier, and his own aide-de-camp, M. de Rumigny, to inquire into the matter. It is not stretching things too far to say that the King's instructions to these gentlemen are revealed in phrases occurring in the letters they sent his Majesty that same evening. Both recommend that Drs. Marc and Marjolin should be sent to investigate the Prince's tragic death. But M. Pasquier mentions that "not a single document has been found, so a search has already been made." And M. de Rumigny thinks "it is important that nobody should be accused who is likely to benefit by the will." What document was expected to be discovered in the search? Why, a second will that would invalidate the first. Who was to benefit by the first will? Why, the little Duc d'Aumale and Dame Sophie Dawes, Baronne de Feucheres!

The post-mortem examination was made by the King's own physicians. During the examination the Prince's doctors, MM. Dubois and Gendrin, his personal secretary, and the faithful one among his body-servants, Manoury, were sent out of the room. The verdict was suicide. The Prince's own doctors maintained that suicide by the handkerchiefs from the window-fastening was impossible. Dr Dubois wrote his idea of how the death had occurred:

The Prince very likely was asleep in his bed. The murderers must have been given entrance to his bedroom—I have no wish to ask how or by whom. They then threw themselves on the Prince, gripped him firmly, and

could easily pin him down on his bed; then the most desperate and dexterous of the murderers suffocated him as he was thus held firmly down; finally, in order to make it appear that he had committed suicide and to hinder any judicial investigations which might have discovered the identity of the assassins, they fastened a handkerchief about their victim's neck, and hung him up by the espagnolette of the window.

And that, at all hazards, is about the truth of the death of the Duc de Bourbon and Prince de Conde. There was some official display of rigour in investigation by the Procureur; there was much play with some mysterious papers found a good time after the first discovery half-burned in the fireplace of the Prince's bedroom; there was a lot put forward to support the idea of suicide; but the blunt truth of the affair is that the Prince de Conde was murdered, and that the murder was hushed up as much as possible. Not, however, with complete success. There were few in France who gave any countenance to the theory of suicide.

The Prince, it will be remembered, had a practically disabled left arm. It is said that he could not even remove his hat with his left hand. The knots in the handkerchiefs used to tie him to the espagnolette were both complicated and tightly made. Impossible for a one-handed man. His bed, which at the time of his retiring to it stood close to the alcove wall, was a good foot and a half away from that wall in the morning. Impossible feat also for this one-handed man. It was the Prince's habit to lie so much to one side of the bed that his servants had to prop the outside edge up with folded blankets. On the morning when his death was discovered it was seen that the edges still were high, while the centre was very much pressed down. There was, in fact, a hollow in the bed's middle such as might have been made by some one standing on it with shoes on. It is significant that the bedclothes were neatly turned down. If the Prince had got up on a sudden impulse to commit suicide he is hardly likely, being a prince, to have attempted remaking his bed. He must, moreover, since he could normally get from bed only by rolling on his side, have pressed out that heightened edge. Manoury, the valet who loved him, said that the bed in the morning looked more as if it had been SMOOTHED OUT than remade. This would tend to support the theory of Dr Dubois. The murderers, having suffocated the Prince, would be likely to try effacing the effects of his struggling by the former method rather than the latter.

But the important point of the affair, as far as this chapter on it is concerned, is the relation of Sophie Dawes with it on the conclusion of murder. How deeply was she implicated? Let us see how she acted on hearing that there was no reply to Lecomte's knocking, and let us examine her conduct from that moment on.

Note that the Baronne de Feucheres was the first person whom Lecomte and the Prince's surgeon apprised of the Prince's silence. She rushed out of her room and made for the Prince's, not by the secret staircase, but by the main one. She knew, however, that the door to the secret staircase from the Prince's room was not bolted that night. This knowledge was admitted for her later by the Prince's surgeon, M. Bonnie. She had gone up to the Prince's room by the main staircase in order to hide the fact, an action which gives a touch of theatricality to her exhibited concern about the Prince's silence.

The search for documents spoken of by M. Pasquier in his letter to the King had been carried out by Sophie in person, with the aid of her nephew de Flassans and the Abbe Briant. It was a thorough search, and a piece of indecorousness which she excused on the ground of being afraid the Prince's executors might find a will which made her the sole heir, to the exclusion of the Duc d'Aumale.

Regarding the 'accident' which had happened to the Prince on the 11th of August, she said it was explained by an earlier attempt on his part to do away with himself. She tried to deny that she had been at Saint-Leu at the time of the actual happening, when the fact was that she only left for Paris some hours later.

When, some time later, the Prince's faithful valet Manoury made mention of the fact that the Prince had wanted to put the width of the country between himself and his mistress, Sophie first tried to put the fear of Louis-Philippe into the man, then, finding he was not to be silenced that way, tried to buy him with a promise of employment.

It is beyond question that the Prince de Conde was murdered. He was murdered in a wing of the chateau in which he was hemmed in on all sides by Sophie's creatures. It is impossible that Sophie was not privy, at the least, to the deed. It is not beyond the bounds of probability that she was an actual participator in the murder.

She was a violent woman, as violent and passionate as she was determined. Not once but many times is it on record that she physically ill-used her elderly lover. There was one occasion, it is said, when the Prince suddenly came upon her in a very compromising position with a younger man in the park of one of his chateaux. Sophie, before the Prince could utter a protest, cut him across the face with her riding-whip, and finished up by thrashing him with his own cane.

Here you have the stuff, at any rate, of which your murderesses of the violent type are made. It is the metal out of which your Kate Websters, your Sarah Malcolms, your Meteyards and Brownriggs fashion themselves. It takes more than three years of scholastic self-discipline, such as Sophie Dawes in her ambition subjected herself to, to eradicate the inborn harridan. The very determination which was at the back of Sophie's efforts at self-education, that will to have her own way, would serve to heighten the sick rage with which she would discover that her carefully wrought plans of seven years had come to pieces. What was it that the Abbe Pelier de Lacroix had in "proof of the horrible assassination" of the Prince de Conde, but that he was prevented from placing before the lawyers in charge of the later investigation, if not the fact that the Prince had made a later will than the one by which Sophie inherited so greatly? The Abbe was the Prince's chaplain. He published a pamphlet declaring that the Prince had made a will leaving his entire fortune to the little Duc de Bordeaux, but that Sophie had stolen this later will. Who likelier to be a witness to such a will than the Prince's chaplain?

It needs no great feat of imagination to picture what the effect of such a discovery would be on a woman of Sophie's violent temper, or to conceive how little the matter of taking a life especially the life of a feeble old man she was used to bullying and mishandling—would be allowed to stand in the way of rescuing her large gains. Murder of the Prince was her only chance. It had taken her seven years to bring him to the point of signing that first will. He was seventy-four years of age, enfeebled, obstinate, and she knew of his plans to flee from her. Even supposing that she could prevent his flight, could she begin all over again to another seven years of bullying and wheedling—always with the prospect of the old man dying before she could get him to the point again of doing as she wished? The very existence of the second will was a menace. It only needed that the would-be heirs of the Prince should hear of it, and there would be a swoop on their part to

rescue the testator from her clutches. In the balance against 2,000,000 francs and some halfdozen castles with their estates the only wonder is that any reasonable person, knowing the history of Sophie Dawes, should hesitate about the value she was likely to place on the old man's life.

The inquiry begun in September of 1830 into the circumstances surrounding the death of the Prince was cooked before it was dressed. The honest man into whose hands it was placed at first, a M. de la Hurpoie, proved himself too zealous. After a night visit from the Procureur he was retired into private life. After that the investigators were hand-picked. They concluded the investigation the following June, with the declaration that the Prince had committed suicide, a verdict which had its reward—in advancement for the judges.

In the winter of 1831-32 there was begun a lawsuit in which the Princes de Rohan brought action against Sophie and the Duc d'Aumale for the upsetting of the will under which the latter two had inherited the Prince de Conde's fortune. The grounds for the action were the undue influence exerted by Sophie. The Princes de Rohan lost.

Thus was Sophie twice 'legally' vindicated. But public opinion refused her any coat of whitewash. Never popular in France, she became less and less popular in the years that followed her legal triumphs. Having used her for his own ends, Louis-Philippe gradually shut off from her the light of his cod-like countenance.[\[29\]](#)

Sophie found little joy in her wide French possessions. She found herself without friends before whom she could play the great lady in her castles. She gradually got rid of her possessions, and returned to her native land. She bought an estate near Christchurch, in Hampshire, and took a house in Hyde Park Square, London. But she did not long enjoy those English homes. While being treated for dropsy in 1840 she died of angina. According to the famous surgeon who was at her bedside just before her demise, she died "game."

It may almost be said that she lived game. There must have been a fighting quality about Sophie to take her so far from such a bad start. Violent as she was of temper, greedy, unscrupulous, she seems yet to have had some instincts of kindness. The stories of her good deeds are rather swamped by those of her bad ones. She did try to do some good with the Prince's money round about Chantilly, took a definite and lasting interest in

the alms-houses built there by "the Great Conde," and a request in her own will was to the effect that if she had ever done anything for the Orleans gang, the Prince de Conde's wishes regarding the use of the chateau of Ecoeu as an orphanage might be fulfilled as a reward to her. The request never was fulfilled, but it does show that Sophie had some affinity in kindness to Nell Gwynn.

How much farther—or how much better—would Sophie Dawes have fared had her manners been less at the mercy of her temper? It is impossible to say. That she had some quality of greatness is beyond doubt. The resolution of character, the will to achieve, and even the viraginous temper might have carried her far had she been a man some thirty years earlier in the country of her greater activities. Under Napoleon, as a man, Sophie might have climbed high on the way to glory. As a woman, with those traits, there is almost tragic inevitability in the manner in which we find her ranged with what Dickens called "Glory's bastard brother"—Murder.

VI: — ARSENIC A LA BRETONNE

On Tuesday, the 1st of July, in the year 1851, two gentlemen, sober of face as of raiment, presented themselves at the office of the Procureur-General in the City of Rennes. There was no need for them to introduce themselves to that official. They were well-known medical men of the city, Drs Pinault and Boudin. The former of the two acted as spokesman.

Dr Pinault confessed to some distress of mind. He had been called in by his colleague for consultation in the case of a girl, Rosalie Sarrazin, servant to an eminent professor of law, M. Bidard. In spite of the ministrations of himself and his colleague, Rosalie had died. The symptoms of the illness had been very much the same as in the case of a former servant of M. Bidard's, a girl named Rose Tessier, who had also died. With this in mind they had persuaded the relatives of Rosalie to permit an autopsy. They had to confess that they had found no trace of poison in the body, but they were still convinced the girl had died of poisoning. With his colleague backing him, Dr Pinault was able to put such facts before the Procureur-General that that official almost at once reached for his hat to accompany the two doctors to M. Bidard's.

The door of the Professor's house was opened to them by Helene Jegado, another of M. Bidard's servants. She was a woman of forty odd, somewhat scraggy of figure and, while not exactly ugly, not prepossessing of countenance. Her habit of looking anywhere but into the face of anyone addressing her gave her rather a furtive air.

Having ushered the three gentlemen into the presence of the Professor, the servant-woman lingered by the door.

"We have come, M. Bidard," said the Procureur, "on a rather painful mission. One of your servants died recently—it is suspected, of poisoning."

"I am innocent!"

The three visitors wheeled to stare, with the Professor, at the grey-faced woman in the doorway. It was she who had made the exclamation.

"Innocent of what?" demanded the Law officer. "No one has accused you of anything!"

This incautious remark on the part of the servant, together with the facts already put before him by the two doctors and the information he obtained from her employer, led the Procureur-General to have her arrested. Helene Jegado's past was inquired into, and a strange and dreadful Odyssey the last twenty years of her life proved to be. It was an Odyssey of death.

Helene was born at Plouhinec, department of Morbihan, on (according to the official record) "28 prairial," in the eleventh year of the republic (1803). Orphaned at the age of seven, she was sheltered by the cure of Bubry, M. Raillau, with whom two of her aunts were servants. Sixteen years later one of those aunts, Helene Liscouet, took Helene with her into service with M. Conan, cure at Seglien, and it was here that Helene Jegado's evil ways would appear first to become manifest. A girl looking after the cure's sheep declared she had found grains of hemp in soup prepared for her by Helene.

It was not, however, until 1833 that causing death is laid at her charge.

In that year she entered the service of a priest in Guern, one Le Drogo. In the space of little more than three months, from the 28th of June to the 3rd of October, seven persons in the priest's household died. All those people died after painful vomitings, and all of them had eaten food prepared by Helene, who nursed each of them to the last. The victims of this fatal outbreak of sickness included Helene's own sister Anna (apparently on a visit to Guern from Bubry), the rector's father and mother, and Le Drogo himself. This last, a strong and vigorous man, was dead within thirty-two hours of the first onset of his illness. Helene, it was said, showed the liveliest sorrow over each of the deaths, but on the death of the rector was heard to say, "This won't be the last!" Nor was it. Two deaths followed that of Le Drogo.

Such a fatal outbreak did not pass without suspicion. The body of the rector was examined by Dr Galzain, who found indications of grave disorder in the digestive tracts, with inflammation of the intestines. His colleague, Dr Martel, had suspicions of poison, but the pious sorrow of Helene lulled his mind as far as she was concerned.

We next find Helene returned to Bubry, replacing her sister Anna in the service of the cure there. In three months three people died: Helene's aunt Marie-Jeanne Liscouet and the cure's niece and sister. This last, a healthy girl of about sixteen, was dead within four days, and it is to be noted that during her brief illness she drank nothing but milk from the hands of

Helene. But here, as hitherto, Helene attended all the sufferers. Her grief over their deaths impressed every one with whom she came in contact.

From Bubry Helene went to Locmine. Her family connexion as servants with the clergy found her room for three days in the rectory, after which she became apprentice to a needlewoman of the town, one Marie-Jeanne Leboucher, with whom she lived. The Widow Leboucher was stricken ill, as also was one of her daughters. Both died. The son of the house, Pierre, also fell ill. But, not liking Helene, he refused her ministrations, and recovered. By this time Helene had become somewhat sensitive.

"I'm afraid," she said to a male relative of the deceased sempstress, "that people will accuse me of all those deaths. Death follows me wherever I go." She quitted the Leboucher establishment in distress.

A widow of the same town offered her house room. The widow died, having eaten soup of Helene's preparing. On the day following the Widow Lorey's death her niece, Veuve Cadic, arrived. The grief-stricken Helene threw herself into the niece's arms.

"My poor girl!" exclaimed the Veuve Cadic.

"Ai—but I'm so unhappy!" Helene grieved. "Where-ever I go—Seglien, Guern, Bubry, Veuve Laboucher's—people die!"

She had cause for grief, sure enough. In less than eighteen months thirteen persons with whom she had been closely associated had died of violent sickness. But more were to follow.

In May of 1835 Helene was in service with the Dame Toussaint, of Locmine. Four more people died. They were the Dame's confidential maid, Anne Eveno, M. Toussaint pere, a daughter of the house, Julie, and, later, Mme Toussaint herself. They had eaten vegetable soup prepared by Helene Jegado. Something tardily the son of the house, liking neither Helene's face nor the deathly rumours that were rife about her, dismissed her.

To one as burdened with sorrow as Helene Jegado appeared to be the life conventual was bound to hold appeal. She betook herself to the pleasant little town of Auray, which sits on a sea arm behind the nose of Quiberon, and sought shelter in the convent of the Eternal Father there. She was admitted as a pensionnaire. Her sojourn in the convent did not last long, for queer disorders marked her stay. Linen in the convent cupboards and the

garments of the pupils were maliciously slashed. Helene was suspect and was packed off.

Once again Helene became apprentice to a sempstress, this time an old maid called Anne Lecouvrec, proprietress of the Bonnes-oeuvres in Auray. The ancient lady, seventy-seven years of age, tried Helene's soup. She died two days later. To a niece of the deceased Helene made moan: "Ah! I carry sorrow. My masters die wherever I go!"

The realization, however, did not prevent Helene from seeking further employment. She next got a job with a lady named Lefur in Ploermel, and stayed for a month. During that time Helene's longing for the life religious found frequent expression, and she ultimately departed to pay a visit, so she said, to the good sisters of the Auray community. Some time before her departure, however, she persuaded Anne Lefur to accept a drink of her preparing, and Anne, hitherto a healthy woman, became very ill indeed. In this case Helene did not show her usual solicitude. She rather heartlessly abandoned the invalid—which would appear to have been a good thing for the invalid, for, lacking Helene's ministrations, she got better.

Helene meantime had found a place in Auray with a lady named Hetel. The job lasted only a few days. Mme Hetel's son-in-law, M. Le Dore, having heard why Helene was at need to leave the convent of the Eternal Father, showed her the door of the house. That was hasty, but not hasty enough. His mother-in-law, having already eaten meats cooked by Helene, was in the throes of the usual violent sickness, and died the day after Helene's departure.

Failing to secure another place in Auray, Helene went to Pontivy, and got a position as cook in the household of the Sieur Jouanno. She had been there some few months when the son of the house, a boy of fourteen, died after a sickness of five days that was marked by vomiting and convulsions. In this case an autopsy was immediately held. It revealed an inflamed condition of the stomach and some corrosion of the intestines. But the boy had been known to be a vinegar-drinker, and the pathological conditions discovered by the doctor were attributed by him to the habit.

Helene's next place was with a M. Kerallic in Hennebont. M. Kerallic was recovering from a fever. After drinking a tisane prepared by Helene he had a relapse, followed by repeated and fierce vomiting that destroyed him in five days. This was in 1836. After that the trail of death which had

followed Helene's itineracy about the lower section of the Brittany peninsula was broken for three years.

In 1839 we hear of her again, in the house of the Dame Veron, where another death occurred, again with violent sickness.

Two years elapse. In 1841 Helene was in Lorient, domestic servant to a middle-aged couple named Dupuyde-Lome, with whom lived their daughter and her husband, a M. Breger. First the little daughter of the young couple died, then all the members of the family were seized by illness, its onset being on the day following the death of the child. No more of the family died, but M. Dupuy and his daughter suffered from bodily numbness for years afterwards, with partial paralysis and recurrent pains in the extremities.

Helene seems to have made Lorient too hot for herself, and had to go elsewhere. Port Louis is her next scene of action. A kinswoman of her master in this town, one Duperron, happened to miss a sheet from the household stock. Mlle Leblanc charged Helene with the theft, and demanded the return of the stolen article. It is recorded that Helene refused to give it up, and her answer is curious.

"I am going into retreat," she declared. "God has forgiven me my sins!"

There was perhaps something prophetic in the declaration. By the time Helene was brought to trial, in 1854, her sins up to this point of record were covered by the prescription legale, a sort of statute of limitations in French law covering crime. Between 1833 and 1841 the wanderings of Helene Jegado through those quiet Brittany towns had been marked by twenty-three deaths, six illnesses, and numerous thefts.

There is surcease to Helene's death-dealing between the years of 1841 and 1849, but on the inquiries made after her arrest a myriad of accusers sprang up to tell of thefts during that time. They were petty thefts, but towards the end of the period they begin to indicate a change in Helene's habits. She seems to have taken to drink, for her thefts are mostly of wine and eau de vie.

In March 1848 Helene was in Rennes. On the 6th of November of the following year, having been dismissed from several houses for theft, she became sole domestic servant to a married couple called Rabot. Their son, Albert, who was already ill, died in the end of December. He had eaten a farina porridge cooked by Helene. In the following February, having

discovered Helene's depredations from the wine-cupboard, M. Rabot gave her notice. This was on the 3rd of the month. (Helene was to leave on the 13th.) The next day Mme Rabot and Rabot himself, having taken soup of Helene's making, became very ill. Rabot's mother-in-law ate a panade prepared by Helene. She too fell ill. They all recovered after Helene had departed, but Rabot, like M. Dupuy-de-Lome, was partially paralysed for months afterwards.

In Helene's next situation, with people called Ozanne, her way of abstracting liquor again was noticed. She was chided for stealing eau de vie. Soon after that the Ozannes' little son died suddenly, very suddenly. The doctor called in thought it was from a croup fever.

On the day following the death of the little Ozanne Helene entered the service of M. Roussell, proprietor of the Bout-du-Monde hotel in Rennes. Some six weeks later Roussell's mother suddenly became ill. She had had occasion to reproach Helene for sullen ill-manners or something of that sort. She ate some potage which Helene had cooked. The illness that ensued lasted a long time. Eighteen months later the old lady had hardly recovered.

In the hotel with Helene as fellow-servant there was a woman of thirty, Perrotte Mace, very greatly relied upon by her masters, with whom she had been five years. She was a strongly built woman who carried herself finely. Perrotte openly agreed with the Veuve Roussell regarding Helene's behaviour. This, with the confidence reposed in Perrotte by the Roussells, might have been enough to set Helene against her. But there was an additional cause for jealousy: Jean Andre, the hotel ostler, but also described as a cabinet-maker, though friendly enough with Helene, showed a marked preference for the younger, and comelier, Perrotte. The Veuve Roussell fell ill in the middle of June. In August Perrotte was seized by a similar malady, and, in spite of all her resistance, had to take to her bed. Vomiting and purging marked the course of her illness, pains in the stomach and limbs, distension of the abdomen, and swelling of the feet. With her strong constitution she put up a hard fight for her life, but succumbed on the 1st of September, 1850. The doctors called in, MM. Vincent and Guyot, were extremely puzzled by the course of the illness. At times the girl would seem to be on the mend, then there would come a sudden relapse. After Perrotte's death they pressed for an autopsy, but the peasant relatives of the girl showed the usual repugnance of their class to the idea. Helene was

taken red-handed in the theft of wine, and was dismissed. Fifteen days later she took service with the Bidards.

These are the salient facts of Helene's progression from 1833 to 1851 as brought out by the investigations made by and for the Procureur-General of Rennes. All possible channels were explored to discover where Helene had procured the arsenic, but without success. Under examination by the Juge d'instruction she stoutly denied all knowledge of the poison. "I don't know anything about arsenic—don't know what it is," she repeated. "No witness can say I ever had any." It was believed that she had secured a large supply in her early days, and had carried it with her through the years, but that at the first definite word of suspicion against her had got rid of it. During her trial mention was made of packets found in a chest she had used while at Locsine, the place where seven deaths had occurred. But it was never clearly established that these packets had contained arsenic. It was never clearly established, though it could be inferred, that Helene ever had arsenic at all.

II

The first hearings of Helene's case were taken before the Juge d'instruction in Rennes, and she was remanded to the assizes for Ille-et-Vilaine, which took place, apparently, in the same city. The charges against her were limited to eleven thefts, three murders by poisoning, and three attempts at murder by the like means. Under the prescription legale twenty-three poisonings, six attempts at poisoning, and a number of thefts, all of which had taken place within the space of ten years, had to be left out of the indictment. We shall see, however, that, under the curious rules regarding permissible evidence which prevail in French criminal law, the Assize Court concerned itself quite largely with this prescribed matter.

The trial began on the 6th of December, 1851, at a time when France was in a political uproar—or, more justly perhaps, was settling down from political uproar. The famous coup d'etat of that year had happened four days before. Maitre Dorange, defending Helene, asked for a remand to a later session on the ground that some of his material witnesses were unavailable owing to the political situation. An eminent doctor, M. Baudin, had died "pour maintien des lois." There was some argument on the matter, but the President ruled that all material witnesses were present. Scientific experts could be called only to assist the court.

The business of this first day was taken up almost completely by questions on the facts produced in investigation, and these mostly facts covered by the prescription. The legal value of this run of questions would seem doubtful in the Anglo-Saxon idea of justice, but it gives an indication of the shiftiness in answer of the accused. It was a long interrogation, but Helene faced it with notable self-possession. On occasion she answered with vigour, but in general sombrely and with lowered eyes. At times she broke into volubility. This did not serve to remove the impression of shiftiness, for her answers were seldom to the point.

Wasn't it true, she was asked, that in Locmine she had been followed and insulted with cries: "C'est la femme au foie blanc; elle porte la mort avec elle!"? Nobody had ever said anything of the sort to her, was her sullen answer. A useless denial. There were plenty of witnesses to express their belief in her "white liver" and to tell of her reputation of carrying death.

Asked why she had been dismissed from the convent at Auray, she answered that she did not know. The Mother Superior had told her to go. She had been too old to learn reading and writing. Pressed on the point of the slashed garments of the pupils and the linen in the convent cupboards, Helene retorted that somebody had cut her petticoats as well, and that, anyhow, the sisters had never accused her of working the mischief.

This last answer was true in part. The evidence on which Helene had been dismissed the convent was circumstantial. A sister from the community described Helene's behaviour otherwise as edifying indeed.

After the merciless fashion of French judges, the President came back time and again to attack Helene on the question of poison. If Perrotte Mace did not get the poison from her—from whom, then?

"I don't know anything of poison," was the reply, with the pious addendum, "and, God willing, I never will!"

This, with variations, was her constant answer.

"Qu'est-ce que c'est l'arsenic? Je n'en ai jamais vu d'arsenic, moi!"

The President had occasion later to take her up on these denials. The curate of Seglien came to give evidence. He had been curate during the time of M. Conan, in whose service Helene had been at that time. He could swear that M. Conan had repeatedly told his servants to watch that the

domestic animals did not get at the poisoned bait prepared for the rats. M. Conan's servants had complete access to the arsenic used.

Helene interposed at this point. "I know," she said, "that M. Conan had asked for arsenic, but I wasn't there at the time. My aunt told me about it."

The President reminded her that in her interrogation she had declared she knew nothing of arsenic, nor had heard anyone speak of it. Helene sullenly persisted in her first declaration, but modified it with the admission that her aunt had told her the stuff was dangerous, and not to be used save with the strictest precautions.

This evidence of the arsenic at Seglien was brought forward on the second day of the trial, when witnesses began to be heard. Before pursuing the point of where the accused might have obtained the poison I should like to quote, as typical of the hypocritical piety exhibited by Helene, one of her answers on the first day.

After reminding her that Rose Tessier's sickness had increased after taking a tisane that Helene had prepared the President asked if it was not the fact that she alone had looked after Rose.

"No," Helen replied. "Everybody was meddling. All I did was put the tisane on to boil. I have suffered a great deal," she added gratuitously. "The good God will give me grace to bear up to the end. If I have not died of my sufferings in prison it is because God's hand has guided and sustained me."

With that in parenthesis, let us return to the evidence of the witnesses on the second day of the trial. A great deal of it had to do with deaths on which, under the prescription, no charge could be made against Helene, and with thefts that equally could not be the subject of accusation.

Dr Galzain, of Ponivy, who, eighteen years before, had performed the autopsy on Le Drogo, cure of Guern, testified that though he had then been puzzled by the pathological conditions, he was now prepared to say they were consistent with arsenical poisoning.

Martel, a pharmacist, brother of the doctor who had attended Le Drogo, spoke of his brother's suspicions, suspicions which had recurred on meeting with the cases at Bubry. They had been diverted by the lavishly affectionate attendance Helene had given to the sufferers.

Relatives of the victims of Locmine told of Helene's predictions of death, and of her complaints that death followed her everywhere. They also remarked

on the very kind ministrations of Helene.

Dr Toussaint, doctor at Locmine, and son to the house in which Helene had for a time been servant, told of his perplexity over the symptoms in the cases of the Widow Lorey and the youth Leboucher. In 1835 he had been called in to see Helene herself, who was suffering from an intermittent fever. Next day the fever had disappeared. He was told that she had been dosing herself, and he was shown a packet which had been in her possession. It contained substances that looked like kermes-mineral,^[30] some saffron, and a white powder that amounted to perhaps ten grammes. He had disliked Helene at first sight. She had not been long in his mother's service when his mother's maid-companion (Anne Eveno), who also had no liking for Helene, fell ill and died. His father fell violently ill in turn, seemed to get better, and looked like recovering. But inexplicable complications supervened, and his father died suddenly of a haemorrhage of the intestinal canal. His sister Julie, who had been the first to fall sick, also seemed to recover, but after the death of the father had a relapse. In his idea Helene, having cured herself, was able to drug the invalids in her care. The witness ordered her to be kept completely away from the sufferers, but one night she contrived to get the nurses out of the way. A confrere he called in ordered bouillon to be given. Helene had charge of the kitchen, and it was she who prepared the bouillon. It was she who administered it. Three hours later his sister died in agony.

The witness suggested an autopsy. His family would not agree. The pious behaviour of Helene put her beyond suspicion, but he took it on himself to dismiss her. During the illness of his father, when Helene herself was ill, he went reluctantly to see her, being told that she was dying. Instead of finding her in bed he came upon her making some sort of white sauce. As soon as he appeared she threw herself into bed and pretended to be suffering intense pain. A little later he asked to see the sauce. It had disappeared.

He had advised his niece to reserve his sister's evacuations. His niece replied that Helene was so scrupulously tidy that such vessels were never left about, but were taken away at once to be emptied and cleaned. "I revised my opinion of the woman after she had gone," added the witness. "I thought her very well behaved."

HELENE. I never had any drugs in my possession—never. When I had fever I took the powders given me by the doctor, but I did not know what

they were!

THE PRESIDENT. Why did you say yesterday that nothing was ever found in your luggage?

HELENE. I didn't remember.

THE PRESIDENT. What were you doing with the saffron? Wasn't it in your possession during the time you were in Seglien?

HELENE. I was taking it for my blood.

THE PRESIDENT. And the white powder—did it also come from Seglien?

HELENE [energetically]. Never have I had white powder in my luggage! Never have I seen arsenic! Never has anyone spoken to me of arsenic!

Upon this the President rightly reminded her that she had said only that morning that her aunt had talked to her of arsenic at Seglien, and had warned her of its lethal qualities. "You deny the existence of that white powder," said the President, "because you know it was poison. You put it away from you with horror!"

The accused several times tried to answer this charge, but failed. Her face was beaded with moisture.

THE PRESIDENT. Had you or had you not any white powder at Losmine?

HELENE. I can't say if I still had fever there.

THE PRESIDENT. What was that powder? When did you first have it?

HELENE. I had taken it at Locmine. Somebody gave it to me for two sous.

THE PRESIDENT. Why didn't you say so at the beginning, instead of waiting until you are confounded by the witness? [To Dr Toussaint] What would the powder be, monsieur? What powder would one prescribe for fever?

DR TOUSSAINT. Sulphate of quinine; but that's not what it was.

Questioned by the advocate for the defence, the witness said he would not affirm that the powder he saw was arsenic. His present opinion, however, was that his father and sister had died from injections of arsenic in small doses.

A witness from Locmine spoke of her sister's two children becoming ill after taking chocolate prepared by the accused. The latter told her that a mob had followed her in the street, accusing her of the deaths of those she had been servant to.

Then came one of those curious samples of 'what the soldier said' that are so often admitted in French criminal trials as evidence. Louise Clocher said she had seen Helene on the road between Auray and Lorient in the company of a soldier. When she told some one of it people said, "That wasn't a soldier! It was the devil you saw following her!"

One rather sympathizes with Helene in her protest against this testimony.

From Ploermel, Auray, Lorient, and other places doctors and relatives of the dead came to bear witness to Helene's cooking and nursing activities, and to speak of the thefts she had been found committing. Where any suspicion had touched Helene her piety and her tender care of the sufferers had disarmed it. The astonishing thing is that, with all those rumours of 'white livers' and so on, the woman could proceed from place to place within a few miles of each other, and even from house to house in the same towns, leaving death in her tracks, without once being brought to bay. Take the evidence of M. Le Dore, son-in-law of that Mme Hetel who died in Auray, His mother-in-law became ill just after Helene's reputation was brought to his notice. The old lady died next day.

"The day following the revelation," said M. Le Dore, "I put Helene out. She threw herself on the ground uttering fearsome yells. The day's meal had been prepared. I had it thrown out, and put Helene herself to the door with her luggage, INTO WHICH SHE HASTILY STOWED A PACKET. Mme Hetel died next day in fearful agony."

I am responsible for the italicizing. It is hard to understand why M. Le Dore did no more than put Helene to the door. He was suspicious enough to throw out the meal prepared by Helene, and he saw her hastily stow a packet in her luggage. But, though he was Mayor of Auray, he did nothing more about his mother-in-law's death. It is to be remarked, however, that the Hetels themselves were against the brusque dismissal of Helene. She had "smothered the mother with care and attentions."

But one gets perhaps the real clue to Helene's long immunity from the remark made in court by M. Breger, son-in-law of that Lorient couple, M. and Mme Dupuyde-Lome. He had thought for a moment of suspecting

Helene of causing the child's death and the illness of the rest of the family, but "there seemed small grounds. What interest had the girl in cutting off their lives?"

It is a commonplace that murder without motive is the hardest to detect. The deaths that Helene Jegado contrived between 1833 and 1841, twenty-three in number, and the six attempts at murder which she made in that length of time, are, without exception, crimes quite lacking in discoverable motive. It is not at all on record that she had reason for wishing to eliminate any one of those twenty-three persons. She seems to have poisoned for the mere sake of poisoning. Save to the ignorant and superstitious, such as followed her in the streets to accuse her of having a "white liver" and a breath that meant death, she was an unfortunate creature with an odd knack of finding herself in houses where 'accidents' happened. Time and again you find her being taken in by kindly people after such 'accidents,' and made an object of sympathy for the dreadful coincidences that were making her so unhappy. It was out of sympathy that the Widow Lorey, of Locmine, took Helene into her house. On the widow's death the niece arrived. In court the niece described the scene on her arrival. "Helene embraced me," she said. "'Unhappy me!' she wept. 'Wherever I go everybody dies!' I pitied and consoled her." She pitied and consoled Helene, though they were saying in the town that the girl had a white liver and that her breath brought death!

Where Helene had neglected to combine her poisoning with detected pilfering the people about her victims could see nothing wrong in her conduct. Witness after witness—father, sister, husband, niece, son-in-law, or relation in some sort to this or that victim of Helene's—repeated in court, "The girl went away with nothing against her." And even those who afterwards found articles missing from their household goods: "At the same time I did not suspect her probity. She went to Mass every morning and to the evening services. I was very surprised to find some of my napkins among the stuff Helene was accused of stealing."

"I did not know of Helene's thefts until I was shown the objects stolen," said a lady of Vannes. "Without that proof I would never have suspected the girl. Helene claimed affiliation with a religious sisterhood, served very well, and was a worker."

It is perhaps of interest to note how Helene answered the testimony regarding her thieving proclivities. Mme Lejoubioux, of Vannes, said her

furnishing bills went up considerably during the time Helene was in her service. Helene had purloined two cloths.

Helene: "That was for vengeance. I was furious at being sent away."

Sieur Cesar le Clerc and Mme Gauthier swore to thefts from them by Helene.

Helene: "I stole nothing from Mme Gauthier except one bottle of wine. If I commit a larceny it is from choler. WHEN I'M FURIOUS I STEAL!"

It was when Helene began to poison for vengeance that retribution fell upon her. Her fondness for the bottle started to get her into trouble. It made her touchy. Up to 1841 she had poisoned for the pleasure of it, masking her secret turpitude with an outward show of piety, of being helpful in time of trouble. By the time she arrived in Rennes, in 1848, after seven years during which her murderous proclivities seem to have slept, her character as a worker, if not as a Christian, had deteriorated. Her piety, in the face of her fondness for alcohol and her slovenly habits, and against her now frequently exhibited bursts of temper and ill-will, appeared the hypocrisy it actually was. Her essays in poisoning now had purpose and motive behind them. Nemesis, so long at her heels, overtook her.

III

It is not clear in the accounts available to me just what particular murders by poison, what attempts at poisoning, and what thefts Helene was charged with in the indictment at Rennes. Twenty-three poisonings, six attempts, and a number of thefts had been washed out, it may be as well to repeat, by the prescription legale. But from her arrival in Rennes, leaving the thefts out of account, her activities had accounted for the following: In the Rabot household one death (Albert, the son) and three illnesses (Rabot, Mme Rabot, the mother-in-law); in the Ozanne establishment one death (that of the little son), in the hotel of the Roussells one death (that of Perrotte Mace) and one illness (that of the Veuve Roussell); at the Bidards two deaths (Rose Tessier and Rosalie Sarrazin). In this last establishment there was also one attempt at poisoning which I have not yet mentioned, that of a young servant, named Francoise Huriaux, who for a short time had taken the place of Rose Tessier. We thus have five deaths and five attempts in Rennes, all of which could be indictable. But, as already stated, the indictment covered three deaths and three attempts.

It is hard to say, from verbatim reports of the trial, where the matter of the indictment begins to be handled. It would seem from the evidence produced that proof was sought of all five deaths and all five attempts that Helene was supposed to be guilty of in Rennes. The father of the boy Ozanne was called before the Rabot witnesses, though the Rabot death and illnesses occurred before the death of the Ozanne child. We may, however, take the order of affairs as dealt with in the court. We may see something of motive on Helene's part suggested in M. Ozanne's evidence, and an indication of her method of covering her crime.

M. Ozanne said that Helene, in his house, drank eau de vie in secret, and, to conceal her thefts, filled the bottle up with cider. He discovered the trick, and reproached Helene for it. She denied the accusation with vigour, and angrily announced her intention of leaving. Mme Ozanne took pity on Helene, and told her she might remain several days longer. On the Tuesday following the young child became ill. The illness seemed to be a fleeting one, and the father and mother thought he had recovered. On the Saturday, however, the boy was seized by vomiting, and the parents wondered if they should send for the doctor. "If the word was mine," said Helene, who had the boy on her knees, "and the child as ill as he looks, I should not hesitate." The doctor was sent for about noon on Sunday. He thought it only a slight illness. Towards evening the child began to complain of pain all over his body. His hands and feet were icy cold. His body grew taut. About six o'clock the doctor came back. "My God!" he exclaimed. "It's the croup!" He tried to apply leeches, but the boy died within a few minutes. Helene hastened the little body into its shroud.

Helene, said Ozanne, always talked of poison if anyone left their food. "Do you think I'm poisoning you?" she would ask.

A girl named Cambrai gave evidence that Helene, coming away from the cemetery after the burial of the child, said to her, "I am not so sorry about the child. Its parents have treated me shabbily." The witness thought Helene too insensitive and reproached her.

"That's a lie!" the accused shouted. "I loved the child!"

The doctor, M. Brute, gave evidence next. He still believed the child had died of a croup affection, the most violent he had ever seen. The President questioned him closely on the symptoms he had seen in the child, but the

doctor stuck to his idea. He had seen nothing to make him suspect poisoning.

The President: "It is strange that in all the cases we have under review the doctors saw nothing at first that was serious. They admit illness and prescribe mild remedies, and then, suddenly, the patients get worse and die."

M. Victor Rabot was called next. To begin with, he said, Helene's services were satisfactory. He had given her notice because he found her stealing his wine. Upon this Helene showed the greatest discontent, and it was then that Mme Rabot fell ill. A nurse was put in charge of her, but Helene found a way to get rid of her. Helene had no love for his child. The child had a horror of the servant, because she was dirty and took snuff. In consequence Helene had a spite against the boy. Helene had never been seen eating any of the dishes prepared for the family, and even insisted on keeping certain of the kitchen dishes for her own use.

At the request of his father-in-law Helene had gone to get a bottle of violet syrup from the pharmacist. The bottle was not capped. His father-in-law thought the syrup had gone bad, because it was as red as mulberry syrup, and refused to give it to his daughter (Mme Rabot). The bottle was returned to the pharmacist, who remarked that the colour of the syrup had changed, and that he did not recognize it as his own.

Mme Rabot having corroborated her husband's evidence, and told of Helene's bad temper, thieving, and disorderliness, Dr Vincent Guyot, of Rennes, was called.

Dr Guyot described the illness of the boy Albert and its result. He then went on to describe the illness of Mme Rabot. He and his confreres had attributed her sickness to the fact that she was enceinte, and to the effect of her child's death upon her while in that condition. A miscarriage of a distressing nature confirmed the first prognosis. But later he and his confreres saw reason to change their minds. He believed the boy had been poisoned, though he could not be certain. The mother, he was convinced, had been the victim of an attempt at poisoning, an opinion which found certainty in the case of Mme Briere. If Mme Rabot's pregnancy went some way in explaining her illness there was nothing of this in the illness of her mother. The explanation of everything was in repeated dosing of an arsenical substance.

The witness had also attended Mme Roussell, of the Bout-du-Monde hotel. It was remarkable that the violent sickness to which this lady was subject for twenty days did not answer to treatment, but stopped only when she gave up taking food prepared for her by Helene Jegado.

He had also looked after Perrotte Mace. Here also he had had doubts of the nature of the malady; at one time he had suspected pregnancy, a suspicion for which there were good grounds. But the symptoms that later developed were not consistent with the first diagnosis. When Perrotte died he and M. Revault, his confrere, thought the cause of death would be seen as poison in an autopsy. But the post-mortem was rejected by the parents. His feeling to-day was that Mme Roussell's paralysis was due to arsenical dosage, and that Perrotte had died of poisoning. Helene, speaking to him of Perrotte, had said, "She's a chest subject. She'll never get better!" And she had used the same phrase, "never get better," with regard to little Rabot.

M. Morio, the pharmacist of Rennes from whom the violet syrup was bought, said that Helene had often complained to him about Mme Roussell. During the illness of the Rabot boy she had said that the child was worse than anyone imagined, and that he would never recover. In the matter of the violet syrup he agreed it had come back to him looking red. The bottle had been put to one side, but its contents had been thrown away, and he had therefore been unable to experiment with it. He had found since, however, that arsenic in powder form did not turn violet syrup red, though possibly arsenic in solution with boiling water might produce the effect. The change seen in the syrup brought back from M. Rabot's was not to be accounted for by such fermentation as the mere warmth of the hand could bring about.

Several witnesses, interrupted by denials and explanations from the accused, testified to having heard Helene say that neither the Rabot boy nor his mother would recover.

The evidence of M. Roussell, of the Bout-du-Monde hotel, touched on the illnesses of his mother and Perrotte. He knew nothing of the food prepared by Helene; nor had the idea of poison occurred to him until her arrest. Helene's detestable character, her quarrels with other servants, and, above all, the thefts of wine he had found her out in were the sole causes of her dismissal. He had noticed that Helene never ate with the other domestics. She always found an excuse for not doing so. She said she had stomach trouble and could not hold down her food.

The Veuve Roussell had to be helped into court by her son. She dealt with her own illness and with the death of Perrotte. Her illness did not come on until she had scolded Helene for her bad ways.

Dr Revault, confrere of Guyot, regretted the failure to perform a post-mortem on the body of Perrotte. He had said to Roussell that if Perrotte's illness was analogous to cholera it was, nevertheless, not that disease. He believed it was due to a poison.

The President: "Chemical analysis has proved the presence of arsenic in the viscera of Perrotte. Who administered that arsenic, the existence of which was so shrewdly foreseen by the witness? Who gave her the arsenic? [To Helene] Do you know? Was it not you that gave it her, Helene?"

At this Helene murmured something unintelligible, but, gathering her voice, she protested, "I have never had arsenic in my hands, Monsieur le President—never!"

Something of light relief was provided by Jean Andre, the cabinet-making ostler of Saint-Gilles, he for whose attention Helene had been a rival with Perrotte Mace.

"The service Helene gave was excellent. So was mine. She nursed Perrotte perfectly, but said it was in vain, because the doctors were mishandling the disease. She told me one day that she was tired of service, and that her one wish was to retire."

"Did you attach a certain idea to the confidence about retiring?"

"No!" Andre replied energetically.

"You were in hospital. When you came back, did Helene take good care of you?"

"She gave me bouillon every morning to build me up."

"The bouillon she gave you did you no harm?"

"On the contrary, it did me a lot of good."

"Wasn't the accused jealous of Perrotte—that good-looking girl who gave you so much of her favour?"

"In her life Perrotte was a good girl. She never was out of sorts for a moment—never rubbed one the wrong way."

"Didn't Helene say to you that Perrotte would never recover?"

"Yes, she said that. 'She's a lost woman,' she said; 'the doctors are going the wrong way with the disease.'

"All the same," Andre went on, "Helene never ate with us. She worked night and day, but ate in secret, I believe. Anyhow, a friend of mine told me he'd once seen her eating a crust of bread, and chewing some other sort of food at the same time. As for me—I don't know; but I don't think you can live without eating."

"I couldn't keep down what I ate," Helene interposed. "I took some bouillon here and there; sometimes a mouthful of bread—nothing in secret. I never thought of Andre in marriage—not him more than another. That was all a joke."

A number of witnesses, friends of Perrotte, who had seen her during her illness, spoke of the extreme dislike the girl had shown for Helene and for the liquids the latter prepared for her. Perrotte would say to Helene, "But you're dirty, you ugly Bretonne!" Perrotte had a horror of bouillon: "Ah—these vegetable soups! I've had enough of them! It was what Helene gave me that night that made me ill!" The witnesses did not understand all this, because the accused seemed to be very good to her fellow-servant. At the bedside Helene cried, "Ah! What can I do that will save you, my poor Perrotte?" When Perrotte was dying she wanted to ask Helene's pardon. Embracing the dying girl, the accused replied, "Ah! There's no need for that, my poor Perrotte. I know you didn't mean anything."

A witness telling of soup Helene had made for Perrotte, which the girl declared to have been poisoned, it was asked what happened to the remainder of it. The President passed the question to Helene, who said she had thrown it into the hearth.

IV

The most complete and important testimony in the trial was given by M. Theophile Bidard, professor to the law faculty of Rennes.

The facts he had to bring forward, he said, had taken no significance in his mind until the last of them transpired. He would have to go back into the past to trace them in their proper order.

He recalled the admission of Helene to his domestic staff and the good recommendations on which he had engaged her. From the first Helene proved herself to have plenty of intelligence, and he had believed that her

intelligence was combined with goodness of heart. This was because he had heard that by her work she was supporting two small children, as well as her poor old mother, who had no other means of sustenance.

(The reader will recollect that Helene was orphaned at the age of seven.)

Nevertheless, said M. Bidard, Helene was not long in his household before her companion, Rose Tessier, began to suffer in plenty from the real character of Helene Jegado.

Rose had had a fall, an accident which had left her with pains in her back. There were no very grave symptoms but Helene prognosticated dire results. One night, when the witness was absent in the country, Helene rose from her bed, and, approaching her fellow-servant's room, called several times in a sepulchral voice, "Rose, Rose!" That poor girl took fright, and hid under the bedclothes, trembling.

Next day Rose complained to witness, who took his domestics to task. Helene pretended it was the farm-boy who had perpetrated the bad joke. She then declared that she herself had heard some one give a loud knock. "I thought," she said, "that I was hearing the call for poor Rose."

On Sunday, the 3rd of November, 1850, M. Bidard, who had been in the country, returned to Rennes. After dinner that day, a meal which she had taken in common with Helene, Rose was seized with violent sickness. Helene lavished on her the most motherly attention. She made tea, and sat up the night with the invalid. In the morning, though she still felt ill, Rose got up. Helene made tea for her again. Rose once more was sick, violently, and her sickness endured until the witness himself had administered copious draughts of tea prepared by himself. Rose passed a fairly good night, and Dr Pinault, who was called in, saw nothing more in the sickness than some nervous affection. But on the day of the 5th the vomitings returned. Helene exclaimed, "The doctors do not understand the disease. Rose is going to die!" The prediction seemed foolish as far as immediate appearances were concerned, for Rose had an excellent pulse and no trace of fever.

In the night between Tuesday and Wednesday the patient was calm, but on the morning of Wednesday she had vomitings with intense stomach pains. From this time on, said the witness, the life of Rose, which was to last only thirty-six hours, was nothing but a long-drawn and heart-rending cry of agony. She drew her last breath on the Thursday evening at half-past

five. During her whole illness, added M. Bidard, Rose was attended by none save Helene and himself.

Rose's mother came. In Rose the poor woman had lost a beloved child and her sole support. She was prostrated. Helene's grief seemed to equal the mother's. Tears were ever in her eyes, and her voice trembled. Her expressions of regret almost seemed to be exaggerated.

There was a moment when the witness had his doubts. It was on the way back from the cemetery. For a fleeting instant he thought that the shaking of Helene's body was more from glee than sorrow, and he momentarily accused her in his mind of hypocrisy. But in the following days Helene did nothing but talk of "that poor Rose," and M. Bidard, before her persistence, could only believe he had been mistaken. "Ah!" Helene said. "I loved her as I did that poor girl who died in the Bout-du-Monde."

The witness wanted to find some one to take Rose's place. Helene tried to dissuade him. "Never mind another femme de chambre," she said. "I will do everything." M. Bidard contented himself with engaging another girl, Françoise Huriaux, strong neither in intelligence nor will, but nevertheless a sweet little creature. Not many days passed before Helene began to make the girl unhappy. "It's a lazy-bones," Helene told the witness. "She does not earn her keep." ("Le pain qu'elle mange, elle le vole.") M. Bidard shut her up. That was his affair, he said.

Françoise meantime conceived a fear of Helene. She was so scared of the older woman that she obeyed all her orders without resistance. The witness, going into the kitchen one day, found Helene eating her soup at one end of the table, while Françoise dealt with hers at the other extreme. He told Helene that in future she was to serve the repast in common, on a tablecloth, and that it was to include dessert from his table. This order seemed to vex Helene extremely. "That girl seems to live without eating," she said, "and she never seems to sleep."

One day the witness noticed that the hands and face of Françoise were puffy. He spoke to Helene about it, who became angry. She accused her companion of getting up in the night to make tea, so wasting the sugar, and she swore she would lock the sugar up. M. Bidard told her to do nothing of the sort. He said if Françoise had need of sugar she was to have it. "All right—I see," Helene replied sullenly, obviously put out.

The swelling M. Bidard had seen in the face and hands of Francoise attacked her legs, and all service became impossible for the girl. The witness was obliged to entrust Helene with the job of finding another chambermaid. It was then that she brought Rosalie Sarrazin to him. "A very good girl," she said. "If her dress is poor it is because she gives everything to her mother."

The words, M. Bidard commented, were said by Helene with remarkable sincerity. It was said that Helene had no moral sense. It seemed to him, from her expressions regarding that poor girl, who, like herself, devoted herself to her mother, that Helene was far from lacking in that quality.

Engaging Rosalie, the witness said to his new domestic, "You will find yourself dealing with a difficult companion. Do not let her be insolent to you. You must assert yourself from the start. I do not want Helene to rule you as she ruled Francoise." At the same time he repeated his order regarding the service of the kitchen meals. Helene manifested a sullen opposition. "Who ever heard of tablecloths for the servants?" she said. "It is ridiculous!"

In the first days the tenderness between Helene and the new girl was quite touching. But circumstance arose to end the harmony. Rosalie could write. On the 23rd of May the witness told Helene that he would like her to give him an account of expenses. The request made Helene angry, and increased her spite against the more educated Rosalie. Helene attempting to order Rosalie about, the latter laughingly told her, "M. Bidard pays me to obey him. If I have to obey you also you'll have to pay me too." From that time Helene conceived an aversion from the girl.

About the time when Helene began to be sour to Rosalie she herself was seized by vomitings. She complained to Mlle Bidard, a cousin of the witness, that Rosalie neglected her. But when the latter went up to her room Helene yelled at her, "Get out, you ugly brute! In you I've brought into the house a stick for my own back!"

This sort of quarrelling went on without ceasing. At the beginning of June the witness said to Helene, "If this continues you'll have to look for another place."

"That's it!" Helene yelled, in reply. "Because of that girl I'll have to go!"

On the 10th of June M. Bidard gave Helene definite notice. It was to take effect on St John's Day. At his evening meal he was served with a roast and

some green peas. These last he did not touch. In spite of his prohibition against her serving at table, it was Helene who brought the peas in. "How's this?" she said to him. "You haven't eaten your green peas—and them so good!" Saying this, she snatched up the dish and carried it to the kitchen. Rosalie ate some of the peas. No sooner had she taken a few spoonfuls, however, than she grew sick, and presently was seized by vomiting. Helene took no supper. She said she was out of sorts and wanted none.

The witness did not hear of these facts until next day. He wanted to see the remainder of the peas, but they could not be found. Rosalie still kept being sick, and he bade her go and see his doctor, M. Boudin. Helene, on a sudden amiable to Rosalie where she had been sulky, offered to go with her. Dr Boudin prescribed an emetic, which produced good effects.

On the 15th of June Rosalie seemed to have recovered. In the meantime a cook presented herself at his house to be engaged in place of Helene. The latter was acquainted with the new-comer. A vegetable soup had been prescribed for Rosalie, and this Helene prepared. The convalescent ate some, and at once fell prey to violent sickness. That same day Helene came in search of the witness. "You're never going to dismiss me for that young girl?" she demanded angrily. M. Bidard relented. He said that if she would promise to keep the peace with Rosalie he would let her stay on. Helene seemed to be satisfied, and behaved better to Rosalie, who began to mend again.

M. Bidard went into the country on the 21st of June, taking Rosalie with him. They returned on the 22nd. The witness himself went to the pharmacy to get a final purgative of Epsom salts, which had been ordered for Rosalie by the doctor. This the witness himself divided into three portions, each of which he dissolved in separate glasses of whey prepared by Helene. The witness administered the first dose. Helene gave the last. The invalid vomited it. She was extremely ill on the night of the 22nd-23rd, and Helene returned to misgivings about the skill of the doctors. She kept repeating, "Ah! Rosalie will die! I tell you she will die!" On the day of the 23rd she openly railed against them. M. Boudin had prescribed leeches and blisters. "Look at that now, monsieur," Helene said to the witness. "To-morrow's Rosalie's name-day, and they're going to put leeches on her!" Rather disturbed, M. Bidard wrote to Dr Pinault, who came next day and gave the treatment his approval.

Dr Boudin had said the invalid might have gooseberry syrup with seltzer water. Two glasses of the mixture given to Rosalie by her mother seemed to do the girl good, but after the third glass she did not want any more. Helene had given her this third glass. The invalid said to the witness, "I don't know what Helene has put into my drink, but it burns me like red-hot iron."

"Struck by those symptoms," added M. Bidard, "I questioned Helene at once. It has not been given me more than twice in my life to see Helene's eyes. I saw at that moment the look she flung at Rosalie. It was the look of a wild beast, a tiger-cat. At that moment my impulse was to go to my work-room for a cord, and to tie her up and drag her to the justiciary. But one reflection stopped me. What was this I was about to do—disgrace a woman on a mere suspicion? I hesitated. I did not know whether I had before me a poisoner or a woman of admirable devotion."

The witness enlarged on the tortures of mind he experienced during the night, but said he found reason to congratulate himself on not having given way to his first impulse. On the morning of the 24th Helene came running to him, all happiness, to say that Rosalie was better.

Three days later Rosalie seemed to be nearly well, so much so that M. Bidard felt he might safely go into the country. Next day, however, he was shocked by the news that Rosalie was as ill as ever. He hastened to return to Rennes.

On the night of the 28th-29th the sickness continued with intensity. Every two hours the invalid was given calming medicine prescribed by Dr Boudin. Each time the sickness redoubled in violence. Believing it was a case of worms, the witness got out of bed, and substituted for the medicine a strong infusion of garlic. This stopped the sickness temporarily. At six in the morning it began again.

The witness then ran to Dr Pinault's, but met the doctor in the street with his confrere, Dr Guyot. To the two doctors M. Bidard expressed the opinion that there were either worms in the intestines or else the case was one of poisoning. "I have thought that," said Dr Pinault, "remembering the case of the other girl." The doctors went back with M. Bidard to his house. Magnesia was administered in a strong dose. The vomiting stopped. But it was too late.

Until that day the witness's orders that the ejected matter from the invalid should be conserved had been ignored. The moment a vessel was dirty

Helene took it away and cleaned it. But now the witness took the vessels himself, and locked them up in a cupboard for which he alone had the key. His action seemed to disturb Helene Jegado. From this he judged that she had intended destroying the poison she had administered.

From that time Rosalie was put into the care of her mother and a nurse. Helene tried hard to be rid of the two women, accusing them of tippling to the neglect of the invalid. "I will sit up with her," she said to the witness. The witness did not want her to do so, but he could not prevent her joining the mother.

In the meantime Rosalie suffered the most dreadful agonies. She could neither sit up nor lie down, but threw herself about with great violence. During this time Helene was constantly coming and going about her victim. She had not the courage, however, to watch her victim die. At five in the morning she went out to market, leaving the mother alone with her child. The poor mother, worn out with her exertions, also went out, to ask for help from friends. Rosalie died in the presence of the witness at seven o'clock in the morning of the 1st of July. Helene returned. "It is all over," said the witness. Helene's first move was to look for the vessels containing the ejections of the invalid to throw them out. These were green in hue. M. Bidard stopped her, and locked the vessels up. That same day justice was invoked.

M. Bidard's deposition had held his hearers spellbound for over an hour and a half. He had believed, he added finally, that, in spite of her criminal conduct, Helene at least was a faithful servant. He had been wrong. She had put his cellar to pillage, and in her chest they had found many things belonging to him, besides a diamond belonging to his daughter and her wedding-ring.

The President questioned Helene on the points of this important deposition. Helene simply denied everything. It had not been she who was jealous of Rosalie, but Rosalie who had been jealous of her. She had given the two girls all the nursing she could, with no intention but that of helping them to get better. To the observation of the President, once again, that arsenic had been administered, and to his question, what person other than she had a motive for poisoning the girls, or had such opportunity for doing so, Helene answered defiantly, "You won't redden my face by talking of arsenic. I defy anybody to say they saw me give arsenic."

The Procureur-General invited M. Bidard to say what amount of intelligence he had found in Helene. M. Bidard declared that he had never seen in any of his servants an intelligence so acute or subtle. He held her to be a phenomenon in hypocrisy. He put forward a fact which he had neglected to mention in his deposition. It might throw light on the character of the accused. Francoise had a dress hanging up to dry in the mansard. Helene went up to the garret above this, made a hole in the ceiling, and dropped oil of vitriol on her companion's dress to burn it.

Dr Pinault gave an account of Rosalie's illness, and spoke of the suspicions he and his colleagues had had of poisoning. It was a crime, however, for which there seemed to be no motive. The poisoner could hardly be M. Bidard, and as far as suspicion might touch the cook, she seemed to be lavish in her care of the patient. It was not until the very last that he, with his colleagues, became convinced of poison.

Rosalie dead, the justiciary went to M. Bidard's. The cupboards were searched carefully. The potion which Rosalie had thought to be mixed with burning stuff was still there, just sampled. It was put into a bottle and capped.

An autopsy could not now be avoided. It was held next day. M. Pinault gave an account of the results. Most of the organs were in a normal condition, and such slight alterations as could be seen in others would not account for death. It was concluded that death had been occasioned by poison. The autopsy on the exhumed body of Perrotte Mace was inconclusive, owing to the condition of adipocere.

Dr Guyot spoke of the case of Francoise Huriaux, and was now sure she had been given poison in small doses. Dr Boudin described the progress of Rosalie's illness. He was in no doubt, like his colleagues, that she had been poisoned.

The depositions of various witnesses followed. A laundress said that Helene's conduct was to be explained by jealousy. She could not put up with any supervision, but wanted full control of the household and of the money.

Francoise Huriaux said Helene was angry because M. Bidard would not have her as sole domestic. She had resented Francoise's being engaged. The witness noticed that she became ill whenever she ate food prepared for her

by Helene. When she did not eat Helene was angry but threw out the food Francoise refused.

Several witnesses testified to the conduct of Helene towards Rosalie Sarrazin during her fatal illness. Helene was constant, self-sacrificing, in her attention to the invalid. One incident, however, was described by a witness which might indicate that Helene's solicitude was not altogether genuine. One morning, towards the end of Rosalie's life, the patient, in her agony, escaped from the hold of her mother, and fell into an awkward position against the wall. Rosalie's mother asked Helene to place a pillow for her. "Ma foi!" Helene replied. "You're beginning to weary me. You're her mother! Help her yourself!"

The testimony of a neighbour, one Francoise Louarne, a domestic servant, supports the idea that Helene resented the presence of Rosalie in the house. Helene said to this witness, "M. Bidard has gone into the country with his housemaid. Everything SHE does is perfect. They leave me here—to work if I want to, eat my bread dry: that's my reward. But the housemaid will go before I do. Although M. Bidard has given me my notice, he'll have to order me out before I'll go. Look!" Helene added. "Here's the bed of the ugly housemaid—in a room not too far from the master's. Me—they stick me up in the mansard!" Later, when Rosalie was very ill, Helene pretended to be grieved. "You can't be so very sorry," the witness remarked; "you've said plenty that was bad about the girl."

Helene vigorously denounced the testimony as all lies. The woman had never been near Bidard's house.

The pharmacist responsible for dispensing the medicines given to Rosalie was able to show that arsenic could not have got into them by mistake on his part.

At the hearing of the trial on the 12th of December Dr Pinault was asked to tell what happened when the emissions of Rosalie Sarrazin were being transferred for analysis.

DR PINAULT. As we were carrying out the operation Helene came in, and it was plain that she was put out of countenance.

M. BIDARD [interposing]. We were in my daughter's room, where nobody ever came. When Helene came to the door I was surprised. There was no explanation for her appearance except that she was inquisitive.

DR PINAULT. She seemed to be disturbed at not finding the emissions by the bed of the dead girl, and it was no doubt to find them that she came to the room.

HELENE. I had been given a funnel to wash. I was bringing it back.

M. BIDARD. Helene, with her usual cleverness, is making the most of a fact. She had already appeared when she was given the funnel. Her presence disturbed me. And to get rid of her I said, "Here, Helene, take this away and wash it."

The accused persisted in denying M. Bidard's version of the incident.

V

M. Malagutti, professor of chemistry to the faculty of sciences in Rennes, who, with M. Sarzeau, had been asked to make a chemical analysis of the reserved portions of the bodies of Rosalie, Perrotte Mace, and Rose Tessier, gave the results of his and his colleague's investigations. In the case of Rosalie they had also examined the vomitings. The final test on the portions of Rosalie's body carried out with hydrochloronitric acid—as best for the small quantities likely to result in poisoning by small doses—gave a residue which was submitted to the Marsh test. The tube showed a definite arsenic ring. Tests on the vomit gave the same result.

The poisoning of Perrotte Mace had also been accomplished by small doses. Arsenic was found after the strictest tests, which obviated all possibility that the substance could have come from the ground in which the body was interred.

In the case of Rose Tessier the tests yielded a huge amount of arsenic. Rose had died after an illness of only four days. The large amount of arsenic indicated a brutal and violent poisoning, in which the substance could not be excreted in the usual way.

The President then addressed the accused on this evidence. She alone had watched near all three of the victims, and against all three she had motives of hate. Poisoning was established beyond all doubt. Who was the poisoner if not she, Helene Jegado?

Helene: "Frankly, I have nothing to reproach myself with. I gave them only what came from the pharmacies on the orders of the doctors."

After evidence of Helene's physical condition, by a doctor who had seen her in prison (she had a scirrhus tumour on her left breast), the speech for

the defence was made.

M. Dorange was very eloquent, but he had a hopeless case. The defence he put up was that Helene was irresponsible, but the major part of the advocate's speech was taken up with a denouncement of capital punishment. It was a barbarous anachronism, a survival which disgraced civilization.

The President summed up and addressed the jury:

"Cast a final scrutiny, gentlemen of the jury," he said, "at the matter brought out by these debates. Consult yourselves in the calm and stillness of your souls. If it is not proved to you that Helene Jegado is responsible for her actions you will acquit her. If you think that, without being devoid of free will and moral sense, she is not, according to the evidence, as well gifted as the average in humanity, you will give her the benefit of extenuating circumstance.

"But if you consider her culpable, if you cannot see in her either debility of spirit or an absence or feebleness of moral sense, you will do your duty with firmness. You will remember that for justice to be done chastisement will not alone suffice, but that punishment must be in proportion to the offence."

The President then read over his questions for the jury, and that body retired. After deliberations which occupied an hour and a half the jury came back with a verdict of guilty on all points. The Procureur asked for the penalty of death.

THE PRESIDENT. Helene Jegado, have you anything to say upon the application of the penalty?

HELENE. No, Monsieur le President, I am innocent. I am resigned to everything. I would rather die innocent than live in guilt. You have judged me, but God will judge you all. He will see then ... Monsieur Bidard. All those false witnesses who have come here to destroy me... they will see....

In a voice charged with emotion the President pronounced the sentence condemning Helene Jegado to death.

An appeal was put forward on her behalf, but was rejected.

On the scaffold, a few moments before she passed into eternity, having no witness but the recorder and the executioner, faithful to the habits of her life, Helene Jegado accused a woman not named in any of the processes of having urged her to her first crimes and of being her accomplice. The two

officials took no notice of this indirect confession of her own guilt, and the sentence was carried out. The Procureur of Rennes, hearing of this confession, took the trouble to search out the woman named in it. She turned out to be a very old woman of such a pious and kindly nature that the people about her talked of her as the "saint."

It were superfluous to embark on analysis of the character of Helene Jegado. Earlier on, in comparing her with Van der Linden and the Zwanziger woman, I have lessened her caliginosity as compared with that of the Leyden poisoner, giving her credit for one less death than her Dutch sister in crime. Having investigated Helene's activities rather more closely, however, I find I have made mention of no less than twenty-eight deaths attributed to Helene, which puts her one up on the Dutchwoman. The only possible point at which I may have gone astray in my calculations is in respect of the deaths at Guern. The accounts I have of Helene's bag there insist on seven, but enumerate only six—namely, her sister Anna, the cure, his father and mother, and two more (unnamed) after these. The accounts, nevertheless, insist more than once that between 1833 and 1841 Helene put away twenty-three persons. If she managed only six at Guern, that total should be twenty-two. From 1849 she accounted for Albert Rabot, the infant Ozanne, Perrotte Mace, Rose Tessier, and Rosalie Sarrazin—five. We need no chartered accountant to certify our figures if we make the total twenty-eight. Give her the benefit of the doubt in the case of Albert Rabot, who was ill anyhow when Helene joined the household, and she still ties with Van der Linden with twenty-seven deaths.

There is much concerning Helene Jegado, recorded incidents, that I might have introduced into my account of her activities, and that might have emphasized the outstanding feature of her dingy make-up—that is, her hypocrisy. When Rosalie Sarrazin was fighting for her life, bewailing the fact that she was dying at the age of nineteen, Helene Jegado took a crucifix and made the girl kiss it, saying to her, "Here is the Saviour Who died for you! Commend your soul to Him!" This, with the canting piety of the various answers which she gave in court (and which, let me say, I have transcribed with some reluctance), puts Helene Jegado almost on a level with the sanctimonious Dr Pritchard—perhaps quite on a level with that nauseating villain.

With her twenty-three murders all done without motive, and the five others done for spite—with her twenty-eight murders, only five of which were calculated to bring advantage, and that of the smallest value—it is hard to avoid the conclusion that Helene Jegado was mad. In spite, however, of evidence called in her defence—as, for example, that of Dr Pitois, of Rennes, who was Helene's own doctor, and who said that "the woman had a bizarre character, frequently complaining of stomach pains and formications in the head"—in spite of this doctor's hints of monomania in the accused, the jury, with every chance allowed them to find her irresponsible, still saw nothing in her extenuation. And very properly, since the law held the extreme penalty for such as she, Helene went to the scaffold. Her judges might have taken the sentimental view that she was abnormal, though not mad in the common acceptation of the word. Appalled by the secret menace to human life that she had been scared to think of the ease and the safety in which she had been allowed over twenty odd years to carry agonizing death to so many of her kind, and convinced from the inhuman nature of her practices that she was a *lusus naturae*, her judges, following sentimental Anglo-Saxon example, might have given her asylum and let her live for years at public expense. But possibly they saw no social or Civic advantage in preserving her, so anti-social as she was. They are a frugal nation, the French.

VI

Having made you sup on horror a la Bretonne, or Continental fashion, I am now to give you a savoury from England. This lest you imagine that France, or the Continent, has a monopoly in wholesale poison. Let me introduce you, as promised earlier, to Mary Ann Cotton aged forty-one, found guilty of and sentenced to death for the murder of a child, Charles Edward Cotton, by giving him arsenic.

Rainton, in Durham, was the place where, in 1832 Mary Ann found mortal existence. At the age of fifteen or sixteen she began to earn her own living as a nursemaid, an occupation which may appear to have given her a distaste for infantile society. At the age of nineteen and at Newcastle she married William Mowbray, a collier, and went with him to live in Cornwall. Here the couple remained for some years.

It was a fruitful marriage. Mary bore William five children in Cornwall, but, unfortunately, four of the children died—suddenly. With the remaining

child the pair moved to Mary's native county. They had hardly settled down in their new home when the fifth child also died. It died, curiously enough, of the ailment which had supposedly carried off the other four children—gastric fever.

Not long after the death of this daughter the Mowbrays removed to Hendon, Sunderland, and here a sixth child was born. It proved to be of as vulnerable a constitution as its brothers and sisters, for it lasted merely a year. Four months later, while suffering from an injured foot, which kept him at home, William Mowbray fell ill, and died with a suddenness comparable to that which had characterized the deaths of his progeny. His widow found a job at the local infirmary, and there she met George Ward. She married Mr Ward, but not for long. In a few months after the nuptials George Ward followed his predecessor, Mowbray, from an illness that in symptoms and speed of fatality closely resembled William's.

We next hear of Mary as housekeeper to a widower named Robinson, whose wife she soon became. Robinson had five children by his former wife. They all died in the year that followed his marriage with Mary Ann, and all of 'gastric fever.'

The second Mrs Robinson had two children by this third husband. Both of these perished within a few weeks of their birth.

Mary Ann's mother fell ill, though not seriously. Mary Ann volunteered to nurse the old lady. It must now be evident that Mary Ann was a 'carrier' of an obscure sort of intestinal fever, because soon after her appearance in her mother's place the old lady died of that complaint.

On her return to her own home, or soon after it, Mary was accused by her husband of robbing him. She thought it wise to disappear out of Robinson's life, a deprivation which probably served to prolong it.

Under her old name of Mowbray, and by means of testimonials which on later investigation proved spurious, Mary Ann got herself a housekeeping job with a doctor in practice at Spennymore. Falling into error regarding what was the doctor's and what was her own, and her errors being too patent, she was dismissed.

Wallbottle is the scene of Mary Ann's next activities. Here she made the acquaintance of a married man with a sick wife. His name was Frederick Cotton. Soon after he had met Mary Ann his wife died. She died of consumption, with no more trace of gastric fever than is usual in her

disease. But two of Cotton's children died of intestinal inflammation not long after their mother, and their aunt, Cotton's sister, who kept house for him, was not long in her turn to sicken and die in a like manner.

The marriage which Mary Ann brought off with Frederick Cotton at Newcastle anticipated the birth of a son by a mere three months. With two of Cotton's children by his former marriage, and with the infant son, the pair went to live at West Auckland. Here Cotton died—and the three children—and a lodger by the curious name of Natrass.

Altogether Mary Ann, in the twenty years during which she had been moving in Cornwall and about the northeastern counties, had, as it ultimately transpired, done away with twenty-four persons. Nine of these were the fruit of her own loins. One of them was the mother who gave her birth. Retribution fell upon her through her twenty-fourth victim, Charles Edward Cotton, her infant child. His death created suspicion. The child, it was shown, was an obstacle to the marriage which she was already contemplating—her fifth marriage, and, most likely, bigamous at that. The doctor who had attended the child refused a death certificate. In post-mortem examination arsenic was found in the child's body. Cotton was arrested.

She was brought to trial in the early part of 1873 at Durham Assizes. As said already, she was found guilty and sentenced to death, the sentence being executed upon her in Durham Gaol in March of that year. Before she died she made the following remarkable statement: "I have been a poisoner, but not intentionally."

It is believed that she secured the poison from a vermicide in which arsenic was mixed with soft soap. One finds it hard to believe that she extracted the arsenic from the preparation (as she must have done before administering it, or otherwise it must have been its own emetic) unintentionally.

What advantage Mary Ann Cotton derived from her poisonings can have been but small, almost as small as that gained by Helene Jegado. Was it for social advancement that she murdered husbands and children? Was she a 'climber' in that sphere of society in which she moved? One hesitates to think that passion swayed her in being rid of the infant obstacle to the fifth marriage of her contemplation. With her "all o'er-teeming loins," this

woman, Hecuba in no other particular, must have been a very sow were this her motive.

But I have come almost by accident on the word I need to compare Mary Ann Cotton with Jegado. The Bretonne, creeping about her native province leaving death in her track, with her piety, her hypocrisy, her enjoyment of her own cruelty, is sinister and repellent. But Mary Ann, moving from mate to mate and farrowing from each, then savaging both them and the litter, has a musty sowishness that the Bretonne misses. Both foul, yes. But we needn't, we islanders, do any Jingo business in setting Mary Ann against Helene.

VII: — THE MERRY WIDOWS

Twenty years separate the cases of these two women, the length of France lies between the scenes in which they are placed: Mme Boursier, Paris, 1823; Mme Lacoste, Riguepeu, a small town in Gascony, 1844. I tie their cases together for reasons which cannot be apparent until both their stories are told—and which may not be so apparent even then. That is not to say I claim those reasons to be profound, recondite, or settled in the deeps of psychology. The matter is, I would not have you believe that I join their cases because of similarities that are superficial. My hope is that you will find, as I do, a linking which, while neither profound nor superficial, is curious at least. As I cannot see that the one case transcends the other in drama or interest, I take them chronologically, and begin with the *Veuve Boursier*:

At the corner of Rue de la Paix and Rue Neuve Saint-Augustine in 1823 there stood a boutique d'epiceries. It was a flourishing establishment, typical of the Paris of that time, and its proprietors were people of decent standing among their neighbours. More than the prosperous condition of their business, which was said to yield a profit of over 11,000 francs per annum, it was the happy and cheerful relationship existing between les epoux Boursier that made them of such good consideration in the district. The pair had been married for thirteen years, and their union had been blessed by five children.

Boursier, a middle-aged man of average height, but very stout of build and asthmatically short of neck, was recognized as a keen trader. He did most of his trading away from the house in the Rue de la Paix, and paid frequent visits, sometimes entire months in duration, to Le Havre and Bordeaux. It is nowhere suggested that those visits were made on any occasion other than that of business. M. Boursier spent his days away from the house, and his evenings with friends.

It does not anywhere appear that Mme Boursier objected to her husband's absenteeism. She was a capable woman, rather younger than her husband, and of somewhat better birth and education. She seems to have been content with, if she did not exclusively enjoy, having full charge of the business in

the shop. Dark, white of tooth, not particularly pretty, this woman of thirty-six was, for her size, almost as stout as her husband. It is said that her manner was a trifle imperious, but that no doubt resulted from knowledge of her own capability, proved by the successful way in which she handled her business and family responsibilities.

The household, apart from Mme and M. Boursier, and counting those employed in the epicerie, consisted of the five children, Mme Boursier's aunt (the *Veuve Flamand*), two porters (*Delonges* and *Beranger*), Mlle *Reine* (the clerk), *Halbout* (the book-keeper), and the cook (*Josephine Blin*).

On the morning of the 28th of June, which would be a Sunday, Boursier was called by the cook to take his usual *dejeuner*, consisting of chicken broth with rice. He did not like the taste of it, but ate it. Within a little time he was violently sick, and became so ill that he had to go to bed. The doctor, who was called almost immediately, saw no cause for alarm, but prescribed mild remedies. As the day went on, however, the sickness increased in violence. Dr *Bordot* became anxious when he saw the patient again in the evening. He applied leeches and mustard poultices. Those ministrations failing to alleviate the sufferings of the invalid, Dr *Bordot* brought a colleague into consultation, but neither the new-comer, Dr *Partra*, nor himself could be positive in diagnosis. Something gastric, it was evident. They did what they could, though working, as it were, in the dark.

The patient was no better next day. As night came on he was worse than ever. A medical student named *Toupie* was enlisted as nurse and watcher, and sat with the sufferer through the night—but to no purpose. At four o'clock in the morning of the Tuesday, the 30th, there came a crisis in the illness of Boursier, and he died.

The grief exhibited by Mme Boursier, so suddenly widowed, was just what might have been expected in the circumstances from a woman of her station. She had lost a good-humoured companion, the father of her five children, and the man whose genius in trading had done so much to support her own activities for their mutual profit. The *Veuve Boursier* grieved in adequate fashion for the loss of her husband, but, being a capable woman and responsible for the direction of affairs, did not allow her grief to overwhelm her. The dead epicier was buried without much delay—the weather was hot, and he had been of gross habit—and the business at the

corner of Rue de la Paix went on as near to usual as the loss of the 'outside' partner would allow.

Rumour, meantime, had got to work. There were circumstances about the sudden death of Boursier which the busybodies of the environs felt they might regard as suspicious. For some time before the death of the epicier there had been hanging about the establishment a Greek called Kostolo. He was a manservant out of employ, and not, even on the surface, quite the sort of fellow that a respectable couple like the Boursiers might be expected to accept as a family friend. But such, no less, had been the Greek's position with the household. So much so that, although Kostolo had no money and apparently no prospects, Boursier himself had asked him to be godfather to a niece. The epicier found the Greek amusing, and, on falling so suddenly ill, made no objection when Kostolo took it on himself to act as nurse, and to help in the preparing of drinks and medicines that were prescribed.

It is perhaps to the rather loud-mouthed habits of this Kostolo that the birth of suspicion among the neighbours may be attributed. On the death of Boursier he had remarked that the nails of the corpse were blue a colour, he said, which was almost a certain indication of poisoning. Now, the two doctors who had attended Boursier, having failed to account for his illness, were inclined to suspect poisoning as the cause of his death. For this reason they had suggested an autopsy, a suggestion rejected by the widow. Her rejection of the idea aroused no immediate suspicion of her in the minds of the doctors.

Kostolo, in addition to repeating outside the house his opinion regarding the blueness of the dead Boursier's nails, began, several days after the funeral, to brag to neighbours and friends of the warm relationship existing between himself and the widow. He dropped hints of a projected marriage. Upon this the neighbours took to remembering how quickly Kostolo's friendship with the Boursier family had sprung up, and how frequently he had visited the establishment. His nursing activities were remembered also. And it was noticed that his visits to the Boursier house still went on; it was whispered that he visited the Veuve Boursier in her bedroom.

The circumstances in which Boursier had fallen ill were well known. Nobody, least of all Mme Boursier or Kostolo, had taken any trouble to conceal them. Anybody who liked to ask either Mme Boursier or the Greek about the soup could have a detailed story at once. All the neighbourhood

knew it. And since the Veuve Boursier's story is substantially the same as other versions it may as well be dealt with here and now.

M. Boursier, said his widow, tasted his soup that Sunday morning. "What a taste!" he said to the cook, Josephine. "This rice is poisoned."

"But, monsieur," Josephine protested, "that's amazing! The potage ought to be better than usual this morning, because I made a liaison for it with three egg-yolks!"

M. Boursier called his wife, and told her he couldn't eat his potage au riz. It was poisoned. Mme Boursier took a spoonful of it herself, she said, and saw nothing the matter with it. Whereupon her husband, saying that if it was all right he ought to eat it, took several spoonfuls more.

"The poor man," said his widow, "always had a bad taste in his mouth, and he could not face his soup." Then, she explained, he became very sick, and brought up what little of the soup he had taken, together with flots de bile.

All this chatter of poison, particularly by Kostolo and the widow, together with the persistent rumours of an adulterous association between the pair, gave colour to suspicions of a criminal complicity, and these in process of time came to the ears of the officers of justice. The two doctors were summoned by the Procureur-General, who questioned them closely regarding Boursier's illness. To the mind of the official everything pointed to suspicion of the widow. Word of the growing suspicion against her reached Mme Boursier, and she now hastened to ask the magistrates for an exhumation and a post-mortem examination. This did not avert proceedings by the Procureur. It was already known that she had refused the autopsy suggested by the two doctors, and it was stated that she had hurried on the burial.

Kostolo and the Widow Boursier were called before the Juge d'instruction.

II

There is about the Greek Kostolo so much gaudy impudence and barefaced roguery that, in spite of the fact that the main concern of these pages is with women, I am constrained to add his portrait to the sketches I have made in illustration. He is of the gallery in which are Jingle and

Montague Tigg, with this difference—that he is rather more sordid than either.

Brought before the Procureur du Roi, he impudently confessed that he had been, and still was, Mme Boursier's lover. He told the judge that in the lifetime of her husband Mme Boursier had visited him in his rooms several times, and that she had given him money unknown to her husband.

Mme Boursier at first denied the adulterous intimacy with Kostolo, but the evidence in the hands of the Procureur was too much for her. She had partially to confess the truth of Kostolo's statement in this regard. She emphatically denied, however, that she had ever even thought of, let alone agreed to, marriage with the Greek. She swore that she had been intimate with Kostolo only once, and that, as far as giving him money was concerned, she had advanced him but one small sum on his IOU.

These confessions, together with the information which had come to him from other investigations, served to increase the feeling of the Procureur that Boursier's death called for probing. He issued an exhumation order, and on the 31st of July an autopsy on the body of Boursier was carried out by MM. Orfila and Gardy, doctors and professors of the Paris faculty of medicine. Their finding was that no trace existed of any disorders to which the death of Boursier might be attributed—such, for example, as cerebral congestion, rupture of the heart or of a larger vessel—but that, on the other hand, they had come upon a sufficiency of arsenic in the intestines to have caused death.

On the 2nd of August the same two professors, aided by a third, M. Barruel, carried out a further examination of the body. Their testimony is highly technical. It is also rather revolting. I am conscious that, dealing, as I have had to, with so much arsenical poisoning (the favourite weapon of the woman murderer), a gastric odour has been unavoidable in many of my pages—perhaps too many. For that reason I shall refrain from quoting either in the original French or in translation more than a small part of the professors' report. I shall, however, make a lay shot on the evidence it supplies. Boursier's interior generally was in foul condition, which is not to be explained by any ingestion of arsenic, but which suggests chronic and morbid pituitousness. The marvel is that the man's digestion functioned at all. This insanitary condition, however, was taken by the professors, as it

were, in their stride. They concentrated on some slight traces of intestinal inflammation.

"One observed," their report went on, about the end of the ileum some grains of a whitish appearance and rather stubbornly attached. These grains, being removed, showed all the characteristics of white arsenic oxide. Put upon glowing charcoal they volatilized, giving off white smoke and a garlic odour. Treated with water, they dissolved, and the solution, when brought into contact with liquid hydrosulphuric acid, precipitated yellow sulphur of arsenic, particularly when one heated it and added a few drops of hydrochloric acid.

These facts (including, I suppose, the conditions I have hinted at) allowed them to conclude (a) that the stomach showed traces of inflammation, and (b) that the intestinal canal yielded a quantity of arsenic oxide sufficient to have produced that inflammation and to have caused death.

The question now was forward as to where the arsenic found in the body had come from. Inquiry established the fact that on the 15th of May, 1823—that is to say, several weeks before his death—Boursier had bought half a pound of arsenic for the purpose of destroying the rats in his shop cellars. In addition, he had bought prepared rat-poison. Only a part of those substances had been used. The remaining portions could not be found about the shop, nor could Mme Boursier make any suggestions for helping the search. She declared she had never seen any arsenic about the house at all.

There was, however, sufficient gravity in the evidences on hand to justify a definite indictment of Mme Boursier and Nicolas Kostolo, the first of having poisoned her husband, and the second of being accessory to the deed.

The pair were brought to trial on the 27th of November, 1823, before the Seine Assize Court, M. Hardouin presiding. The prosecution was conducted by the Avocat-General, M. de Broe. Maitre Couture defended Mme Boursier. Maitre Theo. Perrin appeared for Kostolo.

The case created great excitement, not only in Paris, but throughout the country. Another poisoning case had not long before this occupied the minds of the public very greatly—that of the hypocritical Castaing for the murder of Auguste Ballet. Indeed, there had been a lot of poisoning going on in French society about this period. Political and religious controversy, moreover, was rife. The populace were in a mood either to praise

extravagantly or just as extravagantly to condemn. It happened that rumour convinced them of the guilt of the Veuve Boursier and Kostolo, and the couple were condemned in advance. Such was the popular spite against Mme Boursier and Kostolo that, it is said, Maitre Couture at first refused the brief for the widow's defence. He had already made a success of his defence of a Mme Lavaillaut, accused of poisoning, and was much in demand in cases where women sought judicial separation from their husbands. People were calling him "Providence for women." He did not want to be nicknamed "Providence for poisoners." But Mme Boursier's case being more clearly presented to him he took up the brief.

The accused were brought into court.

Kostolo was about thirty years of age. He was tall, distinctly good-looking in an exotic sort of way, with his dark hair, complexion, and flashing eyes. He carried himself grandly, and was elegantly clad in a frac noir. Not quite, as Army men were supposed once to say, "the clean potato," it was easy enough to see that women of a kind would be his ready victims. It was plain, in the court, that Master Nicolas thought himself the hero of the occasion.

There was none of this flamboyance about the Widow Boursier. She was dressed in complete mourning, and covered her face with a handkerchief. It was manifest that, in the phrase of the crime reporters, "she felt her position keenly." The usual questions as to her name and condition she answered almost inaudibly, her voice choked with sobs.

Kostolo, on the contrary, replied in organ tones. He said that he was born in Constantinople, and that he had no estate.

The acte d'accusation was read. It set forth the facts of the adulterous association of the two accused, of the money lent by Mme Boursier to Kostolo, of their meetings, and all the suspicious circumstances previous to the death of the epicier.

The cook-girl, Josephine Blin, had prepared the potage au riz in the kitchen, using the small iron pan that it was her wont to employ. Having made the soup, she conveyed it in its terrine to a small secretaire in the dining-room. This secretaire stood within the stretch of an arm from the door of the comptoir in which Mme Boursier usually worked. According to custom, Josephine had divided the potage in two portions—one for Boursier

and the other for the youngest child. The youngster and she had eaten the second portion between them, and neither had experienced any ill-effects.

Josephine told her master that the soup was ready. He came at her call, but did not eat the soup at once, being otherwise occupied. The soup stood on the secretaire for about fifteen minutes before Boursier started to eat it.

According to the accused, the accusation went on, after Boursier's death the two doctors asked that they might be allowed to perform an autopsy, since they were at a loss to explain the sudden illness. This Mme Boursier refused, in spite of the insistence of the doctors. She refused, she said, in the interest of her children. She insisted, indeed, on a quick burial, maintaining that, as her husband had been *tres replet*, the body would rapidly putrefy, owing to the prevailing heat, and that thus harm would be done to the delicate contents of the *epicerie*.

Led by rumours of the bluish stains—almost certain indications of a violent death—the authorities, said the accusation, ordered an exhumation and autopsy. Arsenic was found in the body. It was clear that Boursier, ignorant, as he was, of his wife's bad conduct, had not killed himself. This was a point that the widow had vainly attempted, during the process of instruction, to maintain. She declared that one Clap, a friend of her late husband, had come to her one day to say that a certain Charles, a manservant, had remarked to him, "Boursier poisoned himself because he was tired of living." Called before the Juge d'instruction, Henri Clap and Charles had concurred in denying this.

The accusation maintained that the whole attitude of Mme Boursier proved her a poisoner. As soon as her husband became sick she had taken the dish containing the remains of the rice soup, emptied it into a dirty vessel, and passed water through the dish. Then she had ordered Blin to clean it, which the latter did, scrubbing it out with sand and ashes.

Questioned about arsenic in the house, Mme Boursier said, to begin with, that Boursier had never spoken to her about arsenic, but later admitted that her husband had mentioned both arsenic and *mort aux rats* to her.

Asked regarding the people who frequented the house she had mentioned all the friends of Boursier, but neglected to speak of Kostolo. Later she had said she never had been intimate with the Greek. But Kostolo, "barefaced enough for anything," had openly declared the nature of his relations with her. Then Mme Boursier, after maintaining that she had been no more than

interested in Kostolo, finding pleasure in his company, had been constrained to confess that she had misconducted herself with the Greek in the dead man's room. She had given Kostolo the run of her purse, the accusation declared, though she denied the fact, insisting that what she had given him had been against his note. There was only one conclusion, however. Mme Boursier, knowing the poverty of her paramour, had paid him as her cicerone, squandering upon him her children's patrimony.

The accusation then dealt with the supposed project of marriage, and declared that in it there was sufficient motive for the crime. Kostolo was Mme Boursier's accomplice beyond any doubt. He had acted as nurse to the invalid, administering drinks and medicines to him. He had had full opportunity for poisoning the grocer. Penniless, out of work, it would be a good thing for him if Boursier was eliminated. He had been blatant in his visits to Mme Boursier after the death of the husband.

Then followed the first questioning of the accused.

Mme Boursier said she had kept tryst with Kostolo in the Champs-Elysees. She admitted having been to his lodgings once. On the mention of the name of Mlle Riene, a mistress of Kostolo's, she said that the woman was partly in their confidence. She had gone with Mlle Riene twice to Kostolo's rooms. Once, she admitted, she had paid a visit to Versailles with Kostolo unknown to her husband.

Asked if her husband had had any enemies, Mme Boursier said she knew of none.

The questioning of Kostolo drew from him the admission that he had had a number of mistresses all at one time. He made no bones about his relations with them, nor about his relations with Mme Boursier. He was quite blatant about it, and seemed to enjoy the show he was putting up. Having airily answered a question in a way that left him without any reputation, he would sweep the court with his eyes, preening himself like a peacock.

He was asked about a journey Boursier had proposed making. At what time had Boursier intended making the trip?

"Before his death," Kostolo replied.

The answer was unintentionally funny, but the Greek took credit for the amusement it created in court. He conceived himself a humorist, and the

fact coloured all his subsequent answers.

Kostolo said that he had called to see Boursier on the first day of his illness at three in the afternoon. He himself had insisted on helping to nurse the invalid. Mme Boursier had brought water, and he had given it to the sick man.

After Boursier's death he had remarked on the blueness of the fingernails. It was a condition he had seen before in his own country, on the body of a prince who had died of poison, and the symptoms of whose illness had been very like those in Boursier's. He had then suspected that Boursier had died of poisoning.

The loud murmurs that arose in court upon his blunt confession of having misconducted himself with Mme Boursier fifteen days after her husband's death seemed to evoke nothing but surprise in Kostolo. He was then asked if he had proposed marriage to Mme Boursier after Boursier's death.

"What!" he exclaimed, with a grin. "Ask a woman with five children to marry me—a woman I don't love?"

Upon this answer Kostolo was taken to task by the President of the court. M. Hardouin pointed out that Kostolo lived with a woman who kept and fed him, giving him money, but that at the same time he was taking money from Mme Boursier as her lover, protesting the while that he loved her. What could the Greek say in justification of such conduct?

"Excuse me, please, everybody," Kostolo replied, unabashed. "I don't know quite how to express myself, but surely what I have done is quite the common thing? I had no means of living but from what Mme Boursier gave me."

The murmurs evoked by the reply Kostolo treated with lofty disdain. He seemed to find his audience somewhat prudish.

To further questioning he answered that he had never proposed marriage to the Veuve Boursier. Possibly something might have been said in fun. He knew, of course, that the late Boursier had made a lot of money.

The cook, Josephine Blin, was called. At one time she had been suspect. Her version of the potage incidents, though generally in agreement with that of the accused widow, differed from it in two essential points. When she took Boursier's soup into the dining-room, she said, Mme Boursier was in the comptoir, three or four paces away from the desk on which she put the

terrific. This Mme Boursier denied. She said she had been in the same comptoir as her husband. Josephine declared that Mme Boursier had ordered her to clean the soup-dish out with sand, but her mistress maintained she had bade the girl do no more than clean it. For the rest, Josephine thought about fifteen minutes elapsed before Boursier came to take the soup. During that time she had seen Mme Boursier writing and making up accounts.

Toupin, the medical student, said he had nursed Boursier during the previous year. Boursier was then suffering much in the same way as he had appeared to suffer during his fatal illness. He had heard Mme Boursier consulting with friends about an autopsy, and her refusal had been on their advice.

The doctors called were far from agreeing on the value of the experiments they had made. Orfila, afterwards to intervene in the much more universally notorious case of Mme Lafarge, stuck to his opinion of death by arsenic. If his evidence in the Lafarge case is read it will be seen that in the twenty years that had passed from the Boursier trial his notions regarding the proper routine of analysis for arsenic in a supposedly poisoned body had undergone quite a change. But by then the Marsh technique had been evolved. Here, however, he based his opinion on experiments properly described as "very equivocal;" and stuck to it. He was supported by a colleague named Lesieur.

M. Gardy said he had observed that the greater part of the grains about the ileum, noted on the 1st of August, had disappeared next day. The analysis had been made with quantities too small. He now doubted greatly if the substance taken to be arsenic oxide would account for death.

M. Barruel declared that from the glaucous matter removed from the body only a grain of the supposed arsenic had been extracted, and that with difficulty. He had put the substance on glowing charcoal, but, in his opinion, the experiment was VERY EQUIVOCAL. It was at first believed that there was a big amount of arsenic, but he felt impelled to say that the substance noted was nothing other than small clusters of fat. The witness now refused to conclude, as he had concluded on the 1st of August, that enough poison had been in the body to cause death.

It would almost seem that the medical evidence should have been enough to destroy the case for the prosecution, but other witnesses were called.

Bailli, at one time a clerk to Boursier, said he had helped his patron to distribute arsenic and rat-poison in the shop cellars. He was well aware that the whole of the poison had not been used, but in the course of his interrogation he had failed to remember where the residue of the poisons had been put. He now recollected. The unused portion of the arsenic had been put in a niche of a bottle-rack.

In view of evidence given by a subsequent witness Bailli's rather sudden recovery of memory might have been thought odd if a friend of his had not been able to corroborate his statement. The friend was one Rousselot, another grocer. He testified that he and Bailli had searched together. Bailli had then cudgelled that dull ass, his brain, to some effect, for they had ultimately come upon the residue of the arsenic bought by Boursier lying with the remainder of the mort aux rats. Both the poisons had been placed at the bottom of a bottle-rack, and a plank had been nailed over them.

Rousselot, asked why he had not mentioned this fact before, answered stupidly, "I thought you knew it!"

The subsequent witness above referred to was an employee in the *Ministere du Roi*, a man named Donzelle. In a stammering and rather confused fashion he attempted to explain that the vacillations of the witness Bailli had aroused his suspicions. He said that Bailli, who at first had been vociferous in his condemnation of the Widow Boursier, had later been rather more vociferous in her defence. The witness (Donzelle) had it from a third party that Mme Boursier's sister-in-law had corrupted other witnesses with gifts of money. Bailli, for example, could have been seen carrying bags of ecus under his arm, coming out of the house of the advocate briefed to defend Mme Boursier.

Bailli, recalled, offered to prove that if he had been to Maitre Couture's house he had come out of it in the same fashion as he had gone in—that was, with a bag of bay salt under each arm.

Maitre Couture, highly indignant, rose to protest against the insinuation of the witness Donzelle, but the President of the court and the *Avocat-General* hastened to say that the eminent and honourable advocate was at no need to justify himself. The President sternly reprimanded Donzelle and sent him back to his seat.

The Avocat-General, M. de Broe, stated the case for the prosecution. He made, as probably was his duty, as much as he could of the arsenic said to have been found in the body (that precipitated as yellow sulphur of arsenic), and of the adultery of Mme Boursier with Kostolo. He dwelt on the cleaning of the soup-dish, and pointed out that while the soup stood on the desk Mme Boursier had been here and there near it, never out of arm's reach. In regard to Kostolo, the Greek was a low scallywag, but not culpable.

The prosecution, you observe, rested on the poison's being administered in the soup.

In his speech for the defence the eloquent Maitre Couture began by condemning the gossip and the popular rumour on which the case had been begun. He denounced the action of the magistrates in instituting proceedings as deplorably unconsidered and hasty.

Mme Boursier, he pointed out, had everything to lose through the loss of her husband. Why should she murder a fine merchant like Boursier for a doubtful quantity like Kostolo? He spoke of the happy relationship that had existed between husband and wife, and, in proof of their kindness for each other, told of a comedy interlude which had taken place on the Sunday morning.

Boursier, he said, had to get up before his wife that morning, rising at six o'clock. His rising did not wake his wife, and, perhaps humorously resenting her lazy torpor, he found a piece of charcoal and decorated her countenance with a black moustache. It was true that Mme Boursier showed some petulance over her husband's prank when she got down at eight o'clock, but her ill-humour did not last long. Her husband caressed and petted her, and before long the wife joined her merry-minded husband in laughing over the joke against her. That, said Maitre Couture, that mutual laughter and kindness, seemed a strange preliminary to the supposed poisoning episode of two hours or so later.

The truth of the matter was that Boursier carried the germ of death in his own body. What enemy had he made? What vengeance had he incurred? Maitre Couture reminded the jury of Boursier's poor physical condition, of his stoutness, of the shortness of his neck. He brought forward Toupie's evidence of Boursier's illness of the previous year, alike in symptoms and in the sufferings of the invalid to that which proved fatal on Tuesday the 30th

of June. Then Maitre Couture proceeded to tear the medical evidence to pieces, and returned to the point that Mme Boursier had been sleeping so profoundly, so serenely, on the morning of her supposed contemplated murder that the prank played on her by her intended victim had not disturbed her.

The President's address then followed. The jury retired, and returned with a verdict of "Not guilty."

On this M. Hardouin discharged the accused, improving the occasion with a homily which, considering the ordeal that Mme Boursier had had to endure through so many months, and that might have been considered punishment enough, may be quoted merely as a fine specimen of salting the wound:

"Veuve Boursier," said he, "you are about to recover that liberty which suspicions of the gravest nature have caused you to lose. The jury declares you not guilty of the crime imputed to you. It is to be hoped that you will find a like absolution in the court of your own conscience. But do not ever forget that the cause of your unhappiness and of the dishonour which, it may be, covers your name was the disorder of your ways and the violation of the most sacred obligations. It is to be hoped that your conduct to come may efface the shame of your conduct in the past, and that repentance may restore the honour you have lost."

IV

Now we come, as the gentleman with the crimson handkerchief coyly showing between dress waistcoat and shirt might have said, waving his pointer as the canvas of the diorama rumbled on its rollers, to Riguepeu!

Some twenty years have elapsed since the Veuve Boursier stumbled from the stand of the accused in the Assize Court of the Seine, acquitted of the poisoning of her grocer husband, but convicted of a moral flaw which may (or may not) have rather diminished thereafter the turnover of the epicerie in the Rue de la Paix. One hopes that her punishment finished with her acquittal, and that the mood of the mob, as apt as a flying straw to veer for a zephyr as for a whirlwind, swung to her favour from mere revulsion on her escape from the scaffold. The one thing is as likely as the other. Didn't the heavy man of the fit-up show, eighteen months after his conviction for rape (the lapse of time being occupied in paying the penalty), return as an actor to the scene of his delinquency to find himself, not, as he expected, pelted

with dead cats and decaying vegetables, but cheered to the echo? So may it have been with the Veuve Boursier.

Though in 1844, the year in which the poison trial at Auch was opened, four years had passed since the conviction of Mme Lafarge at Tulle, controversy on the latter case still was rife throughout France. The two cases were linked, not only in the minds of the lay public, but through close analogy in the idea of lawyers and experts in medical jurisprudence. From her prison cell Marie Lafarge watched the progress of the trial in Gascony. And when its result was published one may be sure she shed a tear or two.

But to Riguepeu...

You will not find it on anything but the biggest-scale maps. It is an inconsiderable town a few miles from Vic-Fezensac, a town not much bigger than itself and some twenty kilometres from Auch, which is the capital of the department of Gers. You may take it that Riguepeu lies in the heart of the Armagnac district.

Some little distance from Riguepeu itself, on the top of a rise, stood the Chateau Philibert, a one-floored house with red tiles and green shutters. Not much of a chateau, it was also called locally La Maison de Madame. It belonged in 1843 to Henri Lacoste, together with considerable land about it. It was reckoned that Lacoste, with the land and other belongings, was worth anything between 600,000 and 700,000 francs.

Henri had become rich late in life. The house and the domain had been left him by his brother Philibert, and another brother's death had also been of some benefit to him. Becoming rich, Henri Lacoste thought it his duty to marry, and in 1839, though already sixty-six years of age, picked on a girl young enough to have been his granddaughter.

Euphemie Verges was, in fact, his grand-niece. She lived with her parents at Mazeyrolles, a small village in the foothills of the Pyrenees. Compared with Lacoste, the Verges were said to be poor. Lacoste took it on himself to look after the girl's education, having her sent at his charges to a convent at Tarbes. In 1841, on the 2nd of May, the marriage took place.

If this marriage of youth with crabbed age resulted in any unhappiness the neighbours saw little of it. Though it was rumoured that for her old and rich husband Euphemie had given up a young man of her fancy in Tarbes, her conduct during the two years she lived with Lacoste seemed to be irreproachable. Lacoste was rather a nasty old fellow from all accounts. He

was niggardly, coarse, and a womanizer. Euphemie's position in the house was little better than that of head domestic servant, but in this her lot was the common one for wives of her station in this part of France. She appeared to be contented enough with it.

About two years after the marriage, on the 16th of May, 1843, to be exact, after a trip with his wife to the fair at Riguepeu, old Lacoste was taken suddenly ill, ultimately becoming violently sick. Eight days later he died.

By a will which Henri had made two months after his marriage his wife was his sole beneficiary, and this will was no sooner proved than the widow betook herself to Tarbes, where she speedily began to make full use of her fortune. Milliners and dressmakers were called into service, and the widow blossomed forth as a lady of fashion. She next set up her own carriage. If these proceedings had not been enough to excite envy among her female neighbours the frequent visits paid to her in her genteel apartments by a young man did the trick. The young man came on the scene less than two months after the death of the old man. It was said that his visits to the widow were prolonged until midnight. Scandal resulted, and out of the scandal rumour regarding the death of Henri Lacoste. It began to be said that the old man had died of poison.

It was in December, six months after the death of Lacoste, that the rumours came to the ears of the magistrates. Nor was there lack of anonymous letters. It was the Widow Lacoste herself, however, who demanded an exhumation and autopsy on the body of her late husband—this as a preliminary to suing her traducers. Note, in passing, how her action matches that of *Veuve Boursier*.

On the orders of the Juge d'instruction an autopsy was begun on the 18th of December. The body of Lacoste was exhumed, the internal organs were extracted, and these, with portions of the muscular tissue, were submitted to analysis by a doctor of Auch, M. Bouton, and two chemists of the same city, MM. Lidange and Pons, who at the same time examined samples of the soil in which the body had been interred. The finding was that the body of Lacoste contained some arsenical preparation.

The matter now appearing to be grave, additional scientific assurance was sought. Three of the most distinguished chemists in Paris were called

into service for a further analysis. They were MM. Devergie, Pelouze, and Flandin. Their report ran in part:

The portion of the liver on which we have experimented proved to contain a notable quantity of arsenic, amounting to more than five milligrammes; the portions of the intestines and tissue examined also contained appreciable traces which, though in smaller proportion than contained by the liver, accord with the known features of arsenical poisoning. There is no appearance of the toxic element in the earth taken from the grave or in the material of the coffin.

As soon as Mme Lacoste was apprised of the findings of the autopsy she got into her carriage and was driven to Auch, where she visited a friend of her late husband and of herself. To him she announced her intention of surrendering herself to the Procureur du Roi. The friend strongly advised her against doing any such thing, advice which Mme Lacoste accepted with reluctance.

On the 5th of January a summons to appear was issued for Mme Lacoste. She was seen that day in Auch, walking the streets on the arm of a friend. She even went to the post-office, but the police agents failed to find her. She stopped the night in the town. Next day she was at Riguepeu. She was getting out of her carriage when a servant pointed out gendarmes coming up the hill with the Mayor. When those officials arrived Euphemie was well away. Search was made through the house and outbuildings, but without result. "Don't bother yourself looking any further, Monsieur le Maire," said one of the servants. "The mistress isn't far away, but she's in a place where I could hide a couple of oxen without you finding them."

From then on Mme Lacoste was hunted for everywhere. The roads to Tarbes, Toulouse, and Vic-Fezensac were patrolled by brigades of gendarmes day and night, but there was no sign of the fugitive. It was rumoured that she had got away to Spain, that she was cached in a barrel at Riguepeu, that she was in the fields disguised as a shepherd, that she had taken the veil.

In the meantime the process against her went forward. Evidence was to hand which seemed to inculcate with Mme Lacoste a poor and old schoolmaster of Riguepeu named Joseph Meilhan. The latter, arrested, stoutly denied not only his own part in the supposed crime, but also the

guilt of Mme Lacoste. "Why doesn't she come forward?" he asked. "She knows perfectly well she has nothing to fear—no more than I have."

From the 'information' laid by the court of first instance at Auch a warrant was issued for the appearance of Mme Lacoste and Meilhan before the Assize of Gers. Mme Lacoste was apparently well instructed by her friends. She did not come into the open until the last possible moment. She gave herself up at the Auch prison on the 4th of July.

Her health seemed to have suffered little from the vicissitudes of her flight. It was noticed that her hair was short, a fact which seemed to point to her having disguised herself. But, it is said, she exhibited a serenity of mind which consorted ill with the idea of guilt. She faced an interrogation lasting three hours without faltering.

On the 10th of July she appeared before the Gers Assize Court, held at Auch. The President was M. Donnoderie. Counsel for the prosecution, as it were, was the Procureur du Roi, M. Cassagnol. Mme Lacoste was defended by Maitre Alem-Rousseau, leader of the bar of Auch.

The case aroused the liveliest interest, people flocking to the town from as far away as Paris itself—so much so that at 6.30 in the morning the one-time palace of the Archbishops of Auch, in the hall of which the court was held, was packed.

The accused were called. First to appear was Joseph Meilhan. He was a stout little old boy of sixty-six, rosy and bright-eyed, with short white hair and heavy black eyebrows. He was calm and smiling, completely master of himself.

Mme Lacoste then appeared on the arm of her advocate. She was dressed in full widow's weeds. A little creature, slender but not rounded of figure, she is described as more agreeable-looking than actually pretty.

After the accused had answered with their names and descriptions the acte d'accusation was read. It was a long document. It recalled the circumstances of the Lacoste marriage and of the death of the old man, with the autopsy and the finding of traces of arsenic. It spoke of the lowly household tasks that Mme Lacoste had performed with such goodwill from the beginning, and of the reward for her diligence which came to her by the making of a holograph will in which her husband made her his sole heir.

But the understanding between husband and wife did not last long, the acte went on. Lacoste ardently desired a son and heir, and his wife appeared to be barren. He confided his grief to an old friend, one Lespere. Lespere pointed out that Euphemie was not only Lacoste's wife, but his kinswoman as well. To this Lacoste replied that the fact did not content him. "I tell you on the quiet," he said to his friend, "I've made my arrangements. If SHE knew—she's capable of poisoning me to get herself a younger man." Lespere told him not to talk rubbish, in effect, but Lacoste was stubborn on his notion.

This was but a year after the marriage. It seemed that Lacoste had a melancholy presentiment of the fate which was to be his.

It was made out that Euphemie suffered from the avarice and jealousy of her old husband. She was given no money, was hardly allowed out of the house, and was not permitted even to go to Vespers alone. And then, said the accusation, she discovered that her husband wanted an heir. She had reason to fear that he would go about getting one by an illicit association.

In the middle of 1842 she overheard her husband bargaining with one of the domestics. The girl was asking for 100 pistoles (say, L85), while her husband did not want to give more than 600 francs (say, L24). "Euphemie Verges had no doubt," ran the accusation, "that this was the price of an adulterous contract, and she insisted on Marie Dupuys' being sent from the house. This was the cause of disagreement between the married pair, which did not conclude with the departure of the servant."

Later another servant, named Jacquette Larrieux, told Mme Lacoste in confidence that the master was trying to seduce her by the offer of a pension of 2000 francs or a lump sum of 20,000.

Euphemie Verges, said the accusation, thus thought herself exposed daily, by the infidelity of her husband, to the loss of all her hopes. Also, talking to a Mme Bordes about the two servants some days after Lacoste's death, she said, "I had a bad time with those two girls! If my husband had lived longer I might have had nothing, because he wanted a child that he could leave everything to."

The acte d'accusation enlarged on the situation, then went on to bring in Joseph Meilhan as Euphemie's accomplice. It made him out to be a bad old man indeed. He had seduced, it was said, a young girl named Lescure, who became enceinte, afterwards dying from an abortion which Meilhan was

accused of having procured. It might be thought that the society of such a bad old man would have disgusted a young woman, but Euphemie Verges admitted him to intimacy. He was, it was said, the confidant for her domestic troubles, and it was further rumoured that he acted as intermediary in a secret correspondence that she kept up with a young man of Tarbes who had been courting her before her marriage. The counsels of such a man were not calculated to help Mme Lacoste in her quarrels with her unfaithful and unlovable husband.

Meanwhile M. Lacoste was letting new complaints be heard regarding his wife. Again Lespere was his confidant. His wife was bad and sulky. He was very inclined to undo what he had done for her. This was in March of 1843.

Towards the end of April he made a like complaint to another old friend, one Dupouy, who accused him of neglecting old friends through uxoriousness. Lacoste said he found little pleasure in his young wife. He was, on the contrary, a martyr. He was on the point of disinheriting her.

And so, with the usual amount of on dit and disait-on, the acte d'accusation came to the point of Lacoste at the Riguepeu fair. He set out in his usual health, but, several hours later, said to one Laffon, "I have the shivers, cramps in the stomach. After being made to drink by that —— Meilhan I felt ill."

Departing from the fair alone, he met up with Jean Durieux, to whom he said, "That —— of a Meilhan asked me to have a drink, and afterwards I had colic, and wanted to vomit."

Arrived home, Lacoste said to Pierre Cournet that he had been seized by a colic which made him ill all over, plaguing him, giving him a desire to vomit which he could not satisfy. Cournet noticed that Lacoste was as white as a sheet. He advised going to bed and taking hot water. Lacoste took the advice. During the night he was copiously sick. The old man was in bed in an alcove near the kitchen, but next night he was put into a room out of the way of noise.

Euphemie looked after her husband alone, preparing his drinks and admitting nobody to see him. She let three days pass without calling a doctor. Lacoste, it was true, had said he did not want a doctor, but, said the accusation, "there is no proof that he persisted in that wish."

On the fourth day she sent a summary of the illness to Dr Boubee, asking for written advice. On the fifth day a surgeon was called, M. Lasmolles, who was told that Lacoste had eaten a meal of onions, garlic stems, and beans. But the story of this meal was a lie, a premeditated lie. On the eve of the fair Mme Lacoste was already speaking of such a meal, saying that that sort of thing always made her husband ill.

According to the accusation, the considerable amount of poison found in the body established that the arsenic had been administered on several occasions, on the first by Meilhan and on the others by Mme Lacoste.

When Henri Lacoste had drawn his last breath his wife shed a few tears. But presently her grief gave place to other preoccupations. She herself looked out the sheet for wrapping the corpse, and thereafter she began to search in the desk for the will which made her her husband's sole heir.

Next day Meilhan, who had not once looked in on Lacoste during his illness, hastened to visit the widow. The widow invited him to dinner. The day after that he dined with her again, and they were seen walking together. Their intimacy seemed to grow daily. But the friendship of Mme Lacoste for Meilhan did not end there. Not very many days after the death of Lacoste Meilhan met the Mayor of Riguepeu, M. Sabazan, and conducted him in a mysterious manner into his schoolroom. Telling the Mayor that he knew him to be a man of discretion, he confided in him that the Veuve Lacoste intended giving him (Meilhan) a bill on one Castera. Did the Mayor know Castera to be all right? The Mayor replied that a bill on Castera was as good as gold itself. Meilhan said that Mme Lacoste had assured him this was but the beginning of what she meant to do for him.

Meilhan wrote to Castera, who called on him. The schoolmaster told Castera that in return for 2000 francs which she had borrowed from him Mme Lacoste had given him a note for 1772 francs, which was due from Castera to Henri Lacoste as part inheritance from a brother. Meilhan showed Castera the original note, which was to be renewed in Meilhan's favour. The accusation dwelt on the different versions regarding his possession of the note given by Meilhan to the Mayor and to Castera. Meilhan was demonstrably lying to conceal Mme Lacoste's liberality.

Some little time after this Meilhan invited the Mayor a second time into the schoolroom, and told him that Mme Lacoste meant to assure him of a life annuity of 400 francs, and had asked him to prepare the necessary

document for her to sign. But there was another proposition. If Meilhan would return the note for 1772 francs owing by Castera she would make the annuity up to 500. What, asked Meilhan, would M. le Maire do in his place? The Mayor replied that in Meilhan's place he would keep the Castera note and be content with the 400 annuity. Then Meilhan asked the Mayor to draw up for him a specimen of the document necessary for creating the annuity. This M. Sabazan did at once, and gave the draft to Meilhan.

Some days later still Meilhan told M. Sabazan that Mme Lacoste did not wish to use the form of document suggested by the Mayor, but had written one herself. Meilhan showed the Mayor the widow's document, and begged him to read it to see if it was in proper form. Sabazan read the document. It created an annuity of 400 francs, payable yearly in the month of August. The Mayor did not know actually if the deed was in the writing of Mme Lacoste. He did not know her fist. But he could be certain that it was not in Meilhan's hand.

This deed was later shown by Meilhan to the cure of Riguepeu, who saw at least that the deed was not in Meilhan's writing. He noticed that it showed some mistakes, and that the signature of the Widow Lacoste began with the word "Euphemie."

In the month of August Meilhan was met coming out of Mme Lacoste's by the Mayor. Jingling money in his pocket, the schoolmaster told the Mayor he had just drawn the first payment of his annuity. Later Meilhan bragged to the cure of Basais that he was made for life. He took a handful of louis from his pocket, and told the priest that this was his daily allowance.

"Whence," demanded the acte d'accusation, "came all those riches, if they were not the price of his share in the crime?"

But the good offices of Mme Lacoste towards Meilhan did not end with the giving of money. In the month of August Meilhan was chased from his lodgings by his landlord, Lescure, on suspicion of having had intimate relations with the landlord's wife. The intervention of the Mayor was ineffective in bringing about a reconciliation between Meilhan and Lescure. Meilhan begged Mme Lacoste to intercede, and where the Mayor had failed she succeeded.

While Mme Lacoste was thus smothering Meilhan with kindnesses she was longing herself to make the most of the fortune which had come to her.

From the first days of her widowhood she was constantly writing letters which Mme Lescure carried for her. Euphemie had already begun to talk of remarriage. Her choice was already made. "If I marry again," she said, a few days after the death of Lacoste, "I won't take anybody but M. Henri Berens, of Tarbes. He was my first love."

The accusation told of Euphemie's departure for Tarbes, where almost her first caller was this M. Henri Berens. The next day she gave up the lodgings rented by her late husband, to establish herself in rich apartments owned by one Fourcade, which she furnished sumptuously. The accusation dwelt on her purchase of horses and a carriage and on her luxurious way of living. It also brought forward some small incidents illustrative of her distaste for the memory of her late husband. It dealt with information supplied by her landlord which indicated that her conscience was troubled. Twice M. Fourcade found her trembling, as with fear. On his asking her what was the matter she replied, "I was thinking of my husband—if he saw me in a place furnished like this!"

(It need hardly be pointed out, considering the sour and avaricious ways of her late husband, that Euphemie need not have been conscience-stricken with his murder to have trembled over her lavish expenditure of his fortune. But the point is typical of the trivialities with which the acte d'accusation was padded out.)

The accusation claimed that a young man had several times been seen leaving Euphemie's apartments at midnight, and spoke of protests made by Mme Fourcade. Euphemie declared herself indifferent to public opinion.

Public opinion, however, beginning to rise against her, Euphemie had need to resort to lying in order to explain her husband's death. To some she repeated the story of the onion-garlic-and-beans meal, adding that, in spite of his indigestion, he had eaten gluttonously later in the day. To others she attributed his illness to two indigestible repasts made at the fair. To others again she said Lacoste had died of a hernia, forced out by his efforts to vomit. She was even accused of saying that the doctor had attributed the death to this cause. This, said the indictment, was a lie. Dr Lasmolles declared that he had questioned Lacoste about the supposed hernia, and that the old man denied having any such thing.

What had brought about Lacoste's fatal illness was the wine Meilhan had made him drink at Rigeupeu fair.

With the rise of suspicion against her and her accomplice, Mme Lacoste put up a brave front. She wrote to the Procureur du Roi, demanding an exhumation, with the belief, no doubt, that time would have effaced the poison. At the same time she sent the bailiff Labadie to Riguepeu, to find out the names of those who were traducing her, and to say that she intended to prosecute her calumniators with the utmost rigour of the law. This, said the accusation, was nothing but a move to frighten the witnesses against her into silence. Instead of making good her threats the Widow Lacoste disappeared.

On the arrest of Meilhan search of his lodgings resulted in the finding of the note on Castera for 1772 francs, and of a sum of 800 francs in gold and silver. But of the deed creating the annuity of 400 francs there was no trace.

Meilhan denied everything. In respect of the wine he was said to have given Lacoste he said he had passed the whole of the 16th of May in the company of a friend called Mothe, and that Mothe could therefore prove Meilhan had never had a drink with Lacoste. Mothe, however, declared he had left Meilhan that day at three o'clock in the afternoon, and it was just at this time that Meilhan had taken Lacoste into the auberge where he lived to give him the poisoned drink. It was between three and four that Lacoste first showed signs of being ill.

Asked to explain the note for 1772 francs, Meilhan said that, about two months after Lacoste's death, the widow complained of not having any ready money. She had the Castera note, and he offered to discount it for her. This was a palpable lie, said the accusation. It was only a few days after Lacoste's death that Meilhan spoke to the Mayor about the Castera note. Meilhan's statement was full of discrepancies. He told Castera that he held the note against 2000 francs previously lent to the widow. He now said that he had discounted the note on sight. But the fact was that since Meilhan had come to live in Riguepeu he had been without resources. He had stripped himself in order to establish his son in a pharmacy at Vic-Fezensac. His profession of schoolmaster scarcely brought him in enough for living expenses. How, then, could he possibly be in a position to lend Mme Lacoste 2000 francs? And how had he managed to collect the 800 odd francs that were found in his lodgings? The real explanation lay in the story he had twice given to the Mayor, M. Sabazan: he was in possession of the Castera note through the generosity of his accomplice.

Meilhan was in still greater difficulty to explain the document which had settled on him an annuity of 400 francs, and which had been seen in his hands. Denial was useless, since he had asked the Mayor to make a draft for him, and since he had shown that functionary the deed signed by Mme Lacoste. Here, word for word, is the explanation given by the rubicund Joseph:

"My son," he said, "kept asking me to contribute to the upkeep of one of his boys who is in the seminary of Vic-Fezensac. I consistently refused to do so, because I wanted to save what little I might against the time when I should be unable to work any longer. Six months ago my son wrote to the cure, begging him to speak to me. The cure, not wishing to do so, sent on the letter to the Mayor, who communicated with me. I replied that I did not wish to do anything, adding that I intended investing my savings in a life annuity. At the same time I begged M. Sabazan to make me a draft in the name of Mme Lacoste. She knew nothing about it. M. Sabazan sent me on the draft. It seemed to me well drawn up. I rewrote it, and showed it to M. Sabazan. At the foot of the deed I put the words 'Veuve Lacoste,' but I had been at pains to disguise my handwriting. I did all this with the intention of making my son believe, when my infirmities obliged me to retire to his household, that my income came from a life annuity some one had given me; and to hide from him where I had put my capital I wanted to persuade M. Sabazan that the deed actually existed, so that he could bear witness to the fact to my son." Here, said the accusation, Meilhan was trying to make out that it was on the occasion of a letter from his son that he had spoken to the Mayor of the annuity.

The cure of Riguepeu, however, while admitting that he had received such a letter from Meilhan's son, declared that this was long before the death of Henri Lacoste. The Mayor also said that he had spoken to Meilhan of his son's letter well before the time when the accused mentioned the annuity to him and asked for a draft of the assignment.

The accusation ridiculed Meilhan's explanation, dubbing it just another of the schoolmaster's lies. It brought forward a contradictory explanation given by Meilhan to one Thener, a surgeon, whom he knew to be in frequent contact with the son whom the document was intended to deceive. Meilhan informed Thener that he had fabricated the deed, and had shown it round, in

order to inspire such confidence in him as would secure him refuge when he had to give up schoolmastering.

These contradictory and unbelievable explanations were the fruit of Meilhan's efforts to cover the fact that the annuity was the price paid him by the Widow Lacoste for his part in the murder of her husband. It was to be remembered that M. Sabazan, whose testimony was impeccable, had seen Meilhan come from the house of Mme Lacoste, and that Meilhan had jingled money, saying he had just drawn the first payment of his annuity.

The accusation, in sum, concentrated on the suspicious relationship between Meilhan and the Widow Lacoste. It was a long document, but something lacking in weight of proof—proof of the actual murder, that is, if not of circumstance.

V

The process in a French criminal court was—and still is—somewhat long-winded. The Procureur du Roi had to go over the accusation in detail, making the most of Mme Lacoste's intimacy with the ill-reputed old fellow. That parishioner, far from being made indignant by the animadversions of M. Cassagnol, listened to the recital of his misdeeds with a faint smile. He was perhaps a little astonished at some of the points made against him, but, it is said, contented himself with a gesture of denial to the jury, and listened generally as if with pleasure at hearing himself so well spoken of.

He was the first of the accused to be questioned.

It was brought out that he had been a soldier under the Republic, and then for a time had studied pharmacy. He had been a corn-merchant in a small way, and then had started schoolmaster.

Endeavour was made to get him to admit guilty knowledge of the death of the Lescure girl. He had never even heard of an abortion. The girl had a stomach-ache. This line failing, he was interrogated on the matter of being chased from his lodgings by the landlord-father, it would seem, of the aforementioned girl. (It may be noted that Meilhan lived on in the auberge after her death.) Meilhan had an innocent explanation of the incident. It was all a mistake on the part of Lescure. And he hadn't been chased out of the auberge. He had simply gone out with his coat slung about his shoulders. Mme Lacoste went with him to patch the matter up.

He had not given Lacoste a drink, hadn't even spoken with him, at the Riguepeu fair, but had passed the day with M. Mothe. Cournet had told him of Lacoste's having a headache, but had said nothing of vomitings. He had not seen Lacoste during the latter's illness, because Lacoste was seeing nobody.

This business of the annuity had got rather entangled, but he would explain. He had lodged 1772 francs with Mme Lacoste, and she had given him a bill on Castera. Whether he had given the money before or after getting the bill he could not be sure. He thought afterwards. He had forgotten the circumstances while in prison.

Meilhan stuck pretty firmly to his story that it was to deceive his son that he had fabricated the deed of annuity. He couldn't help it if the story sounded thin. It was the fact.

How had he contrived to save, as he said, 3000 francs? His yearly income during his six years at Riguepeu had been only 500 francs. The court had reason to be surprised.

"Ah! You're surprised!" exclaimed Meilhan, rather put out. But at Breuzeville, where he was before Riguepeu, he had bed and board free. In Riguepeu he had nothing off the spit for days on end. He spent only 130 francs a year, he said, giving details. And then he did a little trade in corn.

He had destroyed the annuity deed only because it was worthless. As for what he had said to the Mayor about drawing his first payment of the pension, he had done it because he was a bit conscience-stricken over fabricating the deed. He had been bragging—that was all.

The President, having already chidden Meilhan for being prolix in his answers, now scolded him for anticipating the questions. But the fact was that Meilhan was not to be pinned down.

The first questions put to Mme Lacoste were with regard to her marriage and her relations with her husband. She admitted, incidentally, having begun to receive a young man some six weeks after her husband's death, but she had not known him before marriage. Meilhan had carried no letters between them. She had married Lacoste of her own free will. Lacoste had not asked any attentions from her that were not ordinarily sought by a husband, and her care of him had been spontaneous. It was true he was jealous, but he had not formally forbidden her pleasures. She had renounced them, knowing he was easily upset. It was true that she had seldom gone

out, but she had never wanted to. Lacoste was no more avaricious than most, and it was untrue that he had denied her any necessities.

Taken to the events of the fair day, Tuesday, the 16th of May, Mme Lacoste maintained that her husband, on his return, complained only of a headache. He had gone to bed early, but he usually did. That night he slept in the same alcove as herself, but next night they separated. In spite of the contrary evidence of witnesses, of which the President reminded her, Mme Lacoste firmly maintained that it was not until the Wednesday-Thursday night that Lacoste started to vomit. It was not until that night that she began to attend to him. She had given him lemonade, washed him, and so on.

The President was saying that nobody had been allowed near him, and that a doctor was not called, when the accused broke in with a lively denial. Anybody who wanted to could see him, and a doctor was called. This was towards the last, the President pointed out. Mme Lacoste's advocate intervened here, saying that it was the husband who did not wish a doctor called, for reasons of his own. The President begged to be allowed to hear the accused's own answers. He pointed out that the ministrations of the accused had effected no betterment, but that the illness had rapidly got worse. The delay in calling a doctor seemed to lend a strange significance to the events.

Mme Lacoste answered in lively fashion, accenting her phrases with the use of her hands: "But, monsieur, you do not take into account that it was not until the night of Wednesday and the Thursday that my husband began to vomit, and that it was two days after that he—he succumbed."

The President said a way remained of fixing the dates and clearing up the point. He had a letter written by M. Lacoste to the doctor in which he himself explained the state of his illness. It was pointed out to him that the letter had been written by Mme Lacoste at her husband's dictation.

The letter was dated the 19th (Friday). It was directed to M. Boubee, doctor of medicine, in Vic-Fezensac. Perhaps it would be better to give it in the original language. It is something frank in detail:

Depuis quelque temps j'avais perdu l'appetit et m'endormais de suite quand j'étais assis. Mercredi il me vint un secours de nature par un vomissement extraordinaire. Ces vomissements m'ont dure pendant un jour et une nuit; je ne rendais que de la bile. La nuit passee, je n'en ai pas rendu; dans ce moment, j'en rends encore. Vous sentez combien ces efforts reiteres

m'ont fatigue; ces grands efforts m'ont fait partir de la bile par en bas; je vous demanderai, monsieur, si vous ne trouveriez pas a propos que je prisse une medecine d'huile de ricin ou autre, celle que vous jugerez a propos. Je vous demanderai aussi si je pourrais prendre quelques bains. [signe]

LACOSTE PHILIBERT

Je rends beaucoup de vents par en bas. Pour la boisson, je ne bois que de l'eau chaude et de l'eau sucee. (Il n'y a pas eu de fievre encore.)

The Procureur du Roi maintained that this letter showed the invalid had already been taken with vomiting before it was considered necessary to call in a doctor. But Mme Lacoste's advocate pointed out that the letter was written by her, when she had overcome Lacoste's distaste for doctors.

The President made much of the fact that Mme Lacoste had undertaken even the lowliest of the attentions necessary in a sick-room, when other, more mercenary, hands could have been engaged in them. The accusation from this was that she did these things from a desire to destroy incriminating evidences. Mme Lacoste replied that she had done everything out of affection for her husband.

Asked by the court why she had not thought to give Dr Boubee any explanations of the illness, she replied that she knew her husband was always ill, but that he hid his maladies and was ashamed of them. He had, it appeared, hernias, tetters, and other maladies besides. It was easy for her to gather as much, in spite of the mystery Lacoste made of them; she had seen him rubbing his limbs at times with medicaments, and at others she had seen him taking medicines internally. He was always vexed when she found him at it. She did not know what doctor prescribed the medicaments, nor the pharmacist who supplied them. Her husband thought he knew more than the doctors, and usually dealt with quacks.

Mme Lacoste was questioned regarding her husband's will, and on his longing to have an heir of his own blood. She knew of the will, but did not hear any word of his desire to alter it until after his death. With regard to Lacoste's attempts to seduce the servants, she declared this was a vague affair, and she had found the first girl in question a place elsewhere.

Her letter to the Procureur du Roi demanding an exhumation and justice against her slanderers was read. Then a second one, in which she excused her absence, saying that she would give herself up for judgment at the right time, and begged him to add her letter to the papers of the process.

The President then returned to the question of her husband's attempts to seduce the servants. She denied that this was the cause of quarrels. There had been no quarrels. She did not know that her husband was complaining outside about her.

She denied all knowledge of the arsenic found in Lacoste's body, but suggested that it might have come from one or other of the medicines he took.

Questioned with regard to her intimacy with Meilhan, she declared that she knew nothing of his morals. She had intervened in the Lescure affair at the request of Mme Lescure, who came to deny the accusation made by Lescure. This woman had never acted as intermediary between herself and Meilhan. Meilhan had not been her confidant. She looked after her late husband's affairs herself. She had handed over the Castera note to Meilhan against his loan of 2000 francs, but she had never given him money as a present. Nor had she ever spoken to Meilhan of an annuity. But Meilhan, it was objected, had been showing a deed signed "Euphemie Lacoste." The accused quickly replied that she never signed herself "Euphemie," but as "Veuve Lacoste." Upon this the President called for several letters written by the accused. It was found that they were all signed "Veuve Lacoste."

The evidence of the Fourcades regarding her conduct in their house at Tarbes was biased, she said. She had refused to take up some people recommended by her landlady. The young man who had visited her never remained longer than after ten o'clock or half-past, and she saw nothing singular in that.

The examination-in-chief of Mme Lacoste ended with her firm declaration that she knew nothing of the poisoning of her husband, and that she had spoken the truth through all her interrogations. Some supplementary questions were answered by her to the effect that she knew, during her marriage, that her husband had at one time suffered from venereal disease; and that latterly there had been recrudescences of the affection, together with the hernia already mentioned, for which her husband took numerous medicaments.

Throughout this long examination Mme Lacoste showed complete self-possession, save that at times she exhibited a Gascon impatience in answering what she conceived to be stupid questions.

The experts responsible for the analysis of Lacoste's remains were now called. All three of those gentlemen from Paris, MM. Pelouze, Devergie, and Flandin, agreed in their findings. Two vessels were exhibited, on which there glittered blobs of some metallic substance. This substance, the experts deposed, was arsenic obtained by the Marsh technique from the entrails and the muscular tissue from Lacoste's body. They could be sure that the substances used as reagents in the experiments were pure, and that the earth about the body was free from arsenic.

M. Devergie said that science did not admit the presence of arsenic as a normal thing in the human body. What was not made clear by the expert was whether the amount of arsenic found in the body of Lacoste was consistent with the drug's having been taken in small doses, or whether it had been given in one dose. Devergie's confrere Flandin later declared his conviction that the death of Lacoste was due to one dose of the poison, but, from a verbatim report, it appears that he did not give any reason for the opinion.

At this point Mme Lacoste was recalled, and repeated her statement that she had seen her husband rubbing himself with an ointment and drinking some white liquid on the return of a syphilitic affection.

Dr Lasmolles testified that Lacoste, though very close-mouthed, had told him of a skin affection that troubled him greatly. The deceased dosed himself, and did not obey the doctors' orders. It was only from a farmer that he understood Lacoste to have a hernia, and Lacoste himself did not admit it. The doctor did not believe the man poisoned. He had been impressed by the way Mme Lacoste looked after her husband, and the latter did not complain about anyone. M. Lasmolles had heard no mention from Lacoste of the glass of wine given him by Meilhan.

After M. Devergie had said that he had heard of arsenical remedies used externally for skin diseases, but never of any taken internally, M. Plandin expressed his opinion as before quoted.

The next witness was one Dupouy, of whom some mention has already been made. Five days before his death Lacoste told him that, annoyed with his wife, he definitely intended to disinherit her. Dupouy admitted, however, that shortly before this the deceased had spoken of taking a pleasure trip with Mme Lacoste.

Lespere then repeated his story of the complaints made to him by Lacoste of his wife's conduct, of his intention of altering his will, and of his belief that Euphemie was capable of poisoning him in order to get a younger man. It was plain that this witness, a friend of Lacoste's for forty-six years, was not ready to make any admissions in her favour. He swore that Lacoste had told him his wife did not know she was his sole heir. He was allowed to say that on the death of Lacoste he had immediately assumed that the poisoning feared by Lacoste had been brought about. He had heard nothing from Lacoste of secret maladies or secret remedies, but had been so deep in Lacoste's confidence that he felt sure his old friend would have mentioned them. He had heard of such things only at the beginning of the case.

The Procureur du Roi remarked here that reliance on the secret remedies was the 'system' of the defence.

That seemed to be the case. The 'system' of the prosecution, on the other hand, was to snatch at anything likely to appear as evidence against the two accused. The points mainly at issue were as follows:

- (1) Did Meilhan have a chance of giving Lacoste a drink at the fair?
- (2) Did Lacoste become violently sick immediately on his return from the fair?
- (3) Did Lacoste suffer from the ailments attributed to him by his wife, and was he in the habit of dosing himself?
- (4) Did Meilhan receive money from Mme Lacoste, and, particularly, did she propose to allow him the supposed annuity?

With regard to (1), several witnesses declared that Lacoste had complained to them of feeling ill after drinking with Meilhan, but none could speak of seeing the two men together. M. Mothe, the friend cited by Meilhan, less positive in his evidence in court than the acte d'accusation made him out to be, could not remember if it was on the 16th of May that he had spent the whole afternoon with Meilhan. It was so much his habit to be with Meilhan during the days of the fair that he had no distinct recollection of any of them. Another witness, having business with Lacoste, declared that on the day in question it was impossible for Meilhan to have been alone with Lacoste during the time that the latter was supposed to have taken the poisoned drink. Lescure, in whose auberge Lacoste was supposed to have had the drink, failed to remember such an incident. The evidence

that Meilhan had given Lacoste the drink was all second-hand; that to the contrary was definite.

For the most part the evidence with regard to (2), that Lacoste became very ill immediately on his return from the fair, was hearsay. The servants belonging to the Lacoste household all maintained that the vomiting did not seize the old man until the night of Wednesday-Thursday. Indeed, two witnesses testified that the old man, in spite of his supposed headache, essayed to show them how well he could dance. This was on his return from the fair where he was supposed to have been given a poisoned drink at three o'clock. The evidence regarding the seclusion of Lacoste by his wife was contradictory, but the most direct of it maintained that it was the old man himself, if anyone, who wanted to be left alone. On this point arises the question of the delay in calling the doctor. Witness after witness testified to Lacoste's hatred of the medical faculty and to his preference for dosing himself. He declared his faith in a local vet.

On (3), the bulk of the evidence against Lacoste's having the suggested afflictions came simply from witnesses who had not heard of them. There was, on the contrary, quite a number of witnesses to declare that Lacoste did suffer from a skin disease, and that he was in the habit of using quack remedies, the stronger the better. It was also testified that Lacoste was in the habit of prescribing his remedies for other people. A witness declared that a woman to whom Lacoste had given medicine for an indisposition had become crippled, and still was crippled.

With regard to (4), the Mayor merely repeated the evidence given in his first statement, but the cure', who also saw the deed assigning an annuity to Meilhan, said that it was not in Mme Lacoste's writing, and that it was signed with the unusual "Euphemie." This last witness added that Mme Lacoste's reputation was irreproachable, and that her relations with her husband were happy.

Evidence from a business-man in Tarbes showed that Mme Lacoste's handling of her fortune was careful to a degree, her expenditure being well within her income. This witness also proved that the Fourcades' evidence of Euphemie's misbehaviour could have been dictated from spite. Fourcade had been found out in what looked like a swindle over money which he owed to the Lacoste estate.

The court then went more deeply into the medico-legal evidence. It were tedious to follow the course of this long argument. After a lengthy dissertation on the progress of an acute indigestion and the effects of a strangulated hernia M. Devergie said that, as the poison existed in the body, from the symptoms shown in the illness it could be assumed that death had resulted from arsenic. The duration of the illness was in accord with the amount of arsenic found.

M. Flandin agreed with this, but M. Pelouze abstained from expressing an opinion. He, however, rather gave the show away, by saying that if he was a doctor he would take care to forbid any arsenical preparations. "These preparations," he said moodily, "can introduce a melancholy obscurity into the investigations of criminal justice."

Some sense was brought into the discussion by Dr Molas, of Auch. He put forward the then accepted idea of the accumulation of arsenic taken in small doses, and the power of this accumulation, on the least accident, of determining death.

This was rather like chucking a monkey-wrench into the cerebation machinery of the Paris experts. They admitted that the absorption and elimination of arsenic varied with the individual, and generally handed the case over to the defence. M. Devergie was the only one who stuck out, but only partially even then. "I persist in believing," he said, "that M. Lacoste succumbed to poisoning by arsenic; but I use the word 'poisoning' only from the point of view of science: arsenic killed him."

VII

The speech of the Procureur du Roi was another resume of the acte d'accusation, with consideration of that part of the evidence which suited him best.

This was followed by the speech of Maitre Canteloup in defence of Meilhan. The speech was a good effort which demonstrated that, whatever rumour might accuse the schoolmaster of, there were plenty of people of standing who had found him upright and free from stain through a long life. It reproached the accusation with jugglery over dates and so forth in support of its case, and confidently predicted the acquittal of Meilhan.

Then followed the speech of Maitre Alem-Rousseau on behalf of the Veuve Lacoste. Among other things the advocate brought forward the fact that Euphemie was not so poorly born as the prosecution had made out, but

that she had every chance of inheriting some 20,000 francs from her parents. It was notorious that when Henri Lacoste first broached the subject of marriage with Euphemie he was not so rich as he afterwards became, but, in fact, believed he had lost the inheritance from his brother Philibert, this last having made a will in favour of a young man of whom popular rumour made him the father. This was in 1839. The marriage was celebrated in May of 1841. Henri Lacoste, it is true, had hidden his intentions, but when news of the marriage reached the ears of brother Philibert that brother was so delighted that he destroyed the will which disinherited Henri. It was thus right to say that Euphemie became the benefactor of her husband. Where was the speculative marriage on the part of Euphemie that the prosecution talked about?

Maitre Alem-Rousseau made short work of the medico-legal evidence (he had little bother with the facts of the illness). Poison was found in the body. The question was, how had it got there? Was it quite certain that arsenic could not get into the human body save by ingestion, that it could not exist in the human body normally? The science of the day said no, he knew, but the science of yesterday had said yes. Who knew what the science of to-morrow would say?

The advocate made use of the evidence of a witness whose testimony I have failed to find in the accounts of the trial. This witness spoke of Lacoste's having asked, in Bordeaux, for a certain liquor of "Saint-Louis," a liquor which Mme Lacoste took to be an anisette. "No," said Lacoste, "women don't take it." Maitre Alem-Rousseau had tried to discover what this liquor of Saint-Louis was. During the trial he had come upon the fact that the arsenical preparation known as Fowler's solution had been administered for the first time in the hospital of Saint-Louis, in Paris. He showed an issue of the Hospital Gazette in which the advertisement could be read: "Solution de Fowler telle qu'on l'administre a SAINT-LOUIS!" The jury could make what they liked of that fact.

The advocate now produced documents to prove that the marriage of Euphemie with her grand-uncle had not been so much to her advantage, but had been—it must have been—a marriage of affection. At the time when the marriage was arranged, he proved, Lacoste had no more than 35,000 francs to his name. Euphemie had 15,000 francs on her marriage and the hope of 20,000 francs more. The pretence of the prosecution, that her

contentment with the abject duties which she had to perform in the house was dictated by interest, fell to the ground with the preliminary assumption that she had married for her husband's money.

Maitre Alem, defending the widow's gayish conduct after her husband's death, declared it to be natural enough. It had been shown to be innocent. He trounced the Press for helping to exaggerate the rumours which envy of Mme Lacoste's good fortune had created. He asked the jury to acquit Mme Lacoste.

The Procureur du Roi had another say. It was again an attempt to destroy the 'system' of the defence, but by making a mystery of the fact that the Lacoste-Verges marriage had not taken place in a church he gave the wily Maitre Alem an opportunity for following him.

The summing-up of the President on the third day of the trial was, it is said, a model of clarity and impartiality. The jury returned on all the points put to them a verdict of "Not guilty" for both the accused.

VIII

Another verdict may now seem to have been hardly possible. The accusation was built up on the jealousy of neighbours, on chance circumstances, on testimonies founded on petty spite. But, combined with the medico-legal evidence, the weight of circumstance might easily have hoisted the accused in the balance.

It will be seen, then, how much on foot the case of the Veuve Lacoste was with that of the Veuve Boursier, twenty years before.

It is on the experience of cases such as these two that the technique of investigation into arsenical poison has been evolved. In the case of Veuve Boursier you find M. Orfila discovering oxide of arsenic where M. Barruel saw only grains of fat. Four years previous to the case of the Veuve Lacoste that same Orfila came into the trial of Mme Lafarge with the first use in medical jurisprudence of the Marsh test, and based on the experiment a cocksure opinion which had much to do with the condemnation of that unfortunate woman. In the Lacoste trial you find the Parisian experts giving an opinion of no greater value than that of Orfila's in the Lafarge case, but find also an element of doubt introduced by the country practitioner, with his common sense on the then moot question of the accumulation, the absorption, and elimination of the drug.

Nowadays we are quite certain that our experts in medical jurisprudence know all there is to know about arsenical poisoning. What are the chances, however, in spite of our apparently well-founded faith, that some bristle-headed local chemist with a fighting chin will not spring up at an arsenic-poisoning trial and, with new facts about the substance, blow to pieces the cocksure evidence of the leading expert in pathology? It may seem impossible that such a thing can ever happen again—a mistake regarding the action of arsenic on the human body. But when we discover it becoming a commonplace of science that one human may be poisoned by an everyday substance which thousands of his fellows eat with enjoyment as well as impunity—a substance, for instance, as everyday as porridge—who will dare say even now that the last word has been said and written of arsenic?

But that, as the late George Moore so doted on saying, is *quelconque*. M. Orfila, sure about the grocer of the Rue de la Paix, was defeated by M. Barruel. M. Orfila, sure about the death of Charles Lafarge, is declared by to-day's experts in criminal jurisprudence and pathology to have been talking through his hat. According to the present experts, says "Philip Curtin," Lafarge was not poisoned at all, but died a natural death. Because of M. Devergie it was for the *Veuve Lacoste* as much 'touch and go' as it was for the *Veuve Boursier* twenty years before. Well might Marie-Fortunee Lafarge, hearing in prison of the verdict in the *Lacoste* trial, say, "*Ma condamnation a sauve Madame Lacoste!*"

In all this there's a moral lesson somewhere, but I'm blessed if I can put my finger on it.

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FOOTNOTES:

1 ([return](#))

[Bles, 1934.]

2 ([return](#))

[A stanza in one ballad runs:]

3 ([return](#))

["And haifing enterit within the faid chalmer, perfaving the faid vmqle Johnne to be walknit out of his fleip, be thair dyn, and to preife ouer his bed ftok, the faid Robert cam than rynnand to him, and maift crewallie, with thair faldit neiffis gaif him ane deidlie and crewall straik on the vane-organe, quhairwith he dang the faid vmqle Johnne to the grund, out-ouer his bed; and thaireftir, crewallie ftrak him on bellie with his feit; quhairvpoun he gaif ane grit cry: And the faid Robert, feiring the cry fould haif bene hard, he thaireftir, maift tyrannouflie and barbarouflie, with his hand, grippit him be the thrott or waifen, quhilk he held faft ane lang tyme quhill he wirreit him; during the quhilk tyme, the faid Johnne Kincaid lay ftruggilling and fechting in the panes of daith vnder him. And fa, the faid vmqle Johnne was crewallie murdreit and flaine be the faid Robert."]

4 ([return](#))

[Men convicted of certain crimes were also subject to the same form of execution adulterating and uttering base coins (Alan Napier, cutler in Glasgow, was strangled and burned at the stake in December 1602) sorcery, witchcraft, incantation, poisoning (Bailie Paterson suffered a like fate in December 1607). For bestiality John Jack was strangled on the Castle Hill (September 1605), and the innocent animal participator in his crime burned with him.]

5 ([return](#))

[The Memorial is fully entitled: A Worthy and Notable Memorial of the Great Work of Mercy which God wrought in the Conversion of Jean Livingstone Lady Warristoun, who was apprehended for the Vile and Horrible Murder of her own Husband, John Kincaid, committed on Tuesday, July 1, 1600, for which she was execute on Saturday following; Containing an Account of her Obstinacy, Earnest Repentance, and her Turning to God; of the Odd Speeches she used during her Imprisonment; of her Great and Marvellous Constancy; and of her Behaviour and Manner of Death: Observed by One who was both a Seer and Hearer of what was spoken.]

- 6 ([return](#))
[A 'row' is a wheel. This is one of the very few instances on which the terrible and vicious punishment of 'breaking on a wheel' was employed in Scotland. Jean Livingstone's accomplice was, according to Birrell's Diary, broken on a cartwheel, with the coulter of a plough in the hand of the hangman. The exotic method of execution suggests experiment by King Jamie.]
- 7 ([return](#))
[Hutchinson, 1930.]
- 8 ([return](#))
[Edinburgh, W. Green and Son, Ltd., 1930.]
- 9 ([return](#))
[Antony Weldon, The Court and Character of King James (1651).]
- 10 ([return](#))
[Fisher Unwin, 1925.]
- 11 ([return](#))
[State Trials (Cobbett's edition).]
- 12 ([return](#))
[Antony Weldon.]
- 13 ([return](#))
[State Trials.]
- 14 ([return](#))
[Probably started by Michael Sparke ("Scintilla") in Truth Brought to Light (1651).]
- 15 ([return](#))
[Sabatini, The Minion.]
- 16 ([return](#))
[According to one account. The Newgate Calendar (London 1773) gives Mrs Duncomb's age as eighty and that of the maid Betty as sixty.]
- 17 ([return](#))
[One account says it was Sarah Malcolm who entered via the gutter and window. Borrow, however, in his Celebrated Trials, quotes Mrs Oliphant's evidence in court on this point.]
- 18 ([return](#))
[Or Kerrol—the name varies in different accounts of the crime.]
- 19 ([return](#))
[Peter Buck, a prisoner.]
- 20 ([return](#))
[Born 1711, Durham, according to The Newgate Calendar.]
- 21 ([return](#))
[This confession, however, varies in several particulars with

that contained in A Paper delivered by Sarah Malcolm on the Night before her Execution to the Rev. Mr Piddington, and published by Him (London, 1733).]

22 ([return](#))

[In Mr Piddington's paper the supposed appointment is for "3 or 4 o'clock at the Pewter Platter, Holbourn Bridge."]

23 ([return](#))

[One Bridgewater.]

24 ([return](#))

[On more than one hand the crime is ascribed to Sarah's desire to secure one of the Alexanders in marriage.]

25 ([return](#))

[It was once done by the parish priest. (Stowe's Survey of London, p. 195, fourth edition, 1618.)]

26 ([return](#))

[The bequest of Dove appears to have provided for a further pious admonition to the condemned while on the way to execution. It was delivered by the sexton of St Sepulchre's from the steps of that church, a halt being made by the procession for the purpose. This admonition, however, was in fair prose.]

27 ([return](#))

[Thanks to my friend Billy Bennett, of music-hall fame, for his hint for the chapter title.]

28 ([return](#))

[Sophie Dawes, Queen of Chantilly (John Lane, 1912).]

29 ([return](#))

[Lacenaire, the notorious murderer-robber in a biting song, written in prison, expressed the popular opinion regarding Louis-Philippe's share in the Feucheres-Conde affair. The song, called *Pétition d'un voleur à un roi son voisin*, has this final stanza:

*"Sire, oserais-je réclamer?
Mais écoutez-moi sans colère:
Le vœu que je vais exprimer
Pourrait bien, ma foi, vous déplaire.
Je suis fourbe, avare, méchant,
Ladre, impitoyable, rapace;
J'ai fait se pendre mon parent:
Sire, cédez-moi votre place."]*

30 ([return](#))

[Or, simply, kermes—a pharmaceutical composition, containing antimony and sodium sulphates and oxide of antimony—formerly used as an expectorant.]

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